

HOUSE JOURNAL

EIGHTY-NINTH LEGISLATURE, REGULAR SESSION

PROCEEDINGS

SIXTY-NINTH DAY — WEDNESDAY, MAY 21, 2025

The house met at 11:15 a.m. and was called to order by the speaker pro tempore.

The roll of the house was called and a quorum was announced present (Record 3114).

Present — Mr. Speaker; Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; García, J.; García, L.; García Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody(C); Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Absent, Excused — Jones, V.

LEAVES OF ABSENCE GRANTED

On motion of Representative Patterson and by unanimous consent, all members who were granted leaves of absence on the previous legislative day were granted leaves for this legislative day.

RULES SUSPENDED

Representative Patterson moved to suspend all necessary rules to take up and consider at this time, on third reading and final passage, the bills on the local, consent, and resolutions calendar which were considered on the previous legislative day.

The motion prevailed.

MOTION FOR ONE RECORD VOTE

On motion of Representative Patterson and by unanimous consent, the house agreed to use the first record vote taken for all those bills on the local, consent, and resolutions calendar that require a record vote on third reading and final passage, with the understanding that a member may record an individual vote on any bill with the journal clerk.

LOCAL, CONSENT, AND RESOLUTIONS CALENDAR THIRD READING

The following bills which were considered on second reading on the previous legislative day on the local, consent, and resolutions calendar were laid before the house, read third time, and passed by the following record vote (members registering votes and the results of the vote are shown following the bill number).

(Record 3115): 140 Yeas, 1 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; VanDeaver; Vasut; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Lowe.

Present, not voting — Mr. Speaker; Moody(C).

Absent, Excused — Jones, V.

Absent — Gates; Gerdes; Noble; Rosenthal; Turner; Villalobos.

STATEMENTS OF VOTE

When Record No. 3115 was taken, I was in the house but away from my desk. I would have voted yes.

Gates

When Record No. 3115 was taken, my vote failed to register. I would have voted yes.

Noble

When Record No. 3115 was taken, my vote failed to register. I would have voted yes.

Turner

SB 647 (Cook, Cunningham, Dorazio, Harrison, Hickland, Holt, Hopper, Hull, LaHood, Leo Wilson, Little, Luther, Morgan, Noble, Olcott, Patterson, Pierson, Richardson, Schatzline, Schoolcraft, Shofner, Spiller, Tinderholt, Toth, and Troxclair - no) (116 - 25 - 2)

SB 648 (Cunningham, Dorazio, Harrison, Hickland, Holt, Hopper, Hull, LaHood, Leo Wilson, Little, Luther, Morgan, Noble, Olcott, Patterson, Pierson, Richardson, Schatzline, Schoolcraft, Shofner, Slawson, Spiller, Toth, and Troxclair - no) (117 - 24 - 2)

SB 1493 (Cain, Cunningham, and Vasut - no; Lowe - yes) (138 - 3 - 2)

SB 1709 (Lowe - yes) (141 - 0 - 2)

SB 2001 (Dorazio, Harrison, Holt, Hull, LaHood, Leo Wilson, Little, Luther, Money, Morgan, Olcott, Pierson, Richardson, Schatzline, Schoolcraft, Shofner, Tinderholt, and Toth - no) (122 - 19 - 2)

HB 5669 (Bumgarner, Cain, Cook, Cunningham, DeAyala, Harris Davila, Harrison, Hickland, Hopper, Hull, Isaac, LaHood, Lambert, Leo Wilson, Little, Luther, Money, Morgan, Noble, Olcott, Patterson, Pierson, Richardson, Schatzline, Schoolcraft, Shofner, Slawson, Spiller, Swanson, Tinderholt, Toth, Troxclair, Vasut, and Wilson - no) (107 - 34 - 2)

HB 3115 (Bonnen, Capriglione, Cunningham, Dean, Harrison, Hefner, Holt, Hull, LaHood, Leach, Leo Wilson, Little, Luther, Metcalf, Money, Morgan, Olcott, Oliverson, Patterson, Pierson, Richardson, Schatzline, Schoolcraft, Slawson, Spiller, Tinderholt, and Toth - no) (113 - 28 - 2)

HB 5655 (Alders, Ashby, Barry, Bonnen, Bumgarner, Cain, Capriglione, Cook, Cunningham, Dean, DeAyala, Dorazio, Harris Davila, Harrison, Hefner, Hickland, Holt, Hopper, Hull, Isaac, King, LaHood, Lambert, Leach, Leo Wilson, Little, Luther, McQueeney, Metcalf, Money, Morgan, Noble, Olcott, Oliverson, Pierson, Richardson, Schatzline, Schoolcraft, Shofner, Slawson, Spiller, Swanson, Tinderholt, Toth, Troxclair, Vasut, Wharton, and Wilson - no) (93 - 48 - 2)

HB 5689 (Ashby, Barry, Bonnen, Cain, Capriglione, Cunningham, DeAyala, Harrison, Hull, Isaac, King, Noble, Oliverson, Schoolcraft, Slawson, Spiller, Vasut, and Wharton - no; Lowe - yes) (124 - 17 - 2)

HB 5690 (Ashby, Barry, Bonnen, Cain, Capriglione, Cunningham, Dean, DeAyala, Harrison, Hull, Isaac, King, McQueeney, Noble, Oliverson, Schoolcraft, Slawson, Spiller, Vasut, and Wharton - no; Lowe - yes) (122 - 19 - 2)

HB 5653 (Bonnen, Cain, Capriglione, Cunningham, Hull, Oliverson, Patterson, Slawson, Vasut, and Wilson - no; Lowe - yes) (131 - 10 - 2)

**BILLS AND JOINT RESOLUTIONS ON FIRST READING
AND REFERRAL TO COMMITTEES
RESOLUTIONS REFERRED TO COMMITTEES**

Bills and joint resolutions were at this time laid before the house, read first time, and referred to committees. Resolutions were at this time laid before the house and referred to committees. (See the addendum to the daily journal, Referred to Committees, List Nos. 1 and 2.)

(Harris in the chair)

COMMITTEE GRANTED PERMISSION TO MEET

Representative Patterson requested permission for the Committee on Local and Consent Calendars to meet while the house is in session, at 3 p.m. today, in 3W.9, to consider committee business.

Permission to meet was granted.

COMMITTEE MEETING ANNOUNCEMENT

The following committee meeting was announced:

Local and Consent Calendars, 3 p.m. today, 3W.9, for a formal meeting, to consider committee business.

LEAVES OF ABSENCE GRANTED

The following members were granted leaves of absence temporarily for today to attend a meeting of the Committee on Public Education:

Ashby on motion of Landgraf.

Bryant on motion of Landgraf.

Frank on motion of Landgraf.

Hinojosa on motion of Landgraf.

Leo Wilson on motion of Landgraf.

**MAJOR STATE CALENDAR
SENATE BILLS
THIRD READING**

The following bills were laid before the house and read third time:

**SB 4 ON THIRD READING
(Meyer, Martinez Fischer, Bonnen, Hunter, Turner, et al. - House Sponsors)**

SB 4, A bill to be entitled An Act relating to an increase in the amount of the exemption of residence homesteads from ad valorem taxation by a school district and the protection of school districts against certain losses in local revenue.

SB 4 was passed by (Record 3116): 143 Yeas, 0 Nays, 1 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Gámez; García, J.; García, L.; García Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris(C); Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker.

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

STATEMENTS OF VOTE

When Record No. 3116 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Ashby

When Record No. 3116 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 23 - RULES SUSPENDED ADDITIONAL SPONSOR AUTHORIZED

Representative Meyer moved to suspend Rule 8, Section 5(d), of the House Rules to designate Representative Spiller as an additional sponsor to **SB 23**.

The motion prevailed.

SB 23 ON THIRD READING (Meyer, Martinez Fischer, Bonnen, Hunter, Bernal, et al. - House Sponsors)

SB 23, A bill to be entitled An Act relating to an increase in the amount of the exemption from ad valorem taxation by a school district of the appraised value of the residence homestead of a person who is elderly or disabled and the protection of school districts against certain losses in local revenue.

SB 23 was passed by (Record 3117): 141 Yeas, 0 Nays, 1 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Flores; Gámez; García, J.; García, L.; García Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris(C); Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker.

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Fairly; Martinez.

STATEMENTS OF VOTE

When Record No. 3117 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Ashby

When Record No. 3117 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

GENERAL STATE CALENDAR SENATE BILLS THIRD READING

The following bills were laid before the house and read third time:

SB 1762 ON THIRD READING (Darby - House Sponsor)

SB 1762, A bill to be entitled An Act relating to the authority of the Railroad Commission of Texas to designate certain persons as the operator of an orphaned oil or gas well.

REMARKS ORDERED PRINTED

Representative Canales moved to print all remarks on **SB 4** and **SB 23** on May 20.

The motion prevailed. [Please refer to the Day 68 journal for the text of the debate on **SB 4** and **SB 23**.]

SB 1762 - (consideration continued)

SB 1762 was passed by (Record 3118): 140 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Anchía; Fairly.

STATEMENTS OF VOTE

When Record No. 3118 was taken, my vote failed to register. I would have voted yes.

Anchía

When Record No. 3118 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 34 ON THIRD READING
(King - House Sponsor)

SB 34, A bill to be entitled An Act relating to funding for certain volunteer fire departments, to the preparation for and the prevention, management, and potential effects of wildfires, and to emergency communications in this state.

SB 34 was passed by (Record 3119): 140 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Fairly; Hefner.

STATEMENTS OF VOTE

When Record No. 3119 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Ashby

When Record No. 3119 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 60 ON THIRD READING
(Dean - House Sponsor)

SB 60, A bill to be entitled An Act relating to the disposition by a public junior college library of certain library materials.

SB 60 was passed by (Record 3120): 142 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

STATEMENT OF VOTE

When Record No. 3120 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 706 - RULES SUSPENDED ADDITIONAL SPONSORS AUTHORIZED

Representative Hefner moved to suspend Rule 8, Section 5(d), of the House Rules to designate as joint sponsors and co-sponsors for **SB 706** all joint authors and co-authors for **HB 1337**.

The motion prevailed.

SB 706 ON THIRD READING (Isaac, Dorazio, Hickland, Cortez, et al. - House Sponsors)

SB 706, A bill to be entitled An Act relating to the recognition of a handgun license issued by another state.

SB 706 was passed by (Record 3121): 89 Yeas, 51 Nays, 2 Present, not voting.

Yeas — Alders; Barry; Bell, C.; Bell, K.; Bonnen; Buckley; Bucy; Bumgarner; Button; Cain; Canales; Capriglione; Cook; Craddick; Cunningham; Curry; Darby; DeAyala; Dorazio; Dutton; Dyson; Fairly; Gates; Gerdes; Geren; Guillen; Harris(C); Harris Davila; Harrison; Hayes; Hefner; Hickland; Holt; Hopper; Hull; Hunter; Isaac; King; Kitzman; LaHood; Lambert; Landgraf; Leach; Little; Lopez, J.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morales, E.; Morgan; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, V.; Phelan; Pierson; Raymond; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; VanDeaver; Vasut; Villalobos; Virdell; Wharton; Wilson.

Nays — Allen; Anchía; Bernal; Bhojani; Bowers; Campos; Cole; Collier; Davis, A.; Davis, Y.; Dean; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Harless; Hernandez; Howard; Johnson; Jones, J.; Lalani; Longoria; Lopez, R.; Martinez; Martinez Fischer; Meza; Moody; Morales, C.; Muñoz; Perez, M.; Plesa; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Talarico; Thompson; Turner; Vo; Walle; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Morales Shaw.

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Cortez; Kerwin.

STATEMENTS OF VOTE

When Record No. 3121 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Ashby

When Record No. 3121 was taken, I was shown voting yes. I intended to vote no.

Bucy

When Record No. 3121 was taken, I was in the house but away from my desk. I would have voted yes.

Kerwin

When Record No. 3121 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

When Record No. 3121 was taken, I was shown voting yes. I intended to vote no.

V. Perez

SB 1814 ON THIRD READING
(Hefner, et al. - House Sponsors)

SB 1814, A bill to be entitled An Act relating to creation and maintenance of an electronic database to provide information to certain members of the United States armed forces regarding the resources and benefits provided to veterans.

SB 1814 was passed by (Record 3122): 138 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dyson; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Dutton; Fairly; Harrison; Zwiener.

STATEMENTS OF VOTE

When Record No. 3122 was taken, I was in the house but away from my desk. I would have voted yes.

Harrison

When Record No. 3122 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 1220 ON THIRD READING
(Smithee - House Sponsor)

SB 1220, A bill to be entitled An Act relating to the subject matter jurisdiction of the criminal trial courts of this state.

SB 1220 was passed by (Record 3123): 127 Yeas, 10 Nays, 5 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Gámez; Garcia, J.; Garcia, L.; Gates; Gerdes; Geren; Gervin-Hawkins; Guerra; Guillen; Harless; Harris Davila; Harrison; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Money; Moody; Morales, E.; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Richardson; Romero; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu.

Nays — Bowers; Flores; González, J.; Goodwin; Meza; Morales, C.; Reynolds; Rodríguez Ramos; Rose; Zwiener.

Present, not voting — Mr. Speaker; Fairly; González, M.; Harris(C); Morales Shaw.

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Garcia Hernandez; Hayes.

STATEMENTS OF VOTE

When Record No. 3123 was taken, I was in the house but away from my desk. I would have voted yes.

Garcia Hernandez

When Record No. 3123 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 523 ON THIRD READING (Hefner, et al. - House Sponsors)

SB 523, A bill to be entitled An Act relating to the issuance of a driver's license to certain persons that includes an alternative to the license holder's residence address.

SB 523 was passed by (Record 3124): 142 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

STATEMENT OF VOTE

When Record No. 3124 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 565 ON THIRD READING (Harris Davila - House Sponsor)

SB 565, A bill to be entitled An Act relating to a compliance agreement for the suspension of an enforcement action against a regional water supply, sewer, wastewater treatment, or solid waste disposal service for certain violations.

SB 565 was passed by (Record 3125): 141 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez

Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Lalani.

STATEMENT OF VOTE

When Record No. 3125 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 1253 ON THIRD READING (C. Bell - House Sponsor)

SB 1253, A bill to be entitled An Act relating to the provision by a political subdivision of credits against impact fees to builders and developers for certain water conservation and reuse projects.

Amendment No. 1

Representative Romero offered the following amendment to **SB 1253**:

Amend **SB 1253** (house committee report) on third reading as follows:

(1) On page 2, between lines 7 and 8, insert the following:

SECTION 2. Section 8843.152, Special District Local Laws Code, is amended to read as follows:

Sec. 8843.152. SERVICE CONNECTION FEE AND PRODUCTION FEE.

(a) This section does not apply to a water utility that has surface water as its sole source of water.

(b) The district may levy and collect a water utility service connection fee not to exceed \$1,000 for each new water service connection made after September 1, 2013.

(c) The district may assess a production fee as provided by Section 36.205, Water Code. Subject to Subsection (d), a fee assessed under this subsection may not exceed 30 cents per 1,000 gallons.

(d) Beginning January 1, 2026, and continuing on January 1 of each subsequent year, the maximum amount of the fee described by Subsection (c) increases by five percent from the previous year's maximum amount.

(e) The district may provide a credit against a service connection fee otherwise assessed to a water utility that is also assessed a production fee under this section for the construction, contribution, or dedication of an eligible facility, system, or product that results in water reuse, conservation, or savings as described under Section 395.0231(b), Local Government Code.

SECTION 3. Section 8843.104, Special District Local Laws Code, is repealed.

(2) On page 2, line 8, strike "SECTION 2" and substitute "SECTION 4".

Amendment No. 1 was adopted.

STATEMENT BY REPRESENTATIVE ISAAC

The Romero Amendment (Amendment No. 1) to **SB 1253** was rammed into legislation during third reading without debate or discussion, without public notice, and without any reference to the Hays Trinity Groundwater Conservation District (HTGCD) in the underlying bill text or in statements on the house floor. This is a clear violation of the house's long-standing rules on germaneness, and it is a slap in the face to every Texan who expects transparency and representation in their government. It clearly violates the tradition of the house to allow members to represent their districts by not filing bills or amendments that solely affect another member's district. I would have voted no on this amendment if the language and intent had been properly presented to the house. This amendment is not about conservation. It is about control, and it is the product of a carefully orchestrated campaign driven by special interests, political opportunism, and cronyism, not by the will of the people of House District 73 or Hays County.

What the Romero Amendment would do:

This amendment is nearly identical to **SB 2660**, which failed to move through the house due to overwhelming local opposition. It would:

- (1) Authorize a "connection fee" of up to \$1,000 per water line.
- (2) Impose massive new groundwater production fees, with automatic 5 percent annual increases in perpetuity.
- (3) Allow metering of private wells, including those used for agriculture.
- (4) Allow HTGCD staff to enter private property without landowner consent.

The issues:

(1) Fee Increases Exceed Legal Caps: The amendment allows groundwater production fees far above what current law permits and includes an automatic 5 percent annual increase not authorized in statute.

(2) New Water Connection Fee: A \$1,000 per-connection charge is described as a possible unconstitutional tax since it's not contemplated under current law and would allow this single district the authority to "double dip" on taxation and all done without any notification or notice as constitutionally required. Chapter 36 does not contemplate such "double dipping" unless you acknowledge the "connection fee" is a "tax." If it is a tax, you have constitutional notice/posting issues that have not been complied with. Neither Barton

Springs-Edwards Aquifer Conservation District (BSEACD) nor Comal Trinity GCD have both a "production fee" and a "connection fee" like this legislation will grant the HTGCD.

(3) Loss of Well Exemptions: The amendment repeals protections for private and agricultural wells, implying that meters could now be required and permits may be needed—even though local rules currently exempt these wells. Creating a property value crisis and a conflict with long-standing right of capture.

(4) Access to Private Property: Repealing language in HTGCD's governing statute would give the district the right to enter private property for well inspections without landowner consent, as Chapter 36 of the Water Code would then apply.

(5) Legal and Practical Gaps: Finally, the amendment adds a new Subsection (e) that is very problematic, in its attempt to make this language germane to the bill, it adds vague, permissive language that has never been assigned to groundwater districts, nor was it vetted for this particular district at any juncture of the 89th Session.

These are radical powers for a water board. And they are being handed out through a legislative backdoor by a member from Fort Worth with no connection to Hays County.

This amendment represents a direct assault on private property rights, local control, and the rule of law. It was never vetted, never debated, and never requested by the citizens of Hays County. The third reading amendment purposefully snuck onto other legislation without debate, public notice, or mention of Hays Trinity Groundwater Conservation District (HTGCD) in the underlying bill text or in statements on the house floor violates the spirit and the integrity of the house. It disrespects local control, undermines voter confidence, and sets a dangerous precedent for lawmaking in Texas.

SB 1253, as amended, was passed by (Record 3126): 112 Yeas, 28 Nays, 2 Present, not voting. (A motion to reconsider failed later today by Record No. 3184.)

Yeas — Alders; Allen; Anchía; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Campos; Capriglione; Cole; Collier; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dyson; Fairly; Flores; Gámez; García, J.; García, L.; García Hernandez; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Hayes; Hefner; Hernandez; Hickland; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; Lalani; Lambert; Landgraf; Leach; Longoria; Lopez, J.; Louderback; Lujan; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schofield; Schoolcraft; Shofner; Simmons; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wu; Zwiener.

Nays — Barry; Cain; Canales; Cook; Dorazio; Gates; Harris Davila; Harrison; Holt; Hopper; LaHood; Little; Lopez, R.; Lowe; Lozano; Luther; Morgan; Olcott; Pierson; Schatzline; Shaheen; Slawson; Tinderholt; Toth; Troxclair; Vasut; Virdell; Wilson.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Dutton; Oliverson.

STATEMENTS OF VOTE

When Record No. 3126 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted no.

Leo Wilson

When Record No. 3126 was taken, I was shown voting yes. I intended to vote no.

J. Lopez

SB 840 ON THIRD READING

(Hefner, Alders, Cole, et al. - House Sponsors)

SB 840, A bill to be entitled An Act relating to certain municipal regulation of certain mixed-use and multifamily residential development projects and conversion of certain commercial buildings to mixed-use and multifamily residential occupancy.

Amendment No. 1

Representative Hefner offered the following amendment to **SB 840**:

Amend **SB 840** on third reading on page 3 as follows:

- (1) On line 3, strike "or".
- (2) On line 6, strike the underlined period and substitute "; or".
- (3) Between lines 6 and 7, insert the following:

(4) apply the following regulations that are generally applicable to other developments in the municipality:

(A) except as otherwise provided by this chapter:

(i) sewer and water access requirements; or

(ii) building codes;

(B) stormwater mitigation requirements; or

(C) regulations related to historic preservation, including protecting historic landmarks or property in the boundaries of a local historic district.

Amendment No. 1 was adopted.

SB 840, as amended, was passed by (Record 3127): 106 Yeas, 33 Nays, 2 Present, not voting.

Yeas — Alders; Bell, C.; Bell, K.; Bhojani; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Cole; Cortez; Craddick; Curry; Darby; Davis, A.; Davis, Y.; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Gámez; Garcia, J.; Gates; Gerdes; González, M.; Goodwin; Guerra; Guillen; Harless; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Longoria; Lopez, J.; Louderback; Lozano; Lujan; Luther; Manuel; Martinez; McLaughlin; McQueeney; Metcalf; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Olcott; Oliverson; Ordaz; Orr; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Raymond; Reynolds; Richardson; Rodríguez Ramos; Schoolcraft; Shofner; Simmons; Slawson; Smith; Spiller; Swanson; Talarico; Tepper; Thompson; Turner; VanDeaver; Vasut; Villalobos; Virdell; Walle; Ward Johnson; Wharton; Wu; Zwiener.

Nays — Allen; Anchía; Barry; Bernal; Bonnen; Capriglione; Collier; Cook; Garcia, L.; Garcia Hernandez; Geren; González, J.; Harris Davila; Hopper; Little; Lopez, R.; Lowe; Martinez Fischer; Meyer; Noble; Patterson; Plesa; Romero; Rose; Rosenthal; Schatzline; Schofield; Shaheen; Tinderholt; Toth; Troxclair; Vo; Wilson.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Cunningham; Dean; Gervin-Hawkins.

STATEMENTS OF VOTE

When Record No. 3127 was taken, I was shown voting yes. I intended to vote no.

Bowers

When Record No. 3127 was taken, I was shown voting yes. I intended to vote no.

Campos

When Record No. 3127 was taken, I was shown voting yes. I intended to vote no.

J. Garcia

When Record No. 3127 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

When Record No. 3127 was taken, I was shown voting yes. I intended to vote no.

Olcott

When Record No. 3127 was taken, I was shown voting yes. I intended to vote no.

Pierson

When Record No. 3127 was taken, I was shown voting yes. I intended to vote no.

Richardson

SB 764 ON THIRD READING
(Phelan - House Sponsor)

SB 764, A bill to be entitled An Act relating to the procedure for a hearing by the Texas Department of Licensing and Regulation on the denial of an electrician's license or disciplinary action against an electrician.

SB 764 was passed by (Record 3128): 140 Yeas, 0 Nays, 3 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Gámez; García, J.; García, L.; García Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Capriglione; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Virdell.

STATEMENT OF VOTE

When Record No. 3128 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 2383 ON THIRD READING
(Hefner - House Sponsor)

SB 2383, A bill to be entitled An Act relating to the employment of certain peace officers of the Department of Public Safety.

SB 2383 was passed by (Record 3129): 140 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Curry; Darby; Davis, A.; Davis, Y.; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Ashby; Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Cunningham; Dean.

STATEMENT OF VOTE

When Record No. 3129 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

(Ashby now present)

SB 2155 ON THIRD READING
(Kitzman, K. Bell, Hull, Canales, and Buckley - House Sponsors)

SB 2155, A bill to be entitled An Act relating to the regulation of veterinary professionals and facilities by the State Board of Veterinary Medical Examiners and the temporary administration of the board by the Department of Licensing and Regulation.

SB 2155 was passed by (Record 3130): 113 Yeas, 26 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Button; Campos; Canales; Capriglione; Cole; Collier; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Hefner; Hernandez; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Lopez, J.; Lopez, R.; Louderback; Lozano; Lujan; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Smithee; Talarico; Tepper; Thompson; Troxclair; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Bumgarner; Cook; Gates; Harrison; Hayes; Hickland; Holt; Hopper; Lowe; Luther; Money; Morgan; Olcott; Oliverson; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Spiller; Swanson; Tinderholt; Toth; Vasut.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Cain; Kerwin; Longoria; Virdell.

STATEMENTS OF VOTE

When Record No. 3130 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted no.

Leo Wilson

When Record No. 3130 was taken, I was shown voting yes. I intended to vote no.

Pierson

SB 1535 ON THIRD READING (Button - House Sponsor)

SB 1535, A bill to be entitled An Act relating to the establishment by the Texas Workforce Commission of an advanced nuclear energy workforce development program.

SB 1535 was passed by (Record 3131): 138 Yeas, 4 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Wiener.

Nays — Cain; Harrison; Olcott; Toth.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Bryant; Frank; Hinojosa; Leo Wilson.

Absent — Little.

STATEMENT OF VOTE

When Record No. 3131 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

(Frank now present)

SB 1423 ON THIRD READING (Dean - House Sponsor)

SB 1423, A bill to be entitled An Act relating to the designation of a portion of Farm-to-Market Road 2275 in Gregg County as the Bill Stoudt Parkway.

SB 1423 was passed by (Record 3132): 142 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt;

Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walles; Ward Johnson; Wharton; Wilson; Wu; Wiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Bryant; Hinojosa; Leo Wilson.

Absent — Cain; Dutton.

STATEMENT OF VOTE

When Record No. 3132 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 1566 ON THIRD READING (Darby - House Sponsor)

SB 1566, A bill to be entitled An Act relating to connection of utilities by certain entities in certain subdivisions formerly located in a municipality's extraterritorial jurisdiction.

Representative Darby moved to postpone consideration of **SB 1566** until 9 a.m. tomorrow.

The motion prevailed.

SB 1804 - RULES SUSPENDED ADDITIONAL SPONSORS AUTHORIZED

Representative Smithee moved to suspend Rule 8, Section 5(d), of the House Rules to designate Representatives Flores, Y. Davis, Harris, and Bumgarner as additional sponsors to **SB 1804**.

The motion prevailed.

SB 1804 ON THIRD READING (Thompson - House Sponsor)

SB 1804, A bill to be entitled An Act relating to restitution and compensation paid to victims of certain offenses for tattoo removal related to the offense.

(Bryant and Hinojosa now present)

SB 1804 was passed by (Record 3133): 135 Yeas, 9 Nays, 3 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Moody; Morales, C.; Morales Shaw; Morgan; Muñoz; Noble; Ordaz; Orr; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Ashby; Cain; Lowe; Money; Olcott; Patterson; Schatzline; Tinderholt; Toth.

Present, not voting — Mr. Speaker; Harris(C); Morales, E.

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Leo Wilson.

Absent — Oliverson.

STATEMENTS OF VOTE

When Record No. 3133 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

When Record No. 3133 was taken, I was shown voting no. I intended to vote yes.

Tinderholt

SB 1728 ON THIRD READING **(Lalani and Cook - House Sponsors)**

SB 1728, A bill to be entitled An Act relating to the participation of certain juvenile justice entities in the Jobs and Education for Texans (JET) Grant Program.

SB 1728 was passed by (Record 3134): 94 Yeas, 47 Nays, 2 Present, not voting.

Yeas — Allen; Anchía; Bell, K.; Bernal; Bhojani; Bowers; Bryant; Buckley; Bucy; Button; Campos; Canales; Cole; Collier; Cortez; Craddick; Curry; Darby; Davis, A.; Davis, Y.; Dean; Dutton; Dyson; Fairly; Flores; Frank; Gámez; García, J.; García, L.; García Hernandez; Gates; Gerdes; Geren; Gervin-Hawkins; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Hayes; Hernandez; Hinojosa; Howard; Hunter; Johnson; Jones, J.; King; Kitzman; Lalani; Landgraf; Longoria; Lopez, J.; Lopez, R.; Louderback; Lozano; Lujan; Manuel; Martinez; Martinez Fischer; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Ordaz; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Smithee; Spiller; Talarico; Tepper; Thompson; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wilson; Wu; Zwiener.

Nays — Alders; Ashby; Barry; Bell, C.; Bonnen; Cain; Capriglione; Cook; DeAyala; Dorazio; Harris Davila; Harrison; Hefner; Hickland; Holt; Hopper; Hull; Isaac; Kerwin; LaHood; Lambert; Leach; Little; Lowe; Luther; McLaughlin; McQueeney; Metcalf; Money; Morgan; Olcott; Patterson; Paul; Pierson; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Swanson; Tinderholt; Toth; Troxclair; Vasut; Virdell.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Leo Wilson.

Absent — Bumgarner; Cunningham; Oliverson; Orr; Wharton.

STATEMENTS OF VOTE

When Record No. 3134 was taken, I was in the house but away from my desk. I would have voted no.

Bumgarner

When Record No. 3134 was taken, I was shown voting yes. I intended to vote no.

Dean

When Record No. 3134 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted no.

Leo Wilson

When Record No. 3134 was taken, I was shown voting yes. I intended to vote no.

Louderback

When Record No. 3134 was taken, my vote failed to register. I would have voted no.

Oliverson

When Record No. 3134 was taken, my vote failed to register. I would have voted no.

Wharton

SB 1816 ON THIRD READING
(Metcalf - House Sponsor)

SB 1816, A bill to be entitled An Act relating to the titling, registration, and operation of a miniature vehicle.

SB 1816 was passed by (Record 3135): 142 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Leo Wilson.

Absent — Gervin-Hawkins; Meza; Oliverson; Wilson.

STATEMENT OF VOTE

When Record No. 3135 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 1952 ON THIRD READING
(Hull - House Sponsor)

SB 1952, A bill to be entitled An Act relating to the administration and operation of the school health and related services program.

SB 1952 was passed by (Record 3136): 123 Yeas, 17 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; DeAyala; Dorazio; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gerdes; Geren; González, J.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Noble; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Shaheen; Shofner; Simmons; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Bumgarner; Cain; Canales; Gates; Holt; Hopper; Lowe; Lozano; Money; Morgan; Muñoz; Olcott; Pierson; Schoolcraft; Slawson; Tinderholt; Toth.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent, Excused, Committee Meeting — Leo Wilson.

Absent — Dean; Dutton; Gervin-Hawkins; González, M.; Lalani; Virdell.

STATEMENTS OF VOTE

When Record No. 3136 was taken, I was shown voting yes. I intended to vote no.

Harrison

When Record No. 3136 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted yes.

Leo Wilson

SB 75 ON THIRD READING (Wilson - House Sponsor)

SB 75, A bill to be entitled An Act relating to the resilience of the electric grid and certain municipalities.

(Leo Wilson now present)

SB 75 was passed by (Record 3137): 144 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio;

Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent — Gervin-Hawkins; Hayes; Simmons.

SB 2068 ON THIRD READING **(Button and Troxclair - House Sponsors)**

SB 2068, A bill to be entitled An Act relating to the duty of an appraisal district to keep confidential certain identifying information provided by a property owner.

SB 2068 was passed by (Record 3138): 145 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent — Gervin-Hawkins; Phelan.

SB 1455 ON THIRD READING
(Hefner - House Sponsor)

SB 1455, A bill to be entitled An Act relating to the funding mechanism for the regulation of workers' compensation and workers' compensation insurance; authorizing surcharges.

SB 1455 was passed by (Record 3139): 134 Yeas, 11 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, M.; Guerra; Guillen; Harless; Harris Davila; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Money; Moody; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Richardson; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Bowers; Bryant; González, J.; Goodwin; Harrison; Hinojosa; Jones, J.; Meza; Morales, C.; Reynolds; Rodríguez Ramos.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent — Davis, Y.; Gervin-Hawkins.

STATEMENT OF VOTE

When Record No. 3139 was taken, I was shown voting yes. I intended to vote no.

Rose

SB 213 ON THIRD READING
(Dean - House Sponsor)

SB 213, A bill to be entitled An Act relating to prohibiting insurers from requiring the tying of residential property and personal automobile insurance policies.

SB 213 was passed by (Record 3140): 145 Yeas, 1 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; García, J.; García, L.; García Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Canales.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent — Gervin-Hawkins.

SB 627 ON THIRD READING (VanDeaver - House Sponsor)

SB 627, A bill to be entitled An Act relating to the licensing and regulation of dietitians.

SB 627 was passed by (Record 3141): 103 Yeas, 34 Nays, 2 Present, not voting.

Yeas — Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bowers; Bryant; Buckley; Bucy; Button; Cole; Collier; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; García, J.; García, L.; García Hernandez; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Hefner; Hernandez; Hickland; Hinojosa; Hopper; Howard; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; Lalani; Lambert; Landgraf; Little; Longoria; Lopez, J.; Lopez, R.; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Ordaz; Orr; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rosenthal; Simmons; Smithee; Talarico; Tepper; Thompson; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wu; Zwiener.

Nays — Alders; Bonnen; Bumgarner; Cain; Canales; Capriglione; Cook; Gates; Harris Davila; Harrison; Holt; Hull; Leach; Leo Wilson; Louderback; Metcalf; Money; Olcott; Oliverson; Patterson; Paul; Pierson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Spiller; Toth; Troxclair; Vasut; Wharton; Wilson.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Jones, V.

Absent — Campos; Dean; Gervin-Hawkins; Hayes; LaHood; Lowe; Rose; Swanson; Tinderholt; Virdell.

STATEMENTS OF VOTE

When Record No. 3141 was taken, I was in the house but away from my desk. I would have voted yes.

Campos

When Record No. 3141 was taken, I was in the house but away from my desk. I would have voted yes.

Dean

When Record No. 3141 was taken, I was shown voting yes. I intended to vote no.

Hefner

When Record No. 3141 was taken, I was in the house but away from my desk. I would have voted no.

LaHood

When Record No. 3141 was taken, I was shown voting yes. I intended to vote no.

Morgan

When Record No. 3141 was taken, I was shown voting yes. I intended to vote no.

Richardson

When Record No. 3141 was taken, my vote failed to register. I would have voted yes.

Swanson

SB 2037 ON THIRD READING

(Patterson, Landgraf, and Anchía - House Sponsors)

SB 2037, A bill to be entitled An Act relating to permit application review and contested case procedures for environmental permits involving a project to construct or modify a liquefied natural gas export terminal; authorizing a fee.

LEAVE OF ABSENCE GRANTED

The following member was granted leave of absence for the remainder of today because of important business:

Gervin-Hawkins on motion of Bowers.

SB 2037 - (consideration continued)

SB 2037 was passed by (Record 3142): 109 Yeas, 29 Nays, 3 Present, not voting.

Yeas — Alders; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Capriglione; Cole; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gámez; Garcia Hernandez; Gates; Gerdes; Geren; Guerra; Guillen; Harris Davila; Harrison; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; Metcalf; Meyer; Money; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Ordaz; Orr; Patterson; Paul; Perez, M.; Phelan; Pierson; Plesa; Raymond; Richardson; Romero; Rose; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Tinderholt; Toth; Turner; VanDeaver; Vasut; Villalobos; Virdell; Wharton; Wilson.

Nays — Allen; Bryant; Canales; Collier; Davis, A.; Davis, Y.; Flores; Garcia, J.; Garcia, L.; González, J.; Goodwin; Harless; Hinojosa; Jones, J.; Leach; Meza; Moody; Morales, C.; Oliverson; Perez, V.; Reynolds; Rodríguez Ramos; Rosenthal; Thompson; Troxclair; Vo; Walle; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C); McQueeney.

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Bernal; Campos; Dutton; González, M.; Hayes; Simmons; Ward Johnson.

STATEMENTS OF VOTE

When Record No. 3142 was taken, I was shown voting yes. I intended to vote no.

Bowers

When Record No. 3142 was taken, I was in the house but away from my desk. I would have voted no.

Campos

When Record No. 3142 was taken, I was shown voting no. I intended to vote yes.

Troxclair

When Record No. 3142 was taken, I was shown voting no. I intended to vote yes.

Walle

When Record No. 3142 was taken, I was in the house but away from my desk. I would have voted yes.

Ward Johnson

SB 670 ON THIRD READING
(Campos - House Sponsor)

SB 670, A bill to be entitled An Act relating to patient authorization to access certain investigational sun protection products.

SB 670 was passed by (Record 3143): 115 Yeas, 27 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bowers; Bryant; Buckley; Bucy; Button; Campos; Capriglione; Cole; Collier; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dutton; Dyson; Fairly; Flores; Frank; Gámez; García, J.; García, L.; García Hernandez; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hernandez; Hickland; Hinojosa; Holt; Howard; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; Lalani; Lambert; Landgraf; Little; Longoria; Lopez, J.; Lopez, R.; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Ordaz; Orr; Paul; Perez, M.; Perez, V.; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schoolcraft; Shofner; Simmons; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Troxclair; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Ashby; Bumgarner; Cain; Canales; Dorazio; Gates; Hefner; Hopper; Hull; LaHood; Leach; Leo Wilson; Louderback; Lowe; Lozano; Metcalf; Morgan; Noble; Olcott; Oliverson; Patterson; Schofield; Shaheen; Slawson; Tinderholt; Toth; Vasut.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Bonnen; Cook; Phelan; Virdell.

STATEMENTS OF VOTE

When Record No. 3143 was taken, I was shown voting yes. I intended to vote no.

C. Bell

When Record No. 3143 was taken, I was in the house but away from my desk. I would have voted yes.

Cook

When Record No. 3143 was taken, I was in the house but away from my desk. I would have voted yes.

Virdell

SB 896 ON THIRD READING
(Cole - House Sponsor)

SB 896, A bill to be entitled An Act relating to the enrollment period for newborns under certain health benefit plans.

SB 896 was passed by (Record 3144): 130 Yeas, 14 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Canales; Capriglione; Cole; Collier; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schoolcraft; Shofner; Simmons; Smithee; Spiller; Talarico; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Bumgarner; Cain; Cook; Gerdes; Hefner; Hull; Money; Oliverson; Schatzline; Schofield; Shaheen; Slawson; Swanson; Tepper.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Dean; Walle.

STATEMENT OF VOTE

When Record No. 3144 was taken, I was in the house but away from my desk. I would have voted yes.

Dean

SB 917 ON THIRD READING
(Phelan - House Sponsor)

SB 917, A bill to be entitled An Act relating to certain boiler inspection reports and the composition and governance of the board of boiler rules.

SB 917 was passed by (Record 3145): 145 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Harless.

SB 1184 ON THIRD READING
(Phelan - House Sponsor)

SB 1184, A bill to be entitled An Act relating to the age of wine authorized to be sold by a wine collection seller.

SB 1184 was passed by (Record 3146): 129 Yeas, 16 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Capriglione; Cole; Collier; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf;

Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Olcott; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schoolcraft; Shofner; Simmons; Smithee; Spiller; Talarico; Tepper; Thompson; Tinderholt; Troxclair; Turner; VanDeaver; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Bumgarner; Cain; Canales; Cook; Hefner; Leo Wilson; Lowe; Noble; Oliverson; Schatzline; Schofield; Shaheen; Slawson; Swanson; Toth; Vasut.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Gerdes.

SB 971 ON THIRD READING
(Gerdes - House Sponsor)

SB 971, A bill to be entitled An Act relating to the definition of a rural political subdivision for purposes of the Texas Water Assistance Program.

SB 971 was passed by (Record 3147): 126 Yeas, 20 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Oliverson; Ordaz; Orr; Paul; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schofield; Schoolcraft; Shofner; Simmons; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Troxclair; Turner; VanDeaver; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Bumgarner; Cain; Canales; Hefner; LaHood; Leo Wilson; Lowe; McQueeney; Metcalf; Money; Morgan; Olcott; Patterson; Pierson; Schatzline; Shaheen; Slawson; Tinderholt; Toth; Vasut.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

SB 1255 ON THIRD READING
(Phelan - House Sponsor)

SB 1255, A bill to be entitled An Act relating to the regulation of mold assessors and remediators.

SB 1255 was passed by (Record 3148): 123 Yeas, 23 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Capriglione; Cole; Collier; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Oliverson; Ordaz; Orr; Paul; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schoolcraft; Shofner; Simmons; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Turner; VanDeaver; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wilson; Wu; Zwiener.

Nays — Bumgarner; Cain; Canales; Cook; Gates; Harrison; Hull; LaHood; Leo Wilson; Lowe; Morgan; Olcott; Patterson; Pierson; Schatzline; Schofield; Shaheen; Slawson; Tinderholt; Toth; Troxclair; Vasut; Wharton.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

STATEMENT OF VOTE

When Record No. 3148 was taken, I was shown voting yes. I intended to vote no.

Hickland

SB 1261 ON THIRD READING
(Gerdes - House Sponsor)

SB 1261, A bill to be entitled An Act relating to the financing of water supply projects included in the state water plan; authorizing the issuance of obligations.

SB 1261 was passed by (Record 3149): 119 Yeas, 23 Nays, 3 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Davis, A.; Davis, Y.; Dean; DeAyala; Dutton; Dyson; Fairly; Flores; Frank; Gámez;

Garcia, J.; Garcia, L.; Garcia Hernandez; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Lujan; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Ordaz; Orr; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schoolcraft; Simmons; Smithee; Spiller; Talarico; Tepper; Thompson; Troxclair; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wilson; Wu; Zwiener.

Nays — Bumgarner; Cain; Dorazio; Gates; Harrison; Hull; Leo Wilson; Lowe; Lozano; Luther; Metcalf; Oliverson; Patterson; Schatzline; Schofield; Shaheen; Shofner; Slawson; Swanson; Tinderholt; Toth; Vasut; Wharton.

Present, not voting — Mr. Speaker; Harris(C); Virdell.

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Darby; Louderback; Money.

STATEMENTS OF VOTE

When Record No. 3149 was taken, I was temporarily out of the house chamber. I would have voted no.

Louderback

When Record No. 3149 was taken, I was shown voting no. I intended to vote yes.

Shaheen

SB 1283 - RULES SUSPENDED ADDITIONAL SPONSORS AUTHORIZED

Representative Hull moved to suspend Rule 8, Section 5(d), of the House Rules to designate Representatives Patterson, Noble, Morales Shaw, Lalani, and Ward Johnson as additional sponsors to **SB 1283**.

The motion prevailed.

SB 1283 ON THIRD READING (Garcia Hernandez and Little - House Sponsors)

SB 1283, A bill to be entitled An Act relating to resident safety from criminal activity in senior retirement communities.

SB 1283 was passed by (Record 3150): 146 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia

Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

SB 991 ON THIRD READING

(M. González, Moody, VanDeaver, L. Garcia, et al. - House Sponsors)

SB 991, A bill to be entitled An Act relating to the inclusion of chronically absent and truant students as students at risk of dropping out of school and the collection and reporting of data regarding those students.

SB 991 was passed by (Record 3151): 100 Yeas, 44 Nays, 2 Present, not voting.

Yeas — Allen; Anchía; Ashby; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; DeAyala; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Hayes; Hernandez; Hinojosa; Howard; Hunter; Johnson; Jones, J.; King; Kitzman; Lalani; Lambert; Landgraf; Leach; Longoria; Lopez, J.; Lopez, R.; Lujan; Manuel; Martinez; McLaughlin; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Ordaz; Orr; Paul; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Smithee; Spiller; Talarico; Tepper; Thompson; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wilson; Wu; Zwiener.

Nays — Alders; Barry; Bumgarner; Cain; Dean; Dorazio; Harless; Harris Davila; Harrison; Hefner; Hickland; Holt; Hopper; Hull; Isaac; Kerwin; Leo Wilson; Little; Louderback; Lowe; Lozano; Luther; McQueeney; Metcalf; Money; Morgan; Olcott; Oliverson; Patterson; Pierson; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Swanson; Tinderholt; Toth; Troxclair; Vasut; Virdell; Wharton.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — LaHood; Martinez Fischer.

SB 1733 ON THIRD READING
(Lozano - House Sponsor)

SB 1733, A bill to be entitled An Act relating to the composition of the board of the Calhoun Port Authority.

SB 1733 was passed by (Record 3152): 130 Yeas, 15 Nays, 3 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; García, J.; García, L.; García Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Oliverson; Ordaz; Orr; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schoolcraft; Shaheen; Shofner; Simmons; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Turner; VanDeaver; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Bumgarner; Cain; Canales; Leo Wilson; Lowe; Metcalf; Olcott; Patterson; Schatzline; Schofield; Slawson; Tinderholt; Toth; Troxclair; Vasut.

Present, not voting — Mr. Speaker; Harris(C); Money.

Absent, Excused — Gervin-Hawkins; Jones, V.

SB 21 - RULES SUSPENDED
ADDITIONAL SPONSORS AUTHORIZED

Representative Capriglione moved to suspend Rule 8, Section 5(d), of the House Rules to designate Representatives Lalani, L. Garcia, and M. Perez as additional sponsors to **SB 21**.

The motion prevailed.

SB 21 ON THIRD READING
(Capriglione, Oliverson, Longoria, Vasut, Cunningham, et al. - House Sponsors)

SB 21, A bill to be entitled An Act relating to the establishment and administration of the Texas Strategic Bitcoin Reserve for the purpose of investing in cryptocurrency and the investment authority of the comptroller of public accounts over the reserve and certain other state funds.

SB 21 was passed by (Record 3153): 101 Yeas, 42 Nays, 2 Present, not voting.

Yeas — Alders; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; DeAyala; Dorazio; Dutton; Dyson; Fairly; Gámez; Garcia, L.; Gates; Gerdes; Geren; González, M.; Guerra; Guillen; Harris Davila; Hefner; Hernandez; Holt; Howard; Hull; Hunter; Isaac; Johnson; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McQueeney; Metcalf; Meyer; Moody; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Romero; Rose; Schofield; Shaheen; Shofner; Slawson; Smithee; Swanson; Talarico; Tepper; Toth; Turner; VanDeaver; Vasut; Villalobos; Vo; Walle; Wharton; Wilson.

Nays — Allen; Anchía; Bryant; Campos; Canales; Darby; Davis, Y.; Flores; Frank; Garcia, J.; Garcia Hernandez; González, J.; Goodwin; Harless; Harrison; Hayes; Hickland; Hinojosa; Hopper; Jones, J.; Lowe; McLaughlin; Meza; Money; Morales, C.; Olcott; Pierson; Reynolds; Richardson; Rodríguez Ramos; Rosenthal; Schatzline; Schoolcraft; Simmons; Spiller; Thompson; Tinderholt; Troxclair; Virdell; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Ashby; Davis, A.; Dean.

STATEMENTS OF VOTE

When Record No. 3153 was taken, I was in the house but away from my desk. I would have voted no.

Dean

When Record No. 3153 was taken, I was shown voting yes. I intended to vote no.

Rose

When Record No. 3153 was taken, I was shown voting no. I intended to vote yes.

Thompson

SB 231 ON THIRD READING (Guillen - House Sponsor)

SB 231, A bill to be entitled An Act relating to temporary emergency electric energy facilities.

SB 231 was passed by (Record 3154): 145 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick;

Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Dutton.

SB 739 ON THIRD READING

(Bhojani - House Sponsor)

SB 739, A bill to be entitled An Act relating to the definition of authorized peace officer for purposes of certain laws governing the installation and use of tracking equipment and access to certain communications.

SB 739 was passed by (Record 3155): 96 Yeas, 50 Nays, 2 Present, not voting.

Yeas — Allen; Anchía; Bell, C.; Bell, K.; Bernal; Bhojani; Bowers; Buckley; Button; Cain; Campos; Canales; Cole; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gerdes; Geren; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Hayes; Hernandez; Hickland; Holt; Howard; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; Lalani; Lambert; Landgraf; Leo Wilson; Longoria; Lopez, J.; Lopez, R.; Louderback; Lujan; Martinez; McLaughlin; McQueeney; Meyer; Moody; Morales, C.; Morales, E.; Morales Shaw; Noble; Ordaz; Orr; Patterson; Perez, M.; Perez, V.; Plesa; Raymond; Romero; Rose; Rosenthal; Shaheen; Simmons; Smithee; Spiller; Talarico; Tepper; Thompson; Turner; VanDeaver; Vasut; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wu; Zwiener.

Nays — Alders; Ashby; Barry; Bonnen; Bryant; Bucy; Bumgarner; Capriglione; Collier; Cook; Davis, Y.; Gates; González, J.; Harrison; Hefner; Hinojosa; Hopper; Hull; LaHood; Leach; Little; Lowe; Lozano; Luther; Manuel; Martinez Fischer; Metcalf; Meza; Money; Morgan; Muñoz; Olcott; Oliverson;

Paul; Phelan; Pierson; Reynolds; Richardson; Rodríguez Ramos; Schatzline; Schofield; Schoolcraft; Shofner; Slawson; Swanson; Tinderholt; Toth; Troxclair; Virdell; Wilson.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

STATEMENTS OF VOTE

When Record No. 3155 was taken, I was shown voting yes. I intended to vote no.

Dorazio

When Record No. 3155 was taken, I was shown voting yes. I intended to vote no.

Guerra

SB 1252 ON THIRD READING (King - House Sponsor)

SB 1252, A bill to be entitled An Act relating to the authority of a municipality to regulate the installation or inspection of a residential energy backup system.

SB 1252 was passed by (Record 3156): 137 Yeas, 6 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Ashby; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Anchía; Barry; Bucy; Garcia Hernandez; Hinojosa; Reynolds.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Davis, Y.; Simmons; Villalobos.

STATEMENTS OF VOTE

When Record No. 3156 was taken, I was shown voting no. I intended to vote yes.

Barry

When Record No. 3156 was taken, I was shown voting yes. I intended to vote no.

Bryant

When Record No. 3156 was taken, I was shown voting yes. I intended to vote no.

J. Jones

When Record No. 3156 was taken, I was shown voting yes. I intended to vote no.

Rodríguez Ramos

**SB 1371 ON THIRD READING
(Villalobos - House Sponsor)**

SB 1371, A bill to be entitled An Act relating to the operation of certain metropolitan transit authorities.

SB 1371 was passed by (Record 3157): 109 Yeas, 37 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bowers; Bryant; Buckley; Bucy; Button; Campos; Canales; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Hayes; Hernandez; Hinojosa; Howard; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; Lalani; Lambert; Landgraf; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; Metcalf; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Ordaz; Orr; Paul; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Smithee; Talarico; Tepper; Thompson; Turner; VanDeaver; Vasut; Villalobos; Vo; Walle; Ward Johnson; Wu; Zwiener.

Nays — Bonnen; Bumgarner; Cain; Capriglione; Gates; Harris Davila; Harrison; Hefner; Hickland; Holt; Hopper; Hull; LaHood; Leach; Leo Wilson; Lowe; McQueeney; Money; Morgan; Olcott; Oliverson; Patterson; Pierson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Spiller; Swanson; Tinderholt; Toth; Troxclair; Virdell; Wharton; Wilson.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

STATEMENT OF VOTE

When Record No. 3157 was taken, I was shown voting yes. I intended to vote no.

Metcalf

RECESS

Representative Geren moved that the house recess until 12:45 p.m. today.

The motion prevailed.

The house accordingly, at 12:10 p.m., recessed until 12:45 p.m. today.

AFTERNOON SESSION

The house met at 12:52 p.m. and was called to order by Representative Harris.

POSTPONED BUSINESS

The following bills were laid before the house as postponed business:

SB 646 ON SECOND READING

(A. Davis - House Sponsor)

SB 646, A bill to be entitled An Act relating to repayment of certain mental health professional education loans.

SB 646 was read second time on May 20, postponed until 3:30 p.m. May 20, and was again postponed until 5 p.m. May 20.

Representative A. Davis moved to postpone consideration of **SB 646** until 4:15 p.m. today.

The motion prevailed.

CSSB 3 ON SECOND READING

(King - House Sponsor)

CSSB 3, A bill to be entitled An Act relating to the regulation of products derived from hemp, including consumable hemp products and hemp beverages and the hemp-derived cannabinoids contained in those products; requiring occupational licenses and permits; imposing fees; creating criminal offenses; authorizing civil penalties; imposing taxes.

CSSB 3 was read second time on May 20, postponed until 3 p.m. May 20, and was again postponed until 6 p.m. May 20.

Representative King moved to postpone consideration of **CSSB 3** until 4 p.m. today.

The motion prevailed.

SCR 27

(Flores, Howard, Raymond, Goodwin, and Dutton - House Sponsors)

SCR 27, Authorizing the burial of Guy Herman in the State Cemetery.

SCR 27 was laid before the house on May 1 and was adopted by Record No. 1260. The vote was reconsidered on May 2, and **SCR 27** was postponed until May 6, postponed until May 14, and was again postponed until 10 a.m. today.

Representative Flores moved to postpone consideration of **SCR 27** until 10 a.m. Wednesday, May 28.

The motion prevailed.

SB 552 ON SECOND READING
(Leach, et al. - House Sponsors)

SB 552, A bill to be entitled An Act relating to changing the eligibility of certain persons to receive community supervision, including deferred adjudication community supervision.

SB 552 was read second time on May 2, postponed until May 5, postponed until May 6, postponed until May 12 (withdrawn), postponed until May 7, postponed until 9:53 a.m. May 8, postponed until 4 p.m. May 8, postponed until May 9, postponed until May 12, postponed until May 14, postponed until May 16, postponed until May 19, postponed until May 20, and was again postponed until 10 a.m. today.

Representative Leach moved to postpone consideration of **SB 552** until 9 a.m. tomorrow.

The motion prevailed.

CSSB 1405 ON SECOND READING
(Ashby - House Sponsor)

CSSB 1405, A bill to be entitled An Act relating to increasing access to and reducing taxation of Internet services.

CSSB 1405 was read second time on May 20 and was postponed until 10 a.m. today.

Amendment No. 1

On behalf of Representative Craddick, Representative Curry offered the following amendment to **CSSB 1405**:

Amend **CSSB 1405** (house committee report) as follows:

- (1) On page 11, line 12, between the period and "The", insert "(a)".
- (2) On page 11, between lines 16 and 17, insert the following:
 - (b) Section 151.3186, Tax Code, is repealed effective January 1, 2027.
- (3) On page 11, line 17, strike "The" and substitute "(a) Except as provided by Subsection (b) of this section, the".
- (4) On page 11, between lines 22 and 23, insert the following:
 - (b) The repeal of Section 151.3186, Tax Code, by this Act does not affect a refund:
 - (1) to which a taxpayer became entitled before the effective date of the repeal; and
 - (2) for which a taxpayer timely filed a claim with the comptroller of public accounts on or before March 31, 2027.

(5) On page 11, line 26, strike "This" and substitute "Except as otherwise provided by this Act, this".

(6) Add the following appropriately numbered SECTION to the bill and renumber the SECTIONS of the bill accordingly:

SECTION _____. Effective January 1, 2028, Subchapter H, Chapter 151, Tax Code, is amended by adding Section 151.3187 to read as follows:

Sec. 151.3187. PROPERTY USED IN CABLE TELEVISION, INTERNET ACCESS, OR TELECOMMUNICATIONS SERVICES. (a) In this section, "provider" means a provider of cable television service, Internet access service, or telecommunications services.

(b) Notwithstanding Sections 151.051 and 151.101 and except as provided by Subsection (c), the rate of the tax imposed under this chapter on the sale, lease, or rental or storage, use, or other consumption of tangible personal property is four percent if:

(1) the property is sold, leased, or rented to or stored, used, or consumed by a provider or a subsidiary of a provider; and

(2) the property is directly used or consumed by the provider or subsidiary described by Subdivision (1) in or during:

(A) the distribution of cable television service;

(B) the provision of Internet access service; or

(C) the transmission, conveyance, routing, or reception of telecommunications services.

(c) This section does not apply to:

(1) the sale, lease, or rental or storage, use, or other consumption of tangible personal property directly used or consumed in or during the provision, creation, or production of a data processing service or information service; or

(2) a tax authorized or imposed under Subtitle C, Title 3.

(d) The comptroller shall adopt rules to implement this section, including rules providing for a partial refund of any amount of tax imposed at the rate provided by Subsection (b) but collected at the rate provided by Section 151.051(b).

Amendment No. 1 was adopted.

CSSB 1405, as amended, was passed to third reading by (Record 3158): 94 Yeas, 31 Nays, 2 Present, not voting.

Yeas — Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bonnen; Bryant; Buckley; Bucy; Button; Canales; Capriglione; Cole; Collier; Cortez; Craddick; Curry; Darby; Davis, A.; Davis, Y.; Dean; Dorazio; Dyson; Fairly; Flores; Frank; Gámez; García, L.; García Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Hefner; Hernandez; Hinojosa; Howard; Hull; Hunter; Johnson; Jones, J.; King; Kitzman; Lalani; Lambert; Landgraf; Leach; Lopez, J.; Lujan; Manuel; Martinez; Metcalf; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Ordaz; Orr; Paul; Perez, M.; Phelan; Plesa; Raymond; Reynolds; Rodríguez

Ramos; Romero; Rose; Rosenthal; Shaheen; Shofner; Simmons; Smithee; Talarico; Tepper; Thompson; Turner; VanDeaver; Villalobos; Vo; Walle; Wharton; Wu; Zwiener.

Nays — Alders; Cain; Cook; DeAyala; Harris Davila; Hayes; Hickland; Hopper; Isaac; Kerwin; Leo Wilson; Little; Louderback; Luther; McLaughlin; Money; Olcott; Patterson; Richardson; Schatzline; Schofield; Schoolcraft; Slawson; Spiller; Swanson; Tinderholt; Toth; Troxclair; Vasut; Ward Johnson; Wilson.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Bhojani; Bowers; Bumgarner; Campos; Cunningham; Dutton; Garcia, J.; Harrison; Holt; LaHood; Longoria; Lopez, R.; Lowe; Lozano; Martinez Fischer; McQueeney; Morgan; Oliverson; Perez, V.; Pierson; Virdell.

STATEMENTS OF VOTE

When Record No. 3158 was taken, I was in the house but away from my desk. I would have voted yes.

Bhojani

When Record No. 3158 was taken, I was in the house but away from my desk. I would have voted yes.

Bowers

When Record No. 3158 was taken, I was in the house but away from my desk. I would have voted no.

Harrison

When Record No. 3158 was taken, I was in the house but away from my desk. I would have voted no.

Holt

When Record No. 3158 was taken, I was shown voting no. I intended to vote yes.

Kerwin

When Record No. 3158 was taken, my vote failed to register. I would have voted yes.

Martinez Fischer

When Record No. 3158 was taken, I was shown voting yes. I intended to vote no.

Metcalf

When Record No. 3158 was taken, I was shown voting yes. I intended to vote no.

Paul

When Record No. 3158 was taken, I was in the house but away from my desk. I would have voted no.

Pierson

When Record No. 3158 was taken, I was shown voting yes. I intended to vote no.

Tepper

When Record No. 3158 was taken, I was in the house but away from my desk. I would have voted no.

Virdell

COMMITTEES GRANTED PERMISSION TO MEET

Representative Gates requested permission for the Committee on Land and Resource Management to meet while the house is in session, at 2 p.m. today, in 1W.14, to consider pending, referred, and committee business.

Permission to meet was granted.

Representative Craddick requested permission for the Committee on Transportation to meet while the house is in session, at 4 p.m. today, in 1W.14, to consider pending, referred, and committee business.

Permission to meet was granted.

COMMITTEE MEETING ANNOUNCEMENTS

The following committee meetings were announced:

Land and Resource Management, 2 p.m. today, 1W.14, for a formal meeting, to consider pending, referred, and committee business.

Transportation, 4 p.m. today, 1W.14, for a formal meeting, to consider pending, referred, and committee business.

LEAVES OF ABSENCE GRANTED

The following members were granted leaves of absence temporarily for today to attend a meeting of the Committee on Homeland Security, Public Safety, and Veterans' Affairs:

Canales on motion of Metcalf.

Dorazio on motion of Metcalf.

Hefner on motion of Metcalf.

Hickland on motion of Metcalf.

Holt on motion of Metcalf.

Isaac on motion of Metcalf.

Louderback on motion of Metcalf.

McLaughlin on motion of Metcalf.

Pierson on motion of Metcalf.

SB 1948 ON SECOND READING
(Ashby - House Sponsor)

SB 1948, A bill to be entitled An Act relating to the regulation of fire prevention standards for certain agricultural facilities.

SB 1948 was read second time on May 20 and was postponed until 10 a.m. today.

SB 1948 was passed to third reading by (Record 3159): 98 Yeas, 26 Nays, 3 Present, not voting.

Yeas — Alders; Ashby; Barry; Bell, C.; Bell, K.; Bonnen; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Capriglione; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Dean; DeAyala; Dyson; Fairly; Frank; Gámez; Garcia, J.; Garcia Hernandez; Gates; Gerdes; Geren; Guerra; Guillen; Harless; Harris Davila; Hopper; Howard; Hull; Hunter; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Lopez, J.; Lujan; Luther; Manuel; Martinez; McQueeney; Metcalf; Meyer; Money; Morales, E.; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Richardson; Romero; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; VanDeaver; Vasut; Villalobos; Walle; Wharton; Wilson.

Nays — Allen; Anchía; Bhojani; Bowers; Bryant; Cole; Collier; Davis, Y.; Flores; Garcia, L.; González, M.; Goodwin; Hernandez; Meza; Moody; Morales, C.; Reynolds; Rodríguez Ramos; Rose; Rosenthal; Simmons; Turner; Vo; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C); Morales Shaw.

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent, Excused, Committee Meeting — Canales; Dorazio; Hefner; Hickland; Holt; Isaac; Louderback; McLaughlin; Pierson.

Absent — Bernal; Dutton; González, J.; Harrison; Hayes; Hinojosa; Longoria; Lopez, R.; Lowe; Lozano; Martinez Fischer; Virdell.

STATEMENTS OF VOTE

When Record No. 3159 was taken, I was shown voting no. I intended to vote yes.

M. González

When Record No. 3159 was taken, I was shown voting yes. I intended to vote no.

Guerra

When Record No. 3159 was taken, I was in the house but away from my desk. I would have voted yes.

Harrison

When Record No. 3159 was taken, I was excused to attend a meeting of the Committee on Homeland Security, Public Safety, and Veterans' Affairs. I would have voted yes.

Louderback

When Record No. 3159 was taken, my vote failed to register. I would have voted no.

Martinez Fischer

When Record No. 3159 was taken, I was excused to attend a meeting of the Committee on Homeland Security, Public Safety, and Veterans' Affairs. I would have voted yes.

Pierson

SB 243 ON SECOND READING
(Bernal, Lujan, and Romero - House Sponsors)

SB 243, A bill to be entitled An Act relating to the regulation of migrant labor housing facilities; changing the amount of a civil penalty.

SB 243 was read second time on May 20, postponed until 3 p.m. May 20, and was again postponed until 10 a.m. today.

Amendment No. 1

Representative Olcott offered the following amendment to **SB 243**:

Amend **SB 243** (house committee report) on page 1, line 11, by striking "\$50" and substituting "\$150".

Amendment No. 1 failed of adoption.

(Pierson now present)

Amendment No. 2

Representative Hopper offered the following amendment to **SB 243**:

Amend **SB 243** (house committee report) on page 1, lines 21 and 22, by striking ", or the attorney general, at the request of the department" and substituting "or the attorney general".

(Isaac now present)

Representative Bernal moved to table Amendment No. 2.

The motion to table prevailed by (Record 3160): 98 Yeas, 36 Nays, 2 Present, not voting.

Yeas — Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Capriglione; Cole; Collier; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dutton; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Hayes; Hernandez; Hinojosa; Howard; Johnson; Jones, J.; King; Kitman; Lalani; Lambert; Landgraf; Longoria; Lopez, J.; Lopez, R.;

Lujan; Luther; Manuel; Martinez; Martinez Fischer; Meyer; Meza; Moody; Morales, C.; Morales, E.; Muñoz; Noble; Oliverson; Ordaz; Orr; Patterson; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Shaheen; Simmons; Smithee; Spiller; Talarico; Tepper; Thompson; Turner; VanDeaver; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Alders; Ashby; Cain; Cook; Dyson; Gates; Harris Davila; Harrison; Hopper; Hull; Isaac; Kerwin; LaHood; Leach; Leo Wilson; Little; Lozano; McQueeney; Metcalf; Money; Morgan; Olcott; Paul; Richardson; Schatzline; Schofield; Schoolcraft; Shofner; Slawson; Swanson; Tinderholt; Toth; Troxclair; Vasut; Villalobos; Virdell.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent, Excused, Committee Meeting — Canales; Dorazio; Hefner; Hickland; Holt; Louderback; McLaughlin.

Absent — Bumgarner; Hunter; Lowe; Morales Shaw; Pierson.

STATEMENTS OF VOTE

When Record No. 3160 was taken, I was in the house but away from my desk. I would have voted no.

Hunter

When Record No. 3160 was taken, my vote failed to register. I would have voted no.

Pierson

(Hickland and Holt now present)

Amendment No. 3

Representative Hopper offered the following amendment to **SB 243**:

Amend **SB 243** (house committee report) by striking page 3, lines 23 and 24, and substituting "appropriated only to support border security efforts through the Local Border Security Program or the Operation Lone Star Grant Program."

Representative Bernal moved to table Amendment No. 3.

The motion to table prevailed by (Record 3161): 97 Yeas, 39 Nays, 2 Present, not voting.

Yeas — Allen; Anchía; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Capriglione; Cole; Collier; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Hernandez; Hinojosa; Howard; Johnson; Jones, J.; King; Kitzman; Lalani; Lambert; Landgraf; Leo Wilson; Longoria; Lopez, J.; Lopez, R.; Lujan; Manuel; Martinez; Martinez Fischer; Meyer; Meza; Moody; Morales,

C.; Morales, E.; Muñoz; Noble; Ordaz; Orr; Patterson; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Shaheen; Simmons; Smithee; Spiller; Talarico; Tepper; Thompson; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Alders; Cain; Cook; Gates; Gerdes; Harris Davila; Harrison; Hayes; Hickland; Holt; Hopper; Hull; Isaac; Kerwin; LaHood; Leach; Little; Lozano; Luther; McQueeney; Metcalf; Money; Morgan; Olcott; Oliverson; Paul; Pierson; Richardson; Schatzline; Schofield; Schoolcraft; Shofner; Slawson; Swanson; Tinderholt; Toth; Troxclair; Vasut; Virdell.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent, Excused, Committee Meeting — Canales; Dorazio; Hefner; Louderback; McLaughlin.

Absent — Ashby; Bumgarner; Hunter; Lowe; Morales Shaw.

STATEMENTS OF VOTE

When Record No. 3161 was taken, I was in the house but away from my desk. I would have voted yes.

Ashby

When Record No. 3161 was taken, I was in the house but away from my desk. I would have voted no.

Hunter

(McLaughlin now present)

SB 243 was passed to third reading by (Record 3162): 117 Yeas, 24 Nays, 2 Present, not voting.

Yeas — Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Hernandez; Hinojosa; Hopper; Howard; Hunter; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Ordaz; Orr; Patterson; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schoolcraft; Simmons; Smithee; Spiller; Talarico; Tepper; Thompson; Tinderholt; Turner; VanDeaver; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Alders; Cain; Harris Davila; Harrison; Hayes; Hickland; Holt; Hull; Isaac; Metcalf; Morgan; Olcott; Oliverson; Paul; Pierson; Schatzline; Schofield; Shaheen; Shofner; Slawson; Swanson; Toth; Troxclair; Vasut.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent, Excused, Committee Meeting — Canales; Dorazio; Hefner; Louderback.

Absent — Bumgarner.

STATEMENTS OF VOTE

When Record No. 3162 was taken, I was excused to attend a meeting of the Committee on Homeland Security, Public Safety, and Veterans' Affairs. I would have voted no.

Louderback

When Record No. 3162 was taken, I was shown voting yes. I intended to vote no.

Richardson

When Record No. 3162 was taken, I was shown voting yes. I intended to vote no.

Schoolcraft

COMMITTEE GRANTED PERMISSION TO MEET

Representative Meyer requested permission for the Committee on Ways and Means to meet while the house is in session, at 4 p.m. today, in 3W.15, to consider pending, referred, and committee business.

Permission to meet was granted.

COMMITTEE MEETING ANNOUNCEMENT

The following committee meeting was announced:

Ways and Means, 4 p.m. today, 3W.15, for a formal meeting, to consider pending, referred, and committee business.

SJR 1 ON THIRD READING

(Smithee, DeAyala, Little, Cook, Louderback, et al. - House Sponsors)

SJR 1, A joint resolution proposing a constitutional amendment requiring the denial of bail under certain circumstances for an illegal alien charged with an offense punishable as a felony.

SJR 1 was read third time on May 20, postponed until 3 p.m. May 20, and was again postponed until 1 p.m. today.

Representative Smithee moved to postpone consideration of **SJR 1** until 5 p.m. today.

The motion prevailed.

(Speaker in the chair)

**MAJOR STATE CALENDAR
SENATE BILLS
SECOND READING**

The following bills were laid before the house and read second time:

SB 31 ON SECOND READING

(Geren, Johnson, Howard, Hull, Orr, et al. - House Sponsors)

SB 31, A bill to be entitled An Act relating to exceptions to otherwise prohibited abortions based on a physician's reasonable medical judgment.

(Canales, Dorazio, Hefner, and Louderback now present)

SB 31 - REMARKS

REPRESENTATIVE GEREN: My layout's going to be a little bit longer than I normally do, so please let me get through it. If you have questions, I'd like to wait and answer them after that. The Life of the Mother Act has brought together all major pro-life groups, the doctors, the hospitals, Republicans, and Democrats. People on both sides of the abortion issue have agreed to this bill. These groups include the Texas Catholic Conference of Bishops, the Texas Alliance for Life, Texans for Life Committee, Texas Right to Life, the Human Coalition, the Texas Medical Association, Texas Hospital Association, Texas Civil Justice League, and Texas Campaign for Mothers. This bill passed out of the senate 31-0. As you know, these groups don't always see eye to eye, but in this case, they worked together to ensure pregnant women who have pregnancy complications get appropriate and timely care. And why is that? It's simple. We do not want women to die from medical emergencies during their pregnancy. We don't want women's lives to be destroyed because their bodies have been seriously impaired by medical emergencies during their pregnancies. We know women have died after care was delayed or denied. We know women have left Texas for lifesaving care. We know women's bodies have been horribly injured because doctors and hospitals are afraid to provide abortions that could save their bodies. Doctors and hospitals need the clarity **SB 31** will put into the law to be able to save women's lives and protect them from substantial impairments to their bodily functions. On all those things we agree. Senator Hughes asked the medical board to adopt rules clarifying the law. The Texas Supreme Court also asked the medical board to write these rules. When the board finally acted, their rules were inefficient. That leaves it up to us as a legislature.

SB 31 has one goal—to change the behavior of medical professionals by providing laws that are clear, consistent, fair, and understandable. Doctors and hospitals agree **SB 31** will achieve this goal. During this layout, I want to clearly state what this bill does and what it does not do. Let's start with the five major things it does. It provides an exception to the abortion laws when the mother has a life-threatening physical condition which could lead to death or threat to one of her major bodily functions. It's a two-part test which starts with a physician determining whether the life of the mom is in a life-threatening physical condition. This clarification clarifies the legislative intent everyone thought we

had when we passed the law several years ago. It makes clear that doctors are not required to withhold or alter lifesaving treatment for cancer or other conditions if doing so would jeopardize the life or major bodily functions, including the future fertility of a pregnant woman. It expressly states in current law the life-threatening condition does not have to be imminent. For example, in the case of pre-viable premature rupture of membranes—PPROM—will result in the mom developing an infection known as sepsis. Sepsis can cause death or seriously affect the mom's bodily functions. The bill expressly states that the physician does not need to wait for the infection to develop before intervening. It provides that all parties—doctors, nurses, pharmacists, technicians, and lawyers involved in making a medical determination—will not be sued for aiding or abetting an abortion. It requires doctors to have continued medical education regarding abortion laws and provides continuing legal education for lawyers who advise and represent medical professionals in the area of the law. Now, I want to address what is not in this bill. This bill does not address rape or incest. It does not address fatal fetal abnormalities. And this is not a choice bill. This bill addresses the life and health of the mother. Period. That's it.

There are two other issues I would like to further clarify during this layout. The first one is called the 1925 law. One of four abortion laws that are amended by **SB 31** is what has commonly been referred to as the 1925 law. This was the original statute banning abortions in Texas. When the Supreme Court made abortion legal under *Roe v. Wade*, the 1925 law was implied to be repealed. When *Roe v. Wade* was overturned in *Dobbs* in 2022, the reason for the implied repeal went away. There is currently a federal case pending which addresses the issue of whether the 1925 statute has been revived or not. To this date, the legislature has spoken three times, saying it believes the law is allowed. Ultimately, the court will make that determination. In the meantime, the provision in **SB 31** states that the bill is neutral as to whether the 1925 statute has been revived or not. By passing this bill, the bill is not taking a position on the revival of the statute one way or another. We commonly use provisions like this when there is pending litigation.

The second issue is whether the bill will permit the prosecution of a pregnant woman who gets an abortion. The unequivocal answer is no. Our state has never prosecuted women who get an abortion, and nothing in **SB 31** changes that. I want to thank my fellow joint authors, co-sponsors, and stakeholders for working with me on this important piece of legislation. Once again, I would like to read the people who have worked with us to put this bill together: the Texas Catholic Conference of Bishops, the Texas Alliance for Life, Texans for Life Committee, Texas Right to Life, the Human Coalition, Texas Medical Association, Texas Hospital Association, the Texas Civil Justice League, and the Texas Campaign for Mothers.

REPRESENTATIVE SCHATZLINE: I just have a few clarifying questions just so I can understand it. What is the purpose of Section 170A.0021?

GEREN: I'm sorry, Mr. Schatzline. Which section?

SCHATZLINE: 170A.0021. It's in Section 4 on page three of the bill.

GEREN: Yes. I have it here. This section was moved from a previous section already in the code.

SCHATZLINE: So is the section to instruct doctors to give the baby an opportunity to survive if the mother is facing a life-threatening condition? Is that the purpose of that section?

GEREN: The purpose of that section, if the baby is born during the procedure or the baby is born before the procedure can be performed, is for the doctors to use their medical judgment to help the baby survive. That is correct.

SCHATZLINE: Okay. So does this section instruct doctors to try, let's say, an early induction or C-section if possible, even if the mother is facing a life-threatening condition? Is that the idea?

GEREN: It is, but it leaves it to the reasonable medical judgment of the doctor, which is defined in code currently.

SCHATZLINE: So would this section allow the doctors to perform abortions in non-life-threatening conditions?

GEREN: If they are possibly life-threatening or they affect the major bodily functions, the doctor has the—if it's reasonable medical judgment, then they can perform an abortion.

SCHATZLINE: When you say major bodily functions, could you help us identify maybe what that was? Because I think some of the concern is we want to support the bill, but some of the concern from us is, is there a major bodily function—let me just ask it like this. If a mother has a high chance of survival but future infertility is a risk, does this bill allow for the doctor to use their judgment to conduct an abortion?

GEREN: Fertility, by the Supreme Court, has already been defined as a major bodily function. So, yes, they could, using reasonable medical judgment.

SCHATZLINE: Okay. That's clarifying. Does life-threatening have to be imminent?

GEREN: It does not, as I said in my opening remarks.

SCHATZLINE: Okay. Final question from me. What's an example of something that is life-threatening but not imminent? Just so we can gain a better understanding.

GEREN: Cancer treatment. So a doctor will be able—there were several examples over the last six or eight months putting this bill together where doctors would not perform cancer treatment on a pregnant woman. This will allow them to do cancer treatment if it's necessary.

REPRESENTATIVE HARRIS DAVILA: I just wanted to get some more clarification when we're talking about life-threatening and the definition in this bill. My understanding is that it's a two-part test that you first have to prove that there is a life-threatening condition. And as long as that's proven, you go on to the rest of the bill. Is that correct?

GEREN: That is correct.

HARRIS DAVILA: Okay. So life-threatening has to be proven first. Then if that is not proven, nothing else in the bill comes into effect?

GEREN: Life-threatening or impairing the major bodily functions of the mother, but that's right. That has to be done before any procedure takes place.

HARRIS DAVILA: Right. So that's the first test. So as long as the situation is a life-threatening situation, then the rest of the bill kicks in, but not before. Right?

GEREN: That is correct.

REPRESENTATIVE MONEY: I'm really just trying to understand this bill, and I want to support it. You've got a lot of support behind it, but I just want to clarify.

GEREN: Mr. Money, over the last six months or so, I've needed a lot of clarification myself.

MONEY: Well, thank you. We've spent time talking with some of the same stakeholders you're talking with. Where I'm coming from is I think that Texas' current law is clear that the life of the mother should be protected. I think it is clear. I think the Supreme Court has supported that. I think the problem we're trying to solve is there have been some malicious interpretations of the existing law—which I think is a good law—that have left some doctors in a situation that they are unclear about what they are supposed to do. I think people that want to promote abortion have tried to make it murky what our current law is. So my question is to you: Is this law written to make sure that malicious actors won't be able to find loopholes to allow abortions that would not be allowed under our current law?

GEREN: Medical malpractice is still allowed under this law, and the answer to that is yes. What we are trying to achieve here is a doctor under current law can go to jail for the rest of his life. A doctor under this current law can lose his medical license, and that's why some have been very indecisive. Lawyers that represent hospitals, or any other clinic where an emergency surgery may take place, are concerned and are afraid to advise a physician or a hospital that it is okay to proceed with that abortion. This law clarifies that and gives them some clarity so they can go forward without fear of going to jail for the rest of their lives.

MONEY: Yes. And to be clear, I don't want anybody going to jail for doing whatever needs to be done to try to save the life of a mother who is pregnant. What I also don't want to do is shift the pendulum in the other direction so doctors are able to concoct or find a way to perform an abortion that they wouldn't be able to under our law. You're saying that that has been addressed and taken care of?

GEREN: That has been addressed. And as I said, medical malpractice law is not being changed by this. We are in no way promoting abortion on this. What we are trying to do is save the life or the major bodily functions of a mother. I get a little

emotional about this. I've got friends who watched their wives nearly bleed out and become septic. That's the driver in this bill. In fact, a staffer, a good friend of mine, that nearly happened to his wife just this year.

MONEY: Right. And we've seen those things in the news, and it's happened to people that we know. I certainly want there to be clarity on being able to protect mothers who are at risk. But what I don't want to say is they're emotionally at risk or that they could possibly, in some very remote chance, have some negative impact, so we're going to go ahead and kill a perfectly viable life.

GEREN: In the bill, they have to use reasonable medical judgment, which has been defined and is supported by the medical board. If that's happening, a complaint can still be filed against a doctor for doing that. They would then have to show they used reasonable medical judgment in order to do that. This not only protects the doctor, but it protects the nurses, the technicians, whoever is involved in the procedure. I've got a real good pro-life voting record in this house, and I want to maintain that. But I'm going to fight to the end to make sure that we protect the doctors who are taking care of these mothers who might otherwise die.

MONEY: Yes, and I want to make sure we do exactly what you just said we would do but that we don't leave an opening for doctors whose only goal is to try to help people have abortions. You understand that?

GEREN: I do understand that, but I don't believe that this bill does that. I don't believe that Senator Hughes would have been able to get it out of the senate 31-0 if that were the case. I can assure you, knowing Senator Hughes for as long as I have, I promise you they've addressed that.

MONEY: I agree with you.

GEREN: And I'm not a lawyer.

REPRESENTATIVE LOWE: Sir, I have a question about reasonable medical judgment. As you know, the many doctors that worked at Planned Parenthood killed tens of thousands, probably millions, of babies. They were doctors. So can you explain to me what reasonable medical judgment is?

GEREN: If you don't mind, let me flip through my pages to get to that. Reasonable medical judgment has been ruled on by the Texas Supreme Court, so I'm not sure that I have the definition in here, but I think I do. The definition is not currently in the bill, but the Supreme Court has previously ruled on reasonable medical judgment. I'd be happy to get that for you, but I do not have it in front of me now.

LOWE: Okay. There's another section of the bill that says life-threatening means capable of causing death or potentially fatal—

GEREN: Or substantial impairment of the major bodily functions?

LOWE: Yes. "A life-threatening physical condition that is not necessarily one actively injuring the patient."

GEREN: Cancer treatment is a perfect example of that.

LOWE: Yes, and I get that. But as you have seen, science has really advanced, and we have been able to accomplish amazing things. Babies at 26 weeks have been able to live. Do you believe that we should allow a doctor to terminate—kill a human being—over cancer?

GEREN: Can I go back to your first question?

LOWE: Yes, sir. Absolutely.

GEREN: Reasonable medical judgment is what a board-certified obstetrician believes will save the life of a mother.

LOWE: Do you know how many, if any, doctors have lost their licenses or gone to prison because they've performed an abortion?

GEREN: I do not, sir. The law was passed—the Heartbeat Act is not that old, so I don't know how many have been prosecuted.

LOWE: Okay. This bill creates loopholes to recharge the pro-choice industry in Texas, and I will be voting no.

REPRESENTATIVE PIERSON: You had mentioned a bunch of pro-life organizations that support this bill, and the Human Coalition would be one of those organizations. Are you aware that I sat on the board of the Human Coalition before joining this chamber?

GEREN: I was not aware of that. No, ma'am.

PIERSON: Yes. I proudly joined that organization because they do wonderful things in the communities to serve—not just saving babies but also the women who choose to keep their children. Are you aware that during the senate testimony, the Human Coalition testified on this bill and testified that due to the Texas Supreme Court clarifications, even though they registered for the bill, that this bill was unnecessary? Are you aware of that?

GEREN: No, I am not aware of that. But I know that they've signed off on this bill.

PIERSON: Okay. Thank you. I just wanted to clarify for the record.

HARRIS DAVILA: I just wanted to go back and clarify a little bit more, again, going back to the life-threatening side of this and going back to what the bill says in this section that defines life-threatening. So can you just go through—it's very specific to the pregnancy, correct?

GEREN: That is correct.

HARRIS DAVILA: And from what I'm seeing, it says, "a life-threatening physical condition aggravated by, caused by, or arising from a pregnancy that places the female at risk of death or poses a serious risk of substantial impairment of a major bodily function." And so, again, we still have to prove that it's life-threatening, correct?

GEREN: Yes, but it is based on the doctor's good judgment. It is not based on somebody here saying, "Well, she might die."

HARRIS DAVILA: Right. And can you clarify a little bit more about the major bodily function? What kind of situations are we talking about? I know you had mentioned cancer before. What other situations will we see this?

GEREN: Kidney failure, liver failure, becoming septic, which is a terrible infection. My father suffered from sepsis, and that's when he died. But we—today, doctors have waited actually until a woman has become septic, and that can cause her kidneys to fail and cause her liver to fail. So the doctor has to decide if this woman is going to die or she's not going to be able to live without being on dialysis for the rest of her life or need a transplant.

HARRIS DAVILA: Exactly. And would you agree that sometimes there may not always be—going back to the imminent threat, you may not be bleeding out at the time, but there are indications of sepsis and other issues like that beforehand, right?

GEREN: Yes, that's correct.

HARRIS DAVILA: Right. And that's why we have some of that language in the bill. Thank you. I appreciate the clarification.

REPRESENTATIVE SLAWSON: You and I worked together with our colleagues in the 87th Session, did we not, to protect innocent life?

GEREN: That's correct. When you carried the bill.

SLAWSON: And we intended at that time to also protect mothers, didn't we?

GEREN: Yes, we did. In fact, that was a major point in your opening comments if I recall.

SLAWSON: Yes. And your bill is designed to clarify that today, correct?

GEREN: It is because of the medical board and the Supreme Court. Excuse me. The Supreme Court, as well as TMA, asked for clarifying rules from the medical board. We didn't get them. Or we got them, and nobody really knew what they said. So that's why we're doing this bill because of the failure of the medical board to come up with reasonable, understandable rules. And I believe that we have that here.

SLAWSON: I agree. I think that you do as well. I know Senator Hughes' heart for this, having worked with him before. I appreciate you taking up that mantle in this session, and I look forward to voting for this bill with you.

REPRESENTATIVE CAIN: I'm not trying to be up here. I've got a really important question, which is this: If this bill is enacted into law, will more or less babies be murdered by abortion?

GEREN: This will not provide an excuse for an abortion.

CAIN: Yes, but will more or less babies die? Is it going to save lives or not?

GEREN: Again, that's up to the reasonable medical judgment of the doctor. I would say yes, probably more babies will die in an effort to save women.

CAIN: More babies could die. Thank you, sir.

GEREN: But I would say that it's not true. I just know that we have women that are leaving the state now to get medical care that is necessary to save their lives.

LOWE: I am one of the most anti-abortion members of this body. I cannot join the Democrats or anyone else in supporting **SB 31**. No doctor has ever been imprisoned solely for performing an abortion to save the mother's life. The Hippocratic Oath and the courts have already provided that protection. This bill does not protect life. It weakens it. Pro-life groups may want a win to keep the fundraising flowing, but this isn't the bill. This bill loosens restrictions on the killing of unborn children. I will never support that. I vote no.

REPRESENTATIVE HARRISON: I'll be brief. Texas is a pro-life state, and we have very strong pro-life laws on our books right now. I think that it is the height of irresponsibility to tinker with these pro-life protections that have already saved countless lives and that we should have the full expectation will continue saving lives in the State of Texas. I respectfully disagree with the bill author. I was very alarmed to hear him say just a few moments ago from this microphone that if this bill passes, "More babies will die." And I also would be remiss if I didn't point out that, the best I could tell, every pro-abortion advocate in this chamber is supporting this bill. So if you want to continue Texas' place as a leader in the pro-life movement, please join me in voting against this bill.

GEREN: Before we get to the final vote, I really want to thank my joint authors. I also want to thank Lisa Kaufman and Steve and Amy Bresnen for their hard work on this. I want to thank Senator Hughes for working through this with me, and I want to thank him for being the senate sponsor of this bill.

REPRESENTATIVE TOTH: Mr. Geren, is there a difference between potential and imminent danger to the mother's life?

GEREN: Mr. Toth, that is going to be up to the physicians that make that decision.

TOTH: But it's in the legislation currently. Right?

GEREN: Yes, it is.

TOTH: Correct. So in the fetal pain bill that we did in 2013, how did you vote on that?

GEREN: I don't remember. I think I voted yes.

TOTH: I think you did. Yes.

GEREN: In fact, I know I did.

TOTH: You did. I'm sorry. So were there exceptions to the mother's life in that bill, like there was in the heartbeat bill?

GEREN: If I recall right, yes, there were, but there was confusion about how to interpret that. Doctors were the ones that were confused.

TOTH: Were there any differences in the exception to a mother's life between fetal pain in 2013 and the heartbeat bill?

GEREN: I don't recall the 2013 bill.

TOTH: There were no differences. So my question is: The courts have ruled there only has to be a potential, correct? Not imminent, but a potential danger to the mother's life in order to stop the pregnancy.

GEREN: Yes. Or bodily function.

TOTH: Correct. So that's already been defined by the courts. So I'm trying to understand what your legislation does.

GEREN: Well, the Supreme Court of Texas asked the medical board to come up with good rules that were understandable by the doctors and by the hospitals. The medical board didn't do that. It becomes a responsibility in my mind for the legislature to come up with that, and I believe that this bill does that.

TOTH: Why is it that there is confusion around the heartbeat bill? If there was no confusion around fetal pain in 2013, why all of a sudden is there confusion around the heartbeat bill in 2025 when the exceptions are all the same? And this is an issue not of imminent—it's not about imminent death. It's not about imminent harm. It's about potential, which is the same as it was in 2013. Why all of a sudden is there all this confusion?

GEREN: Mr. Toth, there's been confusion since that bill—and the confusion even became greater under the heartbeat bill when you put a prison sentence on a doctor for 99 years or losing his or her license. Then they were concerned that if they didn't take it to just the last minute—and women have died because of that.

TOTH: Have any hospitals been sued as a result of it?

GEREN: I'm sorry?

TOTH: Have any hospitals or doctors been sued as a result of the loss of life of any women?

GEREN: Not that I'm aware of, but—

TOTH: Why is that?

GEREN: Let me finish, Mr. Toth.

TOTH: Why is there not?

GEREN: Mr. Toth, will you let me finish? The answer to your last question, that you so rudely interrupted me on, is there has been confusion. Doctors waited until the last minute to perform abortions, and women have died because of that. And that's what the confusion is about. The confusion has existed since 2013. We are trying to fix that so doctors are not afraid to save a woman's life.

TOTH: Can I ask a question?

GEREN: You sure can.

TOTH: Why have there been no lawsuits over that?

GEREN: I'm not aware if there have been lawsuits or not.

REPRESENTATIVE OLIVERSON: Chairman, I appreciate you bringing this bill. You probably aren't aware of this, but I get this question all the time as a physician lawmaker from doctors that I work with. The scenarios that I hear are

truly heartbreaking scenarios, and I'm sure you've probably heard them too. Are you aware that in a lot of circumstances, a mother who is pregnant with an infant who is pre-viable—in other words, if that baby was delivered at that moment in time, there's 100 percent certainty that baby will not survive—begins to exhibit signs and symptoms of a medical condition that will be life-threatening? Have you heard these stories?

GEREN: Yes, I have.

OLIVERSON: Okay. Are you aware that when somebody is in that particular circumstance, that there are doctors that know what the right thing to do is, which is to terminate the pregnancy because the pregnancy is going to end with the death of that child no matter what? The question is whether the mother survives the pregnancy. Have you heard those stories?

GEREN: I have. And if the mother dies, the baby is going to die.

OLIVERSON: One hundred percent of the time, and especially in these circumstances. So the issue that I think that this bill is trying to address is these situations where a pregnancy has not yet reached the level of fetal development where the baby can exist outside of the womb, but because of complications of pregnancy, the mother is no longer able to sustain the pregnancy without losing her own life. Is that the purpose of what you're trying to do here?

GEREN: That's the purpose. Tom, honestly, some of the stories I've heard over the last six to eight months have been heart-wrenching. And if it affected me, think how it affected the mother and the family. These women are not going there to get rid of a baby. They're going there to save their lives. And the doctors are performing the abortion in order to save the woman's life. Once again, if the mother dies, the baby is going to die.

OLIVERSON: Are you aware that a lot of these medical conditions, like hemorrhage and infection, are things where physicians are looking at the law as written, and the issue boils down to the fact that in their medical judgment there is a 100 percent likelihood that ultimately that woman is going to die from the signs and symptoms and the diagnosis of whatever condition is beginning to manifest, but they're not dying yet?

GEREN: I would agree with that.

OLIVERSON: So what you're trying to allow for is, in these circumstances, for a physician to exercise medical judgment to save the woman's life before she is about to die?

GEREN: Yes, sir. And you've taken the Hippocratic Oath.

OLIVERSON: Yes, sir.

GEREN: A doctor has taken that and is looking there and saying, "I don't know what to do. I may go to jail for the rest of my life if I perform this, but if I wait a little bit longer, maybe I can do that." Well, the mother might die in that short period of time.

OLIVERSON: Chairman, I can't tell you how many times I've had that exact conversation with my colleagues. I get really sick and tired of having to respond by saying, "I don't know." And so I thank you for this bill.

GEREN: "I don't know" is not a good answer, and we're trying to fix "I don't know." We're trying to make it a clear decision for the doctor to make. Not for me to make. Not for Mr. Lozano to make. For the doctor to make.

OLIVERSON: And, Chairman, last sort of question. Again, we are not talking about circumstances where the baby could be delivered and could survive even in an ICU on life support. But in any circumstance where it were the case where the doctor could deliver the child and the child could survive, do you believe that that is the direction that they would go?

GEREN: I do believe that, yes.

OLIVERSON: So the only circumstances that we're talking about are circumstances where the pregnancy has not yet reached any known level of viability? In other words, in order for that child not to die, that mother has to remain pregnant beyond the time in which she has left before she will die?

GEREN: That's right, sir.

OLIVERSON: These are the heartbreaking circumstances you're trying to address so that doctors feel like they can actually use their judgment in these heartbreaking scenarios without having to lose two patients.

GEREN: Tom, thank you very much because you explained it much better than I did.

OLIVERSON: It's a pleasure to work with you as always, my friend. Thank you for your bill.

REPRESENTATIVE TINDERHOLT: I know that you've been working closely with the pro-life organizations. I think there might be some confusion, even with me. I want to understand. Every medical emergency has to be life-threatening according to Section 170A.002. You and I both know that every medical emergency has to be life-threatening, correct?

GEREN: Life-threatening or affect the function of a major bodily organ.

TINDERHOLT: The filed version of the bill on the floor had struck that, but the new version, the committee substitute, includes it. That's my understanding when I read the bill.

GEREN: That is correct.

TINDERHOLT: So every emergency must be life-threatening in this version of the bill?

GEREN: That is correct.

TINDERHOLT: I just want to clear something up. Earlier someone had asked a question and said, "Is life-threatening and is a medical emergency considered fertility?" I think the answer is no. I want to make sure that there was no confusion.

GEREN: Fertility is a major bodily function, as the Supreme Court has ruled. Fertility is a major bodily function.

TINDERHOLT: But would it meet the standard of being a medical emergency that is life-threatening? And if you don't know, we can find out.

GEREN: The doctors and hospitals agree that keeping the life-threatening law and conforming—it makes it conform to other statutes, current statutes that are on the books today.

TINDERHOLT: What I'm trying to do here with this question is I want the body to know we want to get to a "yes" on this bill, because I don't think there's one person on the floor today that wants any woman to ever die during the course of being pregnant or during the course of childbirth.

GEREN: I sure hope you're right about that.

TINDERHOLT: I think so. I think there are a lot of people concerned that this could potentially lead to additional abortions that some of us would say are unnecessary and others would say are acceptable. I'm just trying to hash out, before we push the button and vote, will this potentially create more abortions? Or will it protect women from dying during life-threatening medical emergencies and define that? Because I think if we can get to the right spot where everyone understands what we're talking about—and we're talking on the same sheet of music—I think we can get a lot more people to vote yes on it. That's my concern right now because there's the filed version. And I hear a lot of people talking about that version. But there is, sir—is there not a committee substitute that was submitted that does have those changes made to it that was worked through?

GEREN: Life-threatening was put back into the bill.

TINDERHOLT: And that was worked through organizations, pro-life organizations that—

GEREN: Every one of them. And extensively worked because there were changes made in the bill over the last few months by the governor's office, the speaker's office, and the lieutenant governor's office when they have been consulting with all these pro-life organizations, every one of them, as well as the doctors and the hospitals. Because the doctors and the hospitals had to be consulted in this so we could get this right, and we wouldn't be opening up abortion clinics. We would be performing necessary abortions to save the life of the mother.

TINDERHOLT: My pledge to you, when I get off the microphone, is I'm going to call the pro-life organizations while other questions are being asked.

GEREN: Well, some of them are out back. You won't have to call them. They're out there.

TINDERHOLT: I'll walk out and talk to them about the fertility piece because I think that could be an issue with some people voting. I think the goal is to protect women today. And I agree; I think that's your goal, but I think we want to get the right answer. So I'm going to go step outside real quick and let some other folks ask. Thank you for answering my questions.

REPRESENTATIVE LITTLE: Chairman Geren, I apologize. I wasn't in the senate when this passed 31-0, and I wasn't on the committee that considered this bill. I can see that a tension has developed in the room, and I want to give you an opportunity to resolve it for us if you can. The tension is we have a very laudable goal and an important thing to do in protecting women who are pregnant, right?

GEREN: Yes, sir.

LITTLE: And on the other end, we have a concern among our conservatives in the room that this bill will be used as a pretext for elective abortions. And if I can just pose to you the situation, and I think this cuts or distills right to the heart of the issue. I hope it does anyway, and maybe other people in the room are trying to resolve this tension as well. There's language in the bill that addresses substantial impairment of a major bodily function. I think the fear, the collective fear, is that a doctor is going to say, "Well, my patient came in and said she's worried about being able to have her next baby, so rubber stamp, pow, abortion granted." Is that what is going to happen under this bill?

GEREN: I don't believe that it is, Mr. Little. As I said earlier, doctors can be charged with malpractice still under the bill. We're not changing that. We are obviously going to have to use the best medical judgment of the doctors, which I'm not, but we have to leave it up to those people to make that final decision. That's what this bill does. And I don't believe that we would have the support of the groups that we do if they thought this was going to cause a bunch of abortion clinics to open up.

LITTLE: Do you see and understand the concern that people have over that?

GEREN: I do. And I shared that concern. I had that concern. I no longer have it—in the groups and the doctors that I've talked to.

LITTLE: Chairman Geren, if some physicians turn out to perceive this as a license to do exactly that—to use this as a pretext for granting elective abortions—you'll stand up here with me and the other conservatives in this room and prevent that, correct?

GEREN: Absolutely. And if they get the 99 years in jail for it, they deserve it.

TINDERHOLT: Does the new version that we got from the senate require that all medical emergencies be life-threatening, including impairment of major bodily function?

GEREN: Yes.

TINDERHOLT: I just talked with the pro-life organizations. That does not include fertility.

GEREN: Fertility has been ruled a major bodily function by the Texas Supreme Court, Mr. Tinderholt.

TINDERHOLT: Impairments of a major bodily function have to be life-threatening, and I'm being told that fertility is not. They're telling me that is absolutely not true.

GEREN: Fertility is a major bodily function. But under this bill, it has to be life-threatening in the opinion of the doctor that's performing the procedure.

TINDERHOLT: So let's go down that road for a minute because I want to understand it. I'm not a medical professional. I'm hoping that a medical professional can clear this up for us. If there is a fertility issue that is life-threatening, it means that it's a medical emergency. That would be the only instance. It wouldn't just be that if you have this child, you could not be fertile again for the rest of your life.

GEREN: Right. Let me read. Can I read this to you?

TINDERHOLT: Yes, sir.

GEREN: Notwithstanding any other law, a physician who treats a condition described in Subsection 170A.002(b)(2) shall do so in a manner that, in the exercise of reasonable medical judgment, provides the best opportunity for survival of the unborn child.

TINDERHOLT: Okay.

GEREN: So if the doctor can save the child, the doctor's got to save the child. If the doctor cannot save the child in order to save the life of the mother, then the child will not survive.

TINDERHOLT: I think the goal here is exactly what we talked about. I think everyone in the room wants to protect women, but we also want to protect unborn children. I want to be clear to all the members that have questions that fertility issues that are not life-threatening—that are not going to be a medical emergency—are not reasons for an abortion unless it's going to be life-threatening to the mother or the child at that time.

GEREN: That's correct, Mr. Tinderholt. Fertility systems are not just about having babies. It affects your other organs and hormone systems for cancer, autoimmune systems, pituitary glands, and hormones. And it's a long list. Once again, it's going to be up to the best reasonable medical judgment of the doctor in a life-threatening situation. The doctor is going to have to make that decision, not us.

TINDERHOLT: Okay. Thank you for answering my questions and working with the pro-life groups. I think this is going to be an interesting vote.

GEREN: We've worked with pro-life groups who have done their best to get me defeated in election, and I've been happy to do it. So I move passage. Once again, I want to thank all of you members for taking the time to listen to me today. You know I'm not normally on the microphone this long.

SB 31 was passed to third reading by (Record 3163): 129 Yeas, 6 Nays, 10 Present, not voting.

Yeas — Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores;

Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guillen; Harless; Harris; Harris Davila; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Louderback; Lozano; Lujan; Luther; Manuel; Martinez; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Talarico; Tepper; Thompson; Troxclair; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Harrison; Hopper; Lowe; Olcott; Pierson; Schatzline.

Present, not voting — Mr. Speaker(C); Alders; Cain; Holt; Money; Swanson; Tinderholt; Toth; Vasut; Virdell.

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Guerra; Lopez, R.; Martinez Fischer.

STATEMENTS OF VOTE

When Record No. 3163 was taken, I was in the house but away from my desk. I would have voted yes.

Guerra

When Record No. 3163 was taken, I was shown voting yes. I intended to vote no.

Guillen

When Record No. 3163 was taken, I was in the house but away from my desk. I would have voted yes.

Martinez Fischer

When Record No. 3163 was taken, I was shown voting yes. I intended to vote no.

Richardson

REASONS FOR VOTE

Representative Cain submitted the following reason for vote to be printed in the journal:

I have dedicated much of my professional and political life to fighting to end abortion. There is a lot of confusion around this bill as to whether it will save more babies from being murdered. At the time of voting, the clerk's office showed that there were 37 democrat sponsors or co-sponsors compared to just 22 republican sponsors or co-sponsors. This alone made me skeptical of the

impact of this bill. Because I was unable to determine whether or not **SB 31** would lead to an increase or reduction in the killing of the unborn, I voted present, not voting.

Representative Holt submitted the following reason for vote to be printed in the journal:

I voted present, not voting on **SB 31** because I have concerns about the unintended implications of **SB 31**. I intend to seek feedback from my constituents and make a firm vote on third reading.

Representative Leo Wilson submitted the following reason for vote to be printed in the journal:

As a committed pro-life legislator, I have always sought to uphold and defend the sanctity of life at every stage. I originally signed on to **SB 31** in good faith, based on the strong support it received from respected pro-life organizations, including Texas Right to Life, Texas Alliance for Life, and the Human Coalition. However, after today's layout of the bill, I have serious concerns about its current form and whether this legislation is still necessary. While I will remain signed on to the bill at this time out of respect for our life coalition partners, I am reserving judgment and may reconsider my position depending on how the bill is presented on third reading.

Representatives Vasut, Alders, and Swanson submitted the following reason for vote to be printed in the journal:

I believe every human being is made in the image of God and has inherent value and immeasurable worth from the moment of fertilization. Every human life matters: born and unborn, baby and mom. I originally signed on to **SB 31** because it was signed off on by Texas Right to Life and Human Coalition. Based upon the floor debate and floor debate alone, I am currently unsure if the bill is necessary and have questions about some of the bill language. I have decided to vote present, not voting at this time because if I vote yes, that may be misconstrued as a vote to allow for more babies to die, which I oppose. If I vote no, that may be misconstrued as a vote not to protect the life of the mother, which I, of course, want to protect.

SB 33 - RULES SUSPENDED ADDITIONAL SPONSORS AUTHORIZED

Representative King moved to suspend Rule 8, Section 5(d), of the House Rules to designate as joint sponsors and co-sponsors for **SB 33** all joint authors and co-authors for **HB 1806**.

The motion prevailed.

REMARKS ORDERED PRINTED

Representative Dorazio moved to print all remarks on **SB 31**.

The motion prevailed.

LEAVES OF ABSENCE GRANTED

The following members were granted leaves of absence temporarily for today to attend a meeting of the Committee on Land and Resource Management:

Alders on motion of Lambert.

Gates on motion of Lambert.

Hunter on motion of Lambert.

Morgan on motion of Lambert.

Virdell on motion of Lambert.

SB 33 ON SECOND READING

(Noble, Leo Wilson, et al. - House Sponsors)

SB 33, A bill to be entitled An Act relating to certain prohibited transactions and logistical support between a governmental entity and an abortion assistance entity or abortion provider for the procurement of an abortion or related services.

(Alders, Gates, Hunter, Morgan, and Virdell now present)

SB 33 - REMARKS

REPRESENTATIVE NOBLE: **SB 33** is a taxpayer protection bill. Members, three sessions ago, during the 86th Legislature, we passed and signed into law the prohibition of local and state tax dollars from being used to fund abortion providers and their affiliates. The intent of the bill was very clear, as evidenced by the seven and a half hours of debate we had on the house floor. Taxpayers should not have their tax dollars fund an activity that is illegal in Texas. Unfortunately, at least one city in Texas found what they considered to be a loophole in our law, and they've allocated taxpayer dollars to nonprofits specifically to pay for Texas women to travel out of state for the purpose of an abortion. Tax dollars should not facilitate travel to another state for an act that is not allowed here. **SB 33** is a cleanup bill to close a perceived loophole and to make our legislative intent very clear.

REPRESENTATIVE HOWARD: The prohibition in this bill applies even if cities are only providing support to organizations that assist Texans to travel out of state. Is that correct?

NOBLE: The way that the cities passed their grant—they consider it to be grants—the way I understand it was that it was specifically for the purpose of having women go out of state in order to obtain abortions.

HOWARD: They're providing support to the organizations. Is that correct?

NOBLE: That is the purpose of the grant.

HOWARD: It applies if cities are providing support to an organization that helps rape victims leave the state to get an abortion in a state where it's legal, is that correct?

NOBLE: Going to do something that's not allowed in Texas—to use taxpayer dollars to go do it in another state—

HOWARD: Where it is legal?

NOBLE: Again, you're using Texas tax dollars to do something that is not allowed in our state. You're spending Texas tax dollars to do that in another state. That is unacceptable.

HOWARD: So helping rape victims would not be okay? It applies if cities are providing support to an organization that helps women with fatal fetal diagnoses leave the state to get an abortion in a state where it's legal.

NOBLE: I think we cleared up a lot of those questions in the bill we just passed.

HOWARD: But for your bill?

NOBLE: My bill does not conflict with the bill that we just passed. In fact, it does really well with it, I think.

HOWARD: In other words, cities could not provide support to an organization that helps women with fatal fetal diagnoses leave the state to get an abortion in a state where it's legal?

NOBLE: I do not believe that we should be doing that. No.

HOWARD: Does it apply if cities are providing support to an organization that helps incest survivors leave the state?

NOBLE: I don't know if this is part of this bill, but I will tell you that one of my best friends in college was the result of incest. His life is such a valuable and wonderful part of my life and has been for many decades. His life is no less valuable because of his start.

HOWARD: Oh absolutely, I'm not implying that at all.

NOBLE: Well, you sound like he was a mistake that should have been taken care of, and I absolutely disagree because of that.

HOWARD: I'm sorry. I will clarify to you because that is not my intent. What my belief is is that it's up to a person and their individual circumstances to make that decision.

NOBLE: Again, it is not the job of our state tax dollars to make that—provide for that.

HOWARD: Does the prohibition in your bill apply to logistical support? Not just to money? Does it apply to childcare, travel, transportation, lodging, food, counseling, and any other service?

NOBLE: It does. In fact, it does everything that's included in that tourism level of providing for someone an abortion in another state.

HOWARD: What does "any other service mean"—besides those I just listed?

NOBLE: Those are the ones that are specifically listed in the bill.

HOWARD: What's "any other service"? That's in the bill too.

NOBLE: Well, I guess that we're just trying to make sure that we cover any—another perceived loophole that someone might come up with.

HOWARD: Does the prohibition apply to food pantries?

NOBLE: You know, you may not know this. I actually ran a food pantry for 17 years as a volunteer. That is something that is very near and dear to my heart. Providing for someone—for their needs for today and tomorrow—has nothing to do with this bill.

HOWARD: But I think we just said that it prohibits logistical support, such as food.

NOBLE: Well, that is food specifically for the travel out of state for the purpose of an abortion.

HOWARD: And if a food pantry did not know they were providing food to a person that was traveling out of state to get an abortion, would it apply—

NOBLE: I think that's really grasping for some interesting legal arguments, but I never asked someone when they came to my food pantry what they were needing that for.

HOWARD: Yet in this bill, is there not a private cause of action that anybody could determine that it was the case and could still sue the food pantry?

NOBLE: The cause of action is against a city that is specifically doing these things for the purpose of an abortion.

HOWARD: The city might be supporting the food pantry.

NOBLE: Again, a food pantry is a different animal than logistical support for an abortion.

HOWARD: Does this apply to pastoral counseling?

NOBLE: I do not understand where you're going with that.

HOWARD: If support is being provided to religious organizations from a city, and the counseling—

NOBLE: For the purpose of going out of state? I don't understand how a pastoral counselor would tell someone to go out of state for an abortion.

HOWARD: There are multiple viewpoints among clergy as much as there are among the body we have here. There are clergy who would support their—

NOBLE: Again, I don't believe that clergy talking to someone within their body of believers would be part of logistical support for someone traveling out of the state for an abortion.

HOWARD: That's what we're trying to clear up here, so thank you for that.

NOBLE: Again, that grant money was set up very differently than the way you're describing this for the cities that we're talking about.

HOWARD: So you wouldn't be able to assert a defense for religious freedom, right? If you were in a religious organization that receives support from the city, and you offered counseling and assistance to one of the people that attend your religious organization—

NOBLE: Are you talking about getting in the car and driving them to another state and using gas money? I'm a little confused about where clergy might be involved in that.

HOWARD: I think clergy could be involved in all kinds of things—in all kinds of assistance.

NOBLE: Well, if they are indeed getting in a car with them, driving them to another state, and using taxpayer funds—again, back to the taxpayer funds for that purpose—then that would be included.

HOWARD: Which entities would this bill actually affect? Does it refer to affiliates?

NOBLE: Any entity that would be—in fact, it's really interesting that you would ask because the two cities that have done this have had a number of entities ask them for that grant money. So I mean, that's not an exhaustive list.

HOWARD: Okay, but does it apply to affiliates of abortion providers?

NOBLE: The former bill did and probably would on this as well. But again, this is specifically the logistical support to travel out of state for the purpose of an abortion.

HOWARD: Does it have anything to do with beyond procuring an abortion? Is it strictly for procuring an abortion?

NOBLE: I'm not advised because I'm not sure what you mean by that question.

SB 33 - POINT OF ORDER

Representative Howard raised a point of order against further consideration of **SB 33** under Rule 8, Section 1(a)(1), of the House Rules on the grounds that the caption fails to give reasonable notice of the subject of the proposed measure.

HOUSE AT EASE

At 2:35 p.m., the chair announced that the house would stand at ease.

The chair called the house to order at 3:09 p.m.

SB 33 - (consideration continued)

SB 33 - POINT OF ORDER DISPOSITION

The point of order was withdrawn.

COMMITTEE GRANTED PERMISSION TO MEET

Representative Howard requested permission for the Committee on Higher Education to meet while the house is in session, at 3:30 p.m. today, in 1W.14, to consider pending, referred, and committee business.

Permission to meet was granted.

COMMITTEE MEETING ANNOUNCEMENTS

The following committee meetings were announced:

Higher Education, 3:30 p.m. today, 1W.14, for a formal meeting, to consider pending, referred, and committee business.

Intergovernmental Affairs, upon final adjournment today, 1W.14, for a formal meeting, to consider pending, referred, and committee business.

SB 33 - (consideration continued)

Amendment No. 1

Representative Noble offered the following amendment to **SB 33**:

Amend **SB 33** (house committee report) by striking page 3, lines 18 through 20, and substituting the following:

IMMUNITY. (a) The attorney general may bring an action against any party, other than the woman who may procure or procures an abortion, to the actual or proposed

AMENDMENT NO. 1 - REMARKS

NOBLE: I am pleased to bring this amendment. This will clarify who may bring the action when this law is violated.

Amendment No. 1 was adopted.

SB 33 - REMARKS

NOBLE: We've spent a great deal of time as a legislature trying to figure out ways to lower property taxes. The clarity that this bill provides will further help local taxpayers.

REPRESENTATIVE WU: In Section 4, page 4 of your bill, starting in Subsection (c), your legislation states that a defendant in this case—in any of these causes of action—a defendant may not use Rule 91a of the Texas Rules of Civil Procedure. Are you aware of what that rule does?

NOBLE: I'm not advised.

WU: You do know that the rule in the Texas Rules of Civil Procedure is called the "dismissal of baseless causes of action," correct?

NOBLE: I'm not advised.

WU: Okay. Sorry, you're not sure, or you don't know?

NOBLE: I'm not looking at that part of the code.

WU: Rule 91a says that the court may not award attorney costs or attorney fees under Rule 91a. Rule 91a says that if somebody files a frivolous lawsuit—a baseless lawsuit—that means that there is no rhyme or reason that they should be filing it, and the AG, or the person that is allowed to do this, can just—

NOBLE: You do realize that the amendment we just adopted narrowed it down to just the AG? You do understand that, correct?

WU: Correct. You understand that the AG in the statute—in the existing statute, the AG has the ability to recover costs. Correct?

NOBLE: I am not advised in that statute. I'm not reading that statute as you are.

WU: No, not Texas Rule of Civil Procedure, literally the statute that you are amending right now—Section 2273.004 of the Government Code.

NOBLE: Yes. Our goal, of course, is not to have any action. Our goal is to have cities not doing this, and therefore there is no need for a cause of action.

WU: Yes, of course. In the existing law—the existing law of that statute that we have already put in place many sessions ago—the existing law provides the attorney general with the ability to recover court costs. You're aware of that?

NOBLE: Correct.

WU: But on the flip side, you are now purposefully denying the city the ability to recover court costs for a frivolous suit—even for a frivolous suit.

NOBLE: I would be very sad if we thought that our attorney general was bringing a frivolous suit. I certainly—that is certainly not the will of this legislature, and I will again say this: The goal is to keep cities from using taxpayer funds to transport women out of state for something that is not allowed in Texas.

WU: I understand that we wish and hope for many things, but part of the point of rules is that we establish guidelines that say if something happens, there is a remedy for it—there is a protection for it. But you're specifically taking that protection out, correct?

NOBLE: I am keeping my bill as it came from the senator, yes.

WU: Okay. And in Subsection (c-2), you specifically strike out Chapters 27 and 110 of the Civil Practices and Remedies Code. Are you aware of what those chapters do?

NOBLE: I do not have those in front of me.

WU: Do you know that Chapter 27 of the Civil Practice and Remedies Code is the Texas anti-SLAPP statute?

NOBLE: Again, I do not have that part of the code in front of me.

WU: Okay, well let me help you out just a tiny bit. In Chapter 27—the stated purpose of Chapter 27 is—it says in statute 27.002—"the purpose of this chapter is to encourage and safeguard the constitutional rights of persons to petition, speak freely, associate freely, and otherwise participate in government to the maximum extent permitted by law and, at the same time, protect the rights of a person to file meritorious lawsuits for demonstrable injury." This law, if passed, would prohibit the cities from this purpose.

NOBLE: Again, my goal is to have cities comply with the law. Absolutely. They must comply with this law. That is our goal, that is the goal of our legislature every time we pass a law, and yes, that is the goal of this law.

WU: But you're not going to—you're not arguing with me that it doesn't restrict cities from the application of this chapter, right?

NOBLE: I am going to stay within the four corners of this bill and stick with the wording that was sent to me by Senator Campbell.

WU: The wording of this bill is that cities, if they're sued, may not use protections of personal freedom and public freedom as a defense.

NOBLE: Our goal, once again, is to never have a city be sued because they are so in compliance with this law and other laws of this state.

WU: Are you familiar with Chapter 110 of the Texas Civil Practices and Remedies Code?

NOBLE: Again, I do not have that in front of me.

WU: Do you know that Chapter 110 is called the Religious Freedom Protection Act?

NOBLE: I will take your word for it.

WU: Okay. And you would also deny a city—a defendant—from using that act as protection?

NOBLE: I cannot fathom a time and place where a city would need to use a religious freedom excuse to send women out of state for the purpose of an abortion. I cannot fathom that in Texas.

WU: Well, that's why we have robust debates on the floor because I might bring to you the idea that other people may not think the same way and have other perspectives. Thank you very much for your answers.

(Vasut in the chair)

REMARKS ORDERED PRINTED

Representative Wu moved to print all remarks on **SB 33**.

The motion prevailed.

REPRESENTATIVE GÁMEZ: Representative Noble, understanding that your bill expressly strips these entities against the defense—anti-SLAPP and religious protections—what defenses are available to organizations accused of violating this law?

NOBLE: Again, we're not talking about organizations. We're talking specifically of cities that violate the law as we pass it. Our goal always in this room is to have our laws followed when we pass them, not for a city to just find another loophole—or another perceived loophole. That's why this one is so clear. That's why we felt like we needed to make the penalty so clear, because we don't want them just finding another perceived loophole.

GÁMEZ: And I do agree with you—the penalties are clear. But are any defenses enumerated in your bill for cities?

NOBLE: I am not advised. I have not looked at that entire code.

GÁMEZ: There are none. What specifically is the burden of proof now of the attorney general to prove once he or she has lodged an accusation like this against a city?

NOBLE: To my understanding, it's the preponderance of the evidence.

GÁMEZ: The preponderance of the evidence of? Again, what intent? Your understanding of the bill—

NOBLE: You know, I am not an attorney, nor do I play one on TV. I am also not a judge. I'm assuming your questions would be better served in a courtroom should this ever need to come to a courtroom, but I don't believe it will be because—

GÁMEZ: I have no doubt that it will be litigated immediately.

NOBLE: I believe that it's so clear that the cities will comply and that your arguments will be unneeded and unnecessary.

GÁMEZ: Are you aware that your bill does not enumerate any specific mens rea or intent on behalf of a city to allegedly be in violation of this law?

NOBLE: That would be between them, the court, and the attorney general.

GÁMEZ: So again, what is your—in your opinion, based on the way you've written this—or you've agreed to carry the language in this bill—what specifically does the attorney general have to prove to show that a city has violated this bill? Would you like someone else to answer for you or—

NOBLE: No. I'm not an attorney, so I'm just making sure I'm not messing up on this. I believe that any normal American can read this bill, know clearly the intent of it, and be able to avoid violation of it very, very easily. Of course, that is our goal.

GÁMEZ: You'd agree with me that your bill does not enumerate any intent or mens rea whatsoever to have been found guilty?

NOBLE: I am not going to agree with you on that. My bill is very clearly what it is, and I want—again, the goal is to have cities not use taxpayer funds in order to transport women out of state to do a procedure that is not allowed in Texas.

GÁMEZ: So your goal is specifically—

NOBLE: By the way, this is civil. You do realize that? This is a civil remedy.

GÁMEZ: All right. I thought you weren't an attorney. Did you just decide to figure that out?

NOBLE: I'm not; somebody just told me that. Aren't they cool? They're so helpful, and I love these guys.

GÁMEZ: An attorney did tell you that, okay. Again, understanding that—so we are creating a new separate cause of action for the attorney general to enforce, is that correct? I know you're not an attorney.

NOBLE: As written.

GÁMEZ: And it was my understanding—I guess, earlier in our discussions even you and I have had, and a number of your colleagues have had—that the Republican Party in general is highly adverse to creating new causes of action. Is there any reason you've made an exception for that in this case?

NOBLE: Yes, because we don't want to be litigious. But when a city decides to so very clearly circumvent what was the—you weren't here yet—the very, very clear intent of a law that we passed in the 86th Legislature, it's time to get a little more stern. That's what we have done.

GÁMEZ: In protecting women and in protecting taxpayers, right?

NOBLE: Protecting taxpayers' rights.

GÁMEZ: Are you aware that earlier—I guess, even this month—there was proposed legislation on this floor to create a cause of action for a woman who was denied the right to breastfeed—

NOBLE: I'm sorry, are you talking about a different bill than this one?

GÁMEZ: I'm talking about cause of action in this bill.

NOBLE: No, no.

GÁMEZ: And in general, you and multiple colleagues voted against that, right?

NOBLE: I am not going to discuss other bills while we're talking about this one.

SB 33, as amended, was passed to third reading by (Record 3164): 89 Yeas, 57 Nays, 2 Present, not voting.

Yeas — Alders; Ashby; Barry; Bell, C.; Bell, K.; Bonnen; Buckley; Bumgarner; Button; Cain; Capriglione; Cook; Craddick; Cunningham; Curry; Darby; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gates; Gerdes; Geren; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hickland; Holt; Hopper; Hull; Hunter; Isaac; Kerwin; King; Kitzman; LaHood; Lambert; Landgraf; Leach; Leo Wilson; Little; Lopez, J.; Louderback; Lowe; Lozano; Lujan; Luther; Martinez; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morgan; Muñoz; Noble; Olcott; Oliverson; Orr; Patterson; Paul; Phelan; Pierson; Raymond; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; VanDeaver; Villalobos; Virdell; Wharton; Wilson.

Nays — Allen; Anchía; Bernal; Bhojani; Bowers; Bryant; Bucy; Campos; Canales; Cole; Collier; Cortez; Davis, A.; Davis, Y.; Dutton; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; González, J.; González, M.; Goodwin; Guerra; Hernandez; Hinojosa; Howard; Johnson; Jones, J.; Lalani; Longoria; Lopez, R.; Manuel; Martinez Fischer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Ordaz; Perez, M.; Perez, V.; Plesa; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Talarico; Thompson; Turner; Vo; Walle; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

STATEMENT OF VOTE

When Record No. 3164 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

GENERAL STATE CALENDAR SENATE BILLS SECOND READING

The following bills were laid before the house and read second time:

SB 20 ON SECOND READING (Capriglione - House Sponsor)

SB 20, A bill to be entitled An Act relating to the creation of the criminal offense of possession or promotion of obscene visual material appearing to depict a child.

Amendment No. 1

Representative Capriglione offered the following amendment to **SB 20**:

Amend **SB 20** (house committee report) as follows:

(1) On page 1, line 7, strike "POSSESSION OR PROMOTION OF OBSCENE" and substitute "POSSESSION, PROMOTION, OR PRODUCTION OF CERTAIN".

(2) On page 1, line 13, between "person" and "knowingly", insert the following:

⋮

(1) (1)
(3) On page 1, line 20, between "software" and the underlined period, insert the following:

; or

(2) uses an image of an actual child younger than 18 years of age at the time the image was made with the intent to train an artificial intelligence model to produce visual material constituting child pornography under Section 43.26

Amendment No. 1 was adopted.

SB 20, as amended, was passed to third reading by (Record 3165): 142 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer;

McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Anchía; Davis, A.; Hefner; Virdell.

STATEMENTS OF VOTE

When Record No. 3165 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

When Record No. 3165 was taken, I was in the house but away from my desk. I would have voted yes.

Virdell

SB 217 ON SECOND READING (Dutton - House Sponsor)

SB 217, A bill to be entitled An Act relating to establishing the Historic Texas Freedmen's Cemetery Designation Program; authorizing a fee.

SB 217 was passed to third reading by (Record 3166): 142 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; García, J.; García, L.; García Hernandez; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Anchía; Davis, A.; Gates; Virdell.

STATEMENTS OF VOTE

When Record No. 3166 was taken, I was in the house but away from my desk. I would have voted yes.

Gates

When Record No. 3166 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

SB 264 ON SECOND READING (Button - House Sponsor)

SB 264, A bill to be entitled An Act relating to discontinuing group self-insurance coverage and dissolving the Texas self-insurance group guaranty fund and trust fund under the Texas Workers' Compensation Act.

SB 264 was passed to third reading by (Record 3167): 143 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Anchía; Bonnen; Davis, A.

STATEMENT OF VOTE

When Record No. 3167 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

**SB 269 ON SECOND READING
(Frank - House Sponsor)**

SB 269, A bill to be entitled An Act relating to required reports of certain vaccine-related or drug-related adverse events.

SB 269 - STATEMENT OF LEGISLATIVE INTENT

REPRESENTATIVE FRANK: Despite having the word "vaccine" in the caption, this is a pretty noncontroversial bill that came out of the senate 31-0 and Public Health 11-1. What it does is it's a medical reporting bill that helps ensure that Texas doctors are reporting serious adverse reactions related to experimental, investigational, or emergency-use vaccines or drugs. Either one—there's actually both. What the bill does is—it really is a reporting bill. It requires physicians to report any serious adverse reactions. Those are in the bill. Where they report them—there's two federal ways to report them. One is the VERS—Vaccine Event Reporting System. The second is MedWatch for the drugs. Again, those are already set up in federal statute. This is just trying to make sure that we have that information. Everybody wants to make sure this is safe. When do they have to do it? Really, they only have to do it if they diagnose a patient with it. If they know a patient has received a vaccination and the patient suffers serious adverse reactions. Those are literally laid out in the bill, but they are very serious reactions. I could walk through those.

I do have a perfecting amendment that I'd like to get on there that TMA asked me to do. It's a very simple amendment. You can ask Representative Zwiener. It literally flips two words. It's something TMA, who looked at the bill, would like. If I could put that on and then answer questions, that would be great.

REPRESENTATIVE WU: Can I just ask you some legislative intent questions?

FRANK: Absolutely.

WU: Could you help walk me through the process of this? I understand that your bill, right now, is very limited in scope.

FRANK: Yes.

WU: It is only talking about things resulting in death, life-threatening conditions, and things that have resulted in permanent disabilities—

FRANK: Inpatient hospitalization—

WU: Severe stuff.

FRANK: Yes, severe stuff.

WU: Not, like, they got a rash.

FRANK: Not a tremendous headache. Really the most open one, if you will, is "results in a medically important condition that, based on the physician's reasonable medical judgment, may require medical or surgical intervention to prevent" one of those more serious things—death or what have you.

WU: Is it your clear intent to have a very limited scope for when this applies?

FRANK: Yes, to follow the bill. Yes.

WU: The bill itself is very limited?

FRANK: The bill is limited to what it's limited by. It's limited to—

WU: Severe cases?

FRANK: Yes, severe cases.

WU: I think we're just trying to get to the same point.

FRANK: It is both drugs and vaccines, though. To that degree, they are two different things. It is experimental drugs and approved vaccines.

WU: Yes, in these limited situations. And the drug or vaccine has to be experimental, correct?

FRANK: Correct.

WU: It has to be something that the FDA has designated as an emergency use or an experimental use.

FRANK: Correct.

WU: And that is black-letter in your bill?

FRANK: Correct.

WU: Okay. If a physician encounters a situation where someone was given an experimental drug and, let's say, God forbid, they pass away—does the physician have to know, or state that they believe, that the patient died from the application of the experimental medicine, or merely that the person took the experimental medicine and then subsequently, at some point, passed away?

FRANK: The latter. There's no way for them to know cause and effect.

WU: Correct.

FRANK: Again, these two federal registries, if you will—I may not be calling them the right thing—the two places you're supposed to do this are voluntary. What we are doing in statute is saying this is a responsibility of the doctors. The state is not going to be overseeing this; the medical board is. There's no cause of action or anything. The medical board is going to be the one responsible for that.

WU: The point I want to get to is: You're not asking doctors to make judgment calls about whether the drug and/or vaccine is responsible for the injuries or the death, but merely that it coincided?

FRANK: Right. Yes. We are wanting data.

REMARKS ORDERED PRINTED

Representative Wu moved to print all remarks on **SB 269**.

The motion prevailed.

Amendment No. 1

Representative Frank offered the following amendment to **SB 269**:

Amend **SB 269** (house committee report) by striking "approved or authorized" and substituting "authorized or approved" in each of the following places the phrase appears:

- (1) page 2, line 1; and
- (2) page 3, line 23.

AMENDMENT NO. 1 - REMARKS

FRANK: This truly is a perfecting amendment. It was requested by TMA. It literally switches two words. It is, obviously, acceptable to the author.

Amendment No. 1 was adopted.

Amendment No. 2

Representative Tinderholt offered the following amendment to **SB 269**:

Amend **SB 269** (house committee report) by striking page 1, line 24, through page 2, line 2, and substituting the following:

- (1) experimental or investigational;
- (2) approved or authorized for emergency use by the United States Food and Drug Administration; or
- (3) recommended for use by the Advisory Committee on Immunization Practices of the federal Centers for Disease Control and Prevention.

AMENDMENT NO. 2 - REMARKS

REPRESENTATIVE TINDERHOLT: This is pretty simple. It adds all vaccines to it. The reason that I want to do that is because when my son got the MMR vaccine, he was nonverbal for about 10 days after and then got better. I really want both sides to consider this because it creates data. It allows us to have data on all vaccines and make informed decisions. One side says there are no vaccine injuries. The other side says there is. I just want the data collected so we can make quality decisions for our children and people across the state.

Amendment No. 2 - Point of Order

Representative Wu raised a point of order against further consideration of Amendment No. 2 under Rule 11, Section 2, of the House Rules on the grounds that the amendment is not germane. The point of order was withdrawn.

Amendment No. 2 was withdrawn.

SB 269 - REMARKS

FRANK: If we want to follow the science, we actually need to have the data. This allows us to get more data about these.

SB 269, as amended, was passed to third reading by (Record 3168): 90 Yeas, 50 Nays, 3 Present, not voting.

Yeas — Alders; Ashby; Barry; Bell, C.; Bell, K.; Bonnen; Buckley; Bumgarner; Button; Cain; Capriglione; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gerdes; Geren; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hickland; Holt; Hopper; Hull; Hunter; Isaac; Kerwin; King; LaHood; Lambert; Landgraf; Leach; Leo Wilson; Little; Lopez, J.; Louderback; Lowe; Lozano; Lujan; Luther; Martinez; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morales, E.; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Phelan; Pierson; Raymond; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; VanDeaver; Villalobos; Virdell; Wharton; Wilson.

Nays — Allen; Anchía; Bhojani; Bowers; Bryant; Bucy; Campos; Canales; Cole; Collier; Davis, A.; Davis, Y.; Dutton; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; González, J.; González, M.; Goodwin; Guerra; Hernandez; Hinojosa; Howard; Johnson; Jones, J.; Lalani; Longoria; Manuel; Meza; Moody; Morales, C.; Perez, M.; Perez, V.; Plesa; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Talarico; Thompson; Turner; Vo; Walle; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Morales Shaw; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Bernal; Gates; Kitzman; Lopez, R.; Martinez Fischer.

STATEMENTS OF VOTE

When Record No. 3168 was taken, I was in the house but away from my desk. I would have voted yes.

Gates

When Record No. 3168 was taken, I was in the house but away from my desk. I would have voted yes.

Kitzman

When Record No. 3168 was taken, I was in the house but away from my desk. I would have voted no.

Martinez Fischer

When Record No. 3168 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

CSSB 650 ON SECOND READING
(Bowers - House Sponsor)

CSSB 650, A bill to be entitled An Act relating to requiring the use of electronically readable information to verify a purchaser's age in the retail sale of alcoholic beverages.

Amendment No. 1

Representative Bowers offered the following amendment to **CSSB 650**:

Amend **CSSB 650** (house committee report) on page 1, line 15, between "beverage" and "for", by inserting "at a permitted or licensed premises".

Amendment No. 1 was adopted.

CSSB 650, as amended, was passed to third reading by (Record 3169): 99 Yeas, 39 Nays, 2 Present, not voting.

Yeas — Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bhojani; Bonnen; Bowers; Bryant; Bucy; Button; Campos; Canales; Capriglione; Cole; Collier; Cortez; Craddick; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; García, J.; García, L.; García Hernandez; Gates; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Hefner; Hernandez; Hickland; Hinojosa; Howard; Hunter; Johnson; Jones, J.; Kerwin; King; Lalani; Lambert; Landgraf; Leach; Longoria; Lopez, J.; Louderback; Lujan; Manuel; Martinez; McQueeney; Metcalf; Meyer; Meza; Money; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Ordaz; Orr; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Swanson; Talarico; Thompson; Turner; VanDeaver; Villalobos; Walle; Ward Johnson; Wharton; Wilson; Wu; Wiener.

Nays — Alders; Bumgarner; Cain; Cook; Cunningham; Gerdes; Harris Davila; Harrison; Hayes; Holt; Hopper; Hull; Isaac; LaHood; Leo Wilson; Little; Lowe; Lozano; Luther; McLaughlin; Morgan; Olcott; Oliverson; Patterson; Paul; Pierson; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Tinderholt; Toth; Troxclair; Virdell.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Bernal; Buckley; Kitzman; Lopez, R.; Martinez Fischer; Moody; Tepper; Vo.

STATEMENTS OF VOTE

When Record No. 3169 was taken, I was in the house but away from my desk. I would have voted yes.

Kitzman

When Record No. 3169 was taken, I was in the house but away from my desk. I would have voted yes.

Martinez Fischer

When Record No. 3169 was taken, I was shown voting yes. I intended to vote no.

Metcalf

When Record No. 3169 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote no.

Vasut

BILLS AND RESOLUTIONS SIGNED BY THE SPEAKER

Notice was given at this time that the speaker had signed bills and resolutions in the presence of the house (see the addendum to the daily journal, Signed by the Speaker, Senate List No. 23).

CSSB 681 ON SECOND READING (Paul, et al. - House Sponsors)

CSSB 681, A bill to be entitled An Act relating to the term and renewal of an engineering or land surveying license or registration.

CSSB 681 was passed to third reading by (Record 3170): 140 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, C.; Bell, K.; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Meyer; Meza; Money; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Villalobos; Virdell; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Ashby; Bernal; Johnson; Metcalf; Moody; Vo.

STATEMENTS OF VOTE

When Record No. 3170 was taken, I was in the house but away from my desk. I would have voted yes.

Metcalfe

When Record No. 3170 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

CSSB 528 ON SECOND READING (Harris Davila - House Sponsor)

CSSB 528, A bill to be entitled An Act relating to inpatient competency restoration services.

CSSB 528 was passed to third reading by (Record 3171): 142 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, Y.; Dean; DeAyala; Dorazio; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalfe; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Villalobos; Virdell; Walle; Ward Johnson; Wharton; Wilson; Wu; Wiener.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Bernal; Davis, A.; Dutton; Vo.

STATEMENT OF VOTE

When Record No. 3171 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

SB 502 ON SECOND READING
(Orr and Manuel - House Sponsors)

SB 502, A bill to be entitled An Act relating to peace officers commissioned by the Health and Human Services Commission's office of inspector general.

SB 502 was passed to third reading by (Record 3172): 140 Yeas, 3 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, Y.; Dean; DeAyala; Dorazio; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Harris Davila; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Troxclair; Turner; VanDeaver; Villalobos; Virdell; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Harrison; Toth; Vo.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Davis, A.; Dutton; Luther.

STATEMENTS OF VOTE

When Record No. 3172 was taken, I was shown voting yes. I intended to vote no.

J. Jones

When Record No. 3172 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

SB 740 ON SECOND READING
(Spiller - House Sponsor)

SB 740, A bill to be entitled An Act relating to certain proceedings by the Public Utility Commission of Texas regarding water or sewer service.

Amendment No. 1

Representative Spiller offered the following amendment to **SB 740**:

Amend **SB 740** (house committee report) by striking page 6, line 25, through page 7, line 8, and substituting the following:

(g) Notwithstanding Section 64.021, Civil Practice and Remedies Code, a receiver appointed under this section may be a person, a municipally owned utility, a county, a water supply or sewer service corporation, a public utility agency, or a district or authority created under Section 52, Article III, or Section 59, Article XVI, Texas Constitution, and may seek approval from the utility commission and the commission to acquire the water or sewer utility's facilities and transfer the utility's certificate of convenience and necessity. The receiver must apply in accordance with Subchapter H.

Amendment No. 1 was adopted.

Amendment No. 2

Representative Tepper offered the following amendment to **SB 740**:

Amend **SB 740** (house committee report) by adding the following appropriately numbered SECTIONS to the bill and renumbering subsequent SECTIONS of the bill accordingly:

SECTION _____. Sections 12.013(b) and (d), Water Code, are amended to read as follows:

(b) In this section, "political subdivision" means municipalities ~~[incorporated cities, towns or villages]~~, counties, river authorities, water districts, and other special purpose districts.

(d) The utility commission's jurisdiction under this section relating to a municipality ~~[incorporated cities, towns, or villages]~~ shall be limited to water furnished by the municipality ~~[such city, town, or village]~~ to another political subdivision, other than another municipality, on a wholesale basis.

SECTION _____. Section 13.043, Water Code, is amended by adding Subsection (f-1) and amending Subsection (j) to read as follows:

(f-1) Subsection (f) does not apply to a decision of a municipality regarding wholesale water or sewer service provided to another municipality.

(j) In an appeal under this section, the utility commission shall ensure that every appealed rate is just and reasonable. Rates shall not be unreasonably preferential, prejudicial, or discriminatory but shall be sufficient, equitable, and consistent in application to each class of customers. The utility commission shall use a methodology that preserves the financial integrity of the retail public utility. ~~[For agreements between municipalities the utility commission shall consider the terms of any wholesale water or sewer service agreement in an appellate rate proceeding.]~~

Amendment No. 2 was adopted.

SB 740, as amended, was passed to third reading by (Record 3173): 142 Yeas, 0 Nays, 3 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales Shaw; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smith; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Vasut(C); Virdell.

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Dutton; Morales, E.; Orr.

STATEMENT OF VOTE

When Record No. 3173 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

SB 916 ON SECOND READING (Spiller - House Sponsor)

SB 916, A bill to be entitled An Act relating to consumer protections against certain medical and health care billing by emergency medical services providers.

SB 916 was passed to third reading by (Record 3174): 142 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan;

Muñoz; Noble; Olcott; Oliverson; Ordaz; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Dutton; Geren; Harris; Orr.

STATEMENT OF VOTE

When Record No. 3174 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

SB 995 ON SECOND READING (Paul - House Sponsor)

SB 995, A bill to be entitled An Act relating to the approval of a surety bond for a contract authorizing an oversize or overweight vehicle to cross a road or highway.

SB 995 was passed to third reading by (Record 3175): 96 Yeas, 39 Nays, 2 Present, not voting.

Yeas — Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bowers; Bryant; Bucy; Button; Campos; Canales; Cole; Collier; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Dean; DeAyala; Dyson; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Hayes; Hernandez; Hinojosa; Howard; Hunter; Isaac; Johnson; Jones, J.; King; Kitzman; Lambert; Landgraf; Longoria; Lopez, J.; Lopez, R.; Lujan; Manuel; Martinez; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Ordaz; Paul; Perez, M.; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rosenthal; Schofield; Shofner; Simmons; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Alders; Bonnen; Bumgarner; Cain; Capriglione; Cook; Dorazio; Fairly; Harris Davila; Harrison; Hefner; Hickland; Holt; Hopper; Hull; Kerwin; LaHood; Leach; Leo Wilson; Little; Louderback; Lowe; Lozano; McLaughlin; McQueeney; Metcalf; Money; Morgan; Olcott; Oliverson; Patterson; Pierson; Richardson; Schatzline; Schoolcraft; Slawson; Tinderholt; Toth; Troxclair.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Buckley; Davis, Y.; Dutton; Geren; Lalani; Luther; Martinez Fischer; Orr; Rose; Shaheen; Virdell.

STATEMENTS OF VOTE

When Record No. 3175 was taken, I was shown voting no. I intended to vote yes.

Harris Davila

When Record No. 3175 was taken, I was in the house but away from my desk. I would have voted yes.

Martinez Fischer

When Record No. 3175 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote no.

Vasut

**SB 10 - RULES SUSPENDED
ADDITIONAL SPONSORS AUTHORIZED**

Representative Buckley moved to suspend Rule 8, Section 5(d), of the House Rules to designate as joint sponsors and co-sponsors for **SB 10** all joint authors and co-authors for **HB 2696**.

The motion prevailed.

COMMITTEE GRANTED PERMISSION TO MEET

Representative Landgraf requested permission for the Committee on Environmental Regulation to meet while the house is in session, at 4:30 p.m. today, in 3W.15, to consider pending, referred, and committee business.

Permission to meet was granted.

COMMITTEE MEETING ANNOUNCEMENT

The following committee meeting was announced:

Environmental Regulation, 4:30 p.m. today, 3W.15, for a formal meeting, to consider pending, referred, and committee business.

SB 10 ON SECOND READING

(Noble, Buckley, Leach, Spiller, Raymond, et al. - House Sponsors)

SB 10, A bill to be entitled An Act relating to the display of the Ten Commandments in public school classrooms.

(Harris in the chair)

SB 10 - POINT OF ORDER

Representative Talarico raised a point of order against further consideration of **SB 10** under Rule 4, Section 18(b), of the House Rules on the grounds that the witness list is inaccurate.

(Speaker in the chair)

The point of order was withdrawn.

SB 10 - RECOMMITTED

Representative Noble moved to recommit **SB 10** to the Committee on Public Education.

The motion prevailed.

POSTPONED BUSINESS

The following bills were laid before the house as postponed business:

**CSSB 3 ON SECOND READING
(King - House Sponsor)**

CSSB 3, A bill to be entitled An Act relating to the regulation of products derived from hemp, including consumable hemp products and hemp beverages and the hemp-derived cannabinoids contained in those products; requiring occupational licenses and permits; imposing fees; creating criminal offenses; authorizing civil penalties; imposing taxes.

CSSB 3 was read second time on May 20, postponed until 3 p.m. May 20, postponed until 6 p.m. May 20, and was again postponed until 4 p.m. today.

Representative Geren moved to postpone consideration of **CSSB 3** until 6 p.m. today.

The motion prevailed.

**SB 646 ON SECOND READING
(A. Davis - House Sponsor)**

SB 646, A bill to be entitled An Act relating to repayment of certain mental health professional education loans.

SB 646 was read second time on May 20, postponed until 3:30 p.m. May 20, postponed until 5 p.m. May 20, and was again postponed until 4:15 p.m. today.

Representative A. Davis moved to postpone consideration of **SB 646** until 2 p.m. tomorrow.

The motion prevailed.

(Vasut in the chair)

**GENERAL STATE CALENDAR
(consideration continued)****SB 2581 ON SECOND READING
(Geren - House Sponsor)**

SB 2581, A bill to be entitled An Act relating to the repeal of a provision governing the operation of jail commissaries in certain counties.

SB 2581 was passed to third reading by (Record 3176): 128 Yeas, 13 Nays, 3 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Bumgarner; Button; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby;

Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; García, L.; García Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Harris Davila; Harrison; Hefner; Hernandez; Hickland; Hinojosa; Holt; Howard; Hull; Hunter; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lozano; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Money; Moody; Morales, E.; Morgan; Muñoz; Noble; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Romero; Rose; Rosenthal; Schatzline; Shaheen; Shofner; Simmons; Smith; Spiller; Swanson; Talarico; Tepper; Thompson; Troxclair; Turner; VanDeaver; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Cain; Hayes; Hopper; Isaac; Lowe; Meza; Olcott; Rodríguez Ramos; Schofield; Schoolcraft; Slawson; Tinderholt; Toth.

Present, not voting — Mr. Speaker; Morales, C.; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Bernal; Campos; García, J.; Morales Shaw.

STATEMENTS OF VOTE

When Record No. 3176 was taken, I was shown voting no. I intended to vote yes.

Tinderholt

When Record No. 3176 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote no.

Vasut

SB 2570 ON SECOND READING (Guillen - House Sponsor)

SB 2570, A bill to be entitled An Act relating to a legal justification for the use of force with a less-lethal force weapon by a correctional facility guard or a peace officer.

SB 2570 - POINT OF ORDER

Representative Moody raised a point of order against further consideration of **SB 2570** under Rule 4, Section 32(c)(1), of the House Rules on the grounds that the background and purpose statement in the bill analysis is substantially or materially misleading. The point of order was withdrawn.

Representative Guillen moved to postpone consideration of **SB 2570** until 5:30 p.m. today.

The motion prevailed.

POSTPONED BUSINESS

The following bills were laid before the house as postponed business:

SJR 1 ON THIRD READING**(Smithee, DeAyala, Little, Cook, Louderback, et al. - House Sponsors)**

SJR 1, A joint resolution proposing a constitutional amendment requiring the denial of bail under certain circumstances for illegal aliens charged with certain offenses punishable as a felony.

SJR 1 was read third time on May 20, postponed until 3 p.m. May 20, postponed until 1 p.m. today, and was again postponed until this time.

Representative Smithee moved to postpone consideration of **SJR 1** until 12 p.m. tomorrow.

The motion prevailed.

GENERAL STATE CALENDAR
(consideration continued)**SB 3031 ON SECOND READING**
(Johnson - House Sponsor)

SB 3031, A bill to be entitled An Act relating to the punishment for the offense of aggravated assault.

Amendment No. 1

Representative Virdell offered the following amendment to **SB 3031**:

Amend **SB 3031** (house committee report) on page 2 by striking lines 16 through 20 and substituting the following:

(C) in discharging the firearm, causes [~~serious~~] bodily injury to any person or damage to any property; or

Amendment No. 1 failed of adoption by (Record 3177): 59 Yeas, 78 Nays, 2 Present, not voting.

Yeas — Alders; Bonnen; Bumgarner; Cain; Capriglione; Cook; Dorazio; Flores; Frank; Gates; Gerdes; Guillen; Harris Davila; Harrison; Hayes; Hefner; Hickland; Holt; Hopper; Hull; Hunter; Isaac; Kerwin; LaHood; Landgraf; Leach; Leo Wilson; Lopez, J.; Lowe; Lozano; Luther; McLaughlin; McQueeney; Metcalf; Money; Morgan; Muñoz; Olcott; Oliverson; Patterson; Paul; Phelan; Pierson; Raymond; Richardson; Schatzline; Schoolcraft; Shaheen; Shofner; Slawson; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; VanDeaver; Virdell; Wilson.

Nays — Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bowers; Bryant; Bucy; Button; Campos; Canales; Cole; Collier; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; Dutton; Dyson; Fairly; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Geren; González, J.; González, M.; Goodwin; Guerra; Harless; Harris; Hernandez; Howard; Johnson; Jones, J.; King; Kitzman; Lalani; Lambert; Little; Longoria; Lopez, R.; Lujan; Manuel; Martinez Fischer; Meyer; Moody; Morales, C.; Morales, E.; Morales Shaw; Noble; Ordaz; Orr; Perez, M.; Perez, V.; Plesa; Reynolds; Rodríguez Ramos; Rose; Rosenthal; Simmons; Smithee; Talarico; Turner; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wu; Zwiener.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Buckley; DeAyala; Hinojosa; Louderback; Martinez; Meza; Romero; Schofield; Thompson.

STATEMENTS OF VOTE

When Record No. 3177 was taken, I was shown voting no. I intended to vote yes.

C. Bell

When Record No. 3177 was taken, I was shown voting no. I intended to vote yes.

Fairly

When Record No. 3177 was taken, I was shown voting no. I intended to vote yes.

Harris

When Record No. 3177 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

SB 3031 was passed to third reading by (Record 3178): 103 Yeas, 38 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Barry; Bell, K.; Bhojani; Bonnen; Bowers; Bryant; Buckley; Button; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dutton; Dyson; Fairly; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gerdes; Geren; González, J.; González, M.; Goodwin; Guerra; Guillen; Harless; Harris; Hayes; Hernandez; Howard; Hunter; Isaac; Johnson; Jones, J.; King; Kitzman; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, R.; Louderback; Lujan; Manuel; Martinez Fischer; McQueeney; Meyer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Morgan; Noble; Oliverson; Ordaz; Orr; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Schofield; Simmons; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Turner; VanDeaver; Villalobos; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Nays — Ashby; Bell, C.; Bumgarner; Cain; Dorazio; Flores; Frank; Gates; Harris Davila; Harrison; Hefner; Hickland; Hinojosa; Holt; Hopper; Hull; Kerwin; Leo Wilson; Lopez, J.; Lowe; Lozano; Luther; McLaughlin; Metcalf; Money; Muñoz; Olcott; Patterson; Richardson; Schatzline; Schoolcraft; Shaheen; Shofner; Slawson; Tinderholt; Toth; Troxclair; Virdell.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Bernal; Bucy; LaHood; Martinez; Paul.

STATEMENTS OF VOTE

When Record No. 3178 was taken, I was shown voting yes. I intended to vote no.

Collier

When Record No. 3178 was taken, I was shown voting no. I intended to vote yes.

Hull

When Record No. 3178 was taken, I was in the house but away from my desk. I would have voted yes.

LaHood

When Record No. 3178 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote no.

Vasut

**SB 24 ON SECOND READING
(Leach - House Sponsor)**

SB 24, A bill to be entitled An Act relating to the inclusion of an understanding of communist regimes and ideologies in the essential knowledge and skills for the social studies curriculum for certain public school students.

COMMITTEE GRANTED PERMISSION TO MEET

Representative Buckley requested permission for the Committee on Public Education to meet while the house is in session, at 6:30 p.m. today, in 1W.14, to consider pending, referred, and committee business.

Permission to meet was granted.

COMMITTEE MEETING ANNOUNCEMENT

The following committee meeting was announced:

Public Education, 6:30 p.m. today, 1W.14, for a formal meeting, to consider pending, referred, and committee business.

SB 24 - (consideration continued)**Amendment No. 1**

Representative Goodwin offered the following amendment to **SB 24**:

Amend **SB 24** (house committee report) as follows:

(1) Add "and fascist" immediately following "communist" in each of the following places in which it appears:

- (1) page 1, line 12;
- (2) page 1, line 15;
- (3) page 1, line 18;
- (4) page 2, line 8;
- (5) page 2, line 19;
- (6) page 2, line 21;

- (7) page 2, line 27;
- (8) page 3, line 6; and
- (9) page 3, line 19.
- (2) On page 2, line 6, strike "and".
- (3) On page 2, between lines 10 and 11, insert the following:
 - (H) the rise of fascist regimes in Europe;
 - (I) the genocide of Jewish, Romani, and LGBTQ+ people and of political opponents, persons with disabilities, and minority ethnic groups, known as the Holocaust;
 - (J) the German political purge known as the Night of the Long Knives;
 - (K) the Nanjing Massacre; and
 - (L) the origins and policies of the National Fascist Party of Italy;
- (4) On page 2, line 12, between "communism" and "and", insert "fascism".
- (5) On page 2, between lines 25 and 26, insert the following appropriately numbered subdivision and reletter subsequent subdivisions of the subsection accordingly:
 - () the evolution of fascist ideologies from economic, ultranationalist theories into broader cultural movements that divide societies based on class and ethnicity;
- (6) On page 3, line 13, between "communism" and "willing", insert "and fascism".
- (7) On page 3, line 16, between "communism" and the underlined semicolon, insert "and fascism".

Representative Leach moved to table Amendment No. 1.

The motion to table prevailed by (Record 3179): 88 Yeas, 50 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Ashby; Barry; Bell, C.; Bell, K.; Bonnen; Buckley; Bumgarner; Button; Cain; Capriglione; Cook; Craddick; Cunningham; Curry; Darby; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gates; Gerdes; Geren; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hickland; Holt; Hopper; Hull; Hunter; Isaac; Kerwin; King; Kitzman; LaHood; Lambert; Landgraf; Leach; Leo Wilson; Little; Lopez, J.; Louderback; Lowe; Lozano; Lujan; Luther; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morales, E.; Morgan; Noble; Olcott; Oliverson; Orr; Patterson; Paul; Phelan; Pierson; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; VanDeaver; Villalobos; Ward Johnson; Wharton; Wilson.

Nays — Anchía; Bernal; Bhojani; Bowers; Bryant; Bucy; Campos; Canales; Cole; Collier; Cortez; Davis, A.; Davis, Y.; Dutton; Flores; Gámez; García, J.; García Hernandez; González, J.; González, M.; Goodwin; Guerra; Hernandez; Hinojosa; Howard; Jones, J.; Lalani; Longoria; Manuel; Meza; Moody; Morales,

C.; Muñoz; Ordaz; Perez, M.; Perez, V.; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Talarico; Thompson; Turner; Vo; Walle; Wu; Zwiener.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Garcia, L.; Johnson; Lopez, R.; Martinez; Martinez Fischer; Morales Shaw; Plesa; Virdell.

STATEMENTS OF VOTE

When Record No. 3179 was taken, I was shown voting yes. I intended to vote no.

Allen

When Record No. 3179 was taken, I was in the house but away from my desk. I would have voted no.

Martinez Fischer

When Record No. 3179 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

Amendment No. 2

Representative Hinojosa offered the following amendment to **SB 24**:

Amend **SB 24** (house committee printing) as follows:

(1) On page 1, line 12, between "communist" and "regimes", add "and fascist".

Representative Leach moved to table Amendment No. 2.

The motion to table prevailed by (Record 3180): 85 Yeas, 56 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Ashby; Barry; Bell, C.; Bell, K.; Bonnen; Buckley; Bumgarner; Button; Cain; Capriglione; Cook; Craddick; Cunningham; Curry; Darby; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gates; Gerdes; Geren; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hickland; Holt; Hopper; Hull; Hunter; Isaac; Kerwin; Kitzman; LaHood; Lambert; Landgraf; Leach; Leo Wilson; Little; Lopez, J.; Louderback; Lowe; Lozano; Lujan; Luther; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morgan; Noble; Olcott; Oliverson; Orr; Patterson; Paul; Phelan; Pierson; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; VanDeaver; Villalobos; Wharton; Wilson.

Nays — Anchía; Bernal; Bhojani; Bowers; Bryant; Bucy; Campos; Canales; Cole; Collier; Cortez; Davis, A.; Davis, Y.; Dutton; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; González, J.; González, M.; Goodwin; Guerra; Hernandez; Hinojosa; Howard; Johnson; Jones, J.; Lalani; Longoria; Manuel; Martinez; Meza; Moody; Morales, C.; Morales, E.; Muñoz; Ordaz; Perez, M.;

Perez, V.; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Talarico; Thompson; Turner; Vo; Walle; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — King; Lopez, R.; Martinez Fischer; Morales Shaw; Virdell.

STATEMENTS OF VOTE

When Record No. 3180 was taken, I was shown voting yes. I intended to vote no.

Allen

When Record No. 3180 was taken, I was in the house but away from my desk. I would have voted no.

Martinez Fischer

When Record No. 3180 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

Amendment No. 3

Representative Wu offered the following amendment to **SB 24**:

Amend **SB 24** (house committee report) on page 3 as follows:

(1) On line 4, strike "and".

(2) On line 7, between "regimes" and the underlined period insert the following:
; and

(9) how ideologies differ across a country's population, including how a person residing in a country governed by a communist regime may not agree with the ideology of that government

Representative Leach moved to table Amendment No. 3.

The motion to table prevailed by (Record 3181): 86 Yeas, 57 Nays, 2 Present, not voting.

Yeas — Alders; Ashby; Barry; Bell, C.; Bell, K.; Bonnen; Buckley; Bumgarner; Button; Cain; Capriglione; Cook; Craddick; Cunningham; Curry; Darby; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gates; Gerdes; Geren; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hickland; Holt; Hopper; Hull; Hunter; Isaac; Kerwin; King; Kitzman; LaHood; Lambert; Landgraf; Leach; Leo Wilson; Little; Lopez, J.; Louderback; Lowe; Lozano; Lujan; Manuel; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morgan; Noble; Olcott; Oliverson; Orr; Patterson; Paul; Phelan; Pierson; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; VanDeaver; Villalobos; Virdell; Wharton; Wilson.

Nays — Allen; Anchía; Bernal; Bhojani; Bowers; Bryant; Bucy; Campos; Canales; Cole; Collier; Cortez; Davis, A.; Davis, Y.; Dutton; Flores; Gámez; García, J.; García, L.; García Hernandez; González, J.; González, M.; Goodwin; Guerra; Hernandez; Hinojosa; Howard; Johnson; Jones, J.; Lalani; Longoria; Luther; Martinez; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Ordaz; Perez, M.; Perez, V.; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Talarico; Thompson; Turner; Vo; Walle; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Vasut(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Lopez, R.; Martinez Fischer; Plesa.

STATEMENTS OF VOTE

When Record No. 3181 was taken, I was shown voting yes. I intended to vote no.

Manuel

When Record No. 3181 was taken, I was in the house but away from my desk. I would have voted no.

Martinez Fischer

When Record No. 3181 was taken, I was presiding in the chair and was shown voting present, not voting. I intended to vote yes.

Vasut

Amendment No. 4

Representative Rosenthal offered the following amendment to **SB 24**:

Amend **SB 24** (house committee printing) on page 2, line 4, by inserting and reordering the following subsections:

(F) National Socialism in Nazi Germany and its resurgence in the United States and Europe in the present day;

(Harris in the chair)

Representative Leach moved to table Amendment No. 4.

The motion to table prevailed by (Record 3182): 87 Yeas, 55 Nays, 2 Present, not voting.

Yeas — Alders; Ashby; Barry; Bell, C.; Bell, K.; Bonnen; Buckley; Bumgarner; Button; Cain; Capriglione; Cook; Craddick; Cunningham; Curry; Darby; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gates; Gerdes; Geren; Guillen; Harless; Harris Davila; Harrison; Hayes; Hefner; Hickland; Holt; Hopper; Hull; Hunter; Isaac; Kerwin; King; Kitzman; LaHood; Lambert; Landgraf; Leach; Leo Wilson; Little; Lopez, J.; Louderback; Lowe; Lozano; Lujan; Luther; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morgan; Noble; Olcott; Oliverson; Orr; Patterson; Paul; Phelan; Pierson; Richardson;

Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; VanDeaver; Vasut; Villalobos; Virdell; Walle; Wharton; Wilson.

Nays — Allen; Anchía; Bernal; Bhojani; Bowers; Bryant; Bucy; Campos; Canales; Cole; Collier; Cortez; Davis, A.; Davis, Y.; Dutton; Flores; Gámez; Garcia, J.; Garcia, L.; González, J.; González, M.; Goodwin; Guerra; Hernandez; Hinojosa; Howard; Johnson; Jones, J.; Lalani; Longoria; Manuel; Martinez; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Ordaz; Perez, M.; Perez, V.; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Talarico; Thompson; Turner; Vo; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Garcia Hernandez; Lopez, R.; Martinez Fischer; Simmons.

STATEMENTS OF VOTE

When Record No. 3182 was taken, I was in the house but away from my desk. I would have voted no.

Garcia Hernandez

When Record No. 3182 was taken, I was in the house but away from my desk. I would have voted no.

Martinez Fischer

SB 24 was passed to third reading by (Record 3183): 112 Yeas, 20 Nays, 6 Present, not voting.

Yeas — Alders; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bhojani; Bonnen; Bowers; Buckley; Bucy; Bumgarner; Button; Cain; Canales; Capriglione; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Frank; Gámez; Garcia, L.; Gates; Gerdes; Geren; Goodwin; Guillen; Harless; Harris(C); Harris Davila; Harrison; Hayes; Hefner; Hickland; Holt; Hopper; Howard; Hull; Hunter; Isaac; Johnson; Kerwin; King; Kitzman; LaHood; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Louderback; Lowe; Lozano; Lujan; Luther; Manuel; Martinez; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morales, E.; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Walle; Wharton; Wilson.

Nays — Allen; Campos; Davis, A.; Davis, Y.; Flores; Garcia, J.; González, J.; González, M.; Hernandez; Jones, J.; Meza; Moody; Reynolds; Rodríguez Ramos; Romero; Rosenthal; Thompson; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Bryant; Collier; Morales, C.; Morales Shaw; Rose.

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent — Bernal; Cole; Garcia Hernandez; Guerra; Hinojosa; Lalani; Lopez, R.; Martinez Fischer; Simmons; Vo.

STATEMENTS OF VOTE

When Record No. 3183 was taken, my vote failed to register. I would have voted present, not voting.

Cole

When Record No. 3183 was taken, I was in the house but away from my desk. I would have voted yes.

Garcia Hernandez

When Record No. 3183 was taken, I was shown voting no. I intended to vote yes.

J. Jones

When Record No. 3183 was taken, I was in the house but away from my desk. I would have voted no.

Martinez Fischer

When Record No. 3183 was taken, I was in the house but away from my desk. I would have voted no.

Simmons

LEAVES OF ABSENCE GRANTED

The following members were granted leaves of absence temporarily for today to attend a meeting of the Committee on Public Education:

Buckley on motion of Hull.

Hunter on motion of Hull.

Leo Wilson on motion of Hull.

Schoolcraft on motion of Hull.

SB 1253 - MOTION TO RECONSIDER

Representative Isaac moved to reconsider the vote by which **SB 1253**, as amended, was passed by Record No. 3126.

The motion to reconsider was lost by (Record 3184): 57 Yeas, 73 Nays, 2 Present, not voting.

Yeas — Alders; Bell, C.; Bumgarner; Cain; Canales; Cook; Cunningham; DeAyala; Dorazio; Dyson; Frank; Gates; Gerdes; Guillen; Harris Davila; Harrison; Hayes; Hefner; Holt; Hopper; Hull; Isaac; Kerwin; LaHood; Little; Lopez, J.; Louderback; Lowe; Lujan; Luther; McLaughlin; Metcalf; Meyer; Money; Morgan; Noble; Olcott; Oliverson; Orr; Patterson; Paul; Pierson; Richardson; Schatzline; Schofield; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; Vasut; Virdell.

Nays — Allen; Anchía; Ashby; Barry; Bell, K.; Bernal; Bhojani; Bowers; Bryant; Bucy; Button; Campos; Capriglione; Cole; Collier; Cortez; Darby; Davis, A.; Davis, Y.; Dean; Dutton; Flores; Gámez; García, J.; García, L.; García Hernandez; Geren; González, J.; González, M.; Goodwin; Guerra; Harless; Hernandez; Hinojosa; Howard; Johnson; Jones, J.; King; Kitzman; Lalani; Lambert; Landgraf; Longoria; Lozano; McQueeney; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Ordaz; Perez, M.; Perez, V.; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Talarico; Thompson; Turner; VanDeaver; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker; Harris(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent, Excused, Committee Meeting — Buckley; Hunter; Leo Wilson; Schoolcraft.

Absent — Bonnen; Craddick; Curry; Fairly; Hickland; Leach; Lopez, R.; Manuel; Martinez; Martinez Fischer; Phelan; Villalobos.

STATEMENTS OF VOTE

When Record No. 3184 was taken, I was shown voting no. I intended to vote yes.

Capriglione

When Record No. 3184 was taken, I was in the house but away from my desk. I would have voted yes.

Curry

When Record No. 3184 was taken, I was excused to attend a meeting of the Committee on Public Education. I would have voted no.

Leo Wilson

When Record No. 3184 was taken, I was shown voting no. I intended to vote yes.

Lozano

When Record No. 3184 was taken, I was in the house but away from my desk. I would have voted yes.

Manuel

When Record No. 3184 was taken, I was shown voting no. I intended to vote yes.

Wilson

POSTPONED BUSINESS

The following bills were laid before the house as postponed business:

SB 2570 ON SECOND READING
(Guillen - House Sponsor)

SB 2570, A bill to be entitled An Act relating to a legal justification for the use of force with a less-lethal force weapon by a correctional facility guard or a peace officer.

SB 2570 was read second time earlier today and was postponed until this time.

(Speaker in the chair)

(Hunter and Schoolcraft now present)

Amendment No. 1

Representative Moody offered the following amendment to **SB 2570**:

Amend **SB 2570** (house committee report) as follows:

(1) On page 1, line 18, between "officer" and the underlined period, insert "who is engaged in the discharge of the guard's or officer's official duties".

(2) On page 1, line 20, between "another" and "to", insert "when and".

(3) On page 1, strike lines 21 through 23, and substitute the following:
degree the person reasonably believes the force was necessary to accomplish the person's official duties as a guard or officer and if the person's use of the weapon is in substantial compliance with the person's training.

Amendment No. 1 was adopted.

Amendment No. 2

Representative Reynolds offered the following amendment to **SB 2570**:

Amend **SB 2570** (house committee printing) on page 1, by striking lines 22 and 23 and substituting the following:

duties as a guard or officer if:

(1) the person's use of the weapon was in substantial compliance with the person's training; and

(2) before using force, the person states the person's purpose in using force and discloses the person's identity as a guard or officer, unless the person reasonably believes the person's purpose and identity are already known by or are not reasonably able to be made known to the other person.

(Buckley now present)

Representative Guillen moved to table Amendment No. 2.

The motion to table prevailed by (Record 3185): 91 Yeas, 46 Nays, 1 Present, not voting.

Yeas — Alders; Ashby; Barry; Bell, C.; Bell, K.; Bonnen; Bumgarner; Button; Cain; Canales; Capriglione; Cook; Craddick; Cunningham; Curry; Darby; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gámez; Garcia, L.; Gates; Gerdes; Geren; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hickland; Hopper; Hull; Hunter; Johnson; Kerwin; Kitzman; LaHood; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Louderback; Lowe;

Lozano; Lujan; Luther; Manuel; Martinez; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morgan; Noble; Olcott; Oliverson; Orr; Patterson; Paul; Perez, M.; Phelan; Pierson; Plesa; Raymond; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Tepper; Tinderholt; Toth; Troxclair; Vasut; Villalobos; Virdell; Walle; Wharton; Wilson.

Nays — Allen; Anchía; Bernal; Bowers; Bryant; Bucy; Campos; Cole; Collier; Cortez; Davis, A.; Davis, Y.; Dutton; Flores; Garcia, J.; Garcia Hernandez; González, J.; González, M.; Goodwin; Guerra; Hernandez; Hinojosa; Howard; Jones, J.; Lopez, R.; Martinez Fischer; Meza; Moody; Morales, C.; Morales, E.; Muñoz; Ordaz; Perez, V.; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Talarico; Thompson; Turner; Vo; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker(C).

Absent, Excused — Gervin-Hawkins; Jones, V.

Absent, Excused, Committee Meeting — Leo Wilson.

Absent — Bhojani; Buckley; Holt; Isaac; King; Lalani; Morales Shaw; Swanson; VanDeaver.

STATEMENTS OF VOTE

When Record No. 3185 was taken, I was in the house but away from my desk. I would have voted no.

Bhojani

When Record No. 3185 was taken, I was in the house but away from my desk. I would have voted yes.

Holt

LEAVE OF ABSENCE GRANTED

The following member was granted leave of absence for the remainder of today because of important business:

Guerra on motion of Muñoz.

SB 2570 - (consideration continued)

Amendment No. 3

Representative Wu offered the following amendment to **SB 2570**:

Amend **SB 2570** (house committee report) on page 1, line 22, between "was" and "in", by inserting "not reckless and".

Representative Guillen moved to table Amendment No. 3.

The motion to table prevailed by (Record 3186): 86 Yeas, 52 Nays, 1 Present, not voting.

Yeas — Alders; Allen; Ashby; Barry; Bell, C.; Bell, K.; Bonnen; Buckley; Bumgarner; Button; Cain; Capriglione; Cook; Craddick; Cunningham; Curry; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gates; Gerdes; Geren; Guillen;

Harless; Harris; Harris Davila; Harrison; Hefner; Hickland; Hopper; Hull; Hunter; Isaac; Kerwin; King; Kitzman; LaHood; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Louderback; Lowe; Lozano; Lujan; Luther; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morgan; Noble; Olcott; Oliverson; Orr; Patterson; Paul; Phelan; Pierson; Raymond; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Spiller; Swanson; Talarico; Tepper; Tinderholt; Toth; Troxclair; VanDeaver; Vasut; Villalobos; Virdell; Wharton; Wilson.

Nays — Anchía; Bernal; Bhojani; Bowers; Bryant; Bucy; Campos; Canales; Cole; Cortez; Davis, A.; Davis, Y.; Dutton; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; González, J.; González, M.; Goodwin; Hernandez; Hinojosa; Johnson; Jones, J.; Lalani; Lopez, R.; Manuel; Martinez; Martinez Fischer; Meza; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Ordaz; Perez, M.; Perez, V.; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Thompson; Turner; Vo; Walle; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker(C).

Absent, Excused — Gervin-Hawkins; Guerra; Jones, V.

Absent, Excused, Committee Meeting — Leo Wilson.

Absent — Collier; Darby; Hayes; Holt; Howard; Plesa; Smithee.

STATEMENTS OF VOTE

When Record No. 3186 was taken, my vote failed to register. I would have voted no.

Collier

When Record No. 3186 was taken, I was in the house but away from my desk. I would have voted yes.

Holt

When Record No. 3186 was taken, my vote failed to register. I would have voted no.

Howard

SB 2570, as amended, was passed to third reading by (Record 3187): 110 Yeas, 30 Nays, 1 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bonnen; Bryant; Buckley; Bumgarner; Button; Cain; Capriglione; Cole; Cook; Cortez; Craddick; Cunningham; Curry; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gámez; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; Goodwin; Guillen; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Hull; Hunter; Isaac; Johnson; Jones, J.; Kerwin; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Little; Longoria; Lopez, J.; Louderback; Lowe; Lozano; Lujan; Luther; Martinez; McLaughlin; McQueeney; Metcalf; Meyer; Money; Moody; Morales, E.; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson;

Plesa; Raymond; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Wharton; Wilson.

Nays — Bhojani; Bowers; Bucy; Campos; Canales; Collier; Davis, A.; Davis, Y.; Dutton; Flores; Garcia, J.; González, J.; González, M.; Hinojosa; Howard; Lopez, R.; Manuel; Martinez Fischer; Meza; Morales, C.; Morales Shaw; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Talarico; Thompson; Ward Johnson; Wu.

Present, not voting — Mr. Speaker(C).

Absent, Excused — Gervin-Hawkins; Guerra; Jones, V.

Absent, Excused, Committee Meeting — Leo Wilson.

Absent — Darby; King; Simmons; Smithee; Zwiener.

CSSB 3 ON SECOND READING (King - House Sponsor)

CSSB 3, A bill to be entitled An Act relating to the regulation of products derived from hemp, including consumable hemp products and hemp beverages and the hemp-derived cannabinoids contained in those products; requiring occupational licenses and permits; imposing fees; creating criminal offenses; authorizing civil penalties; imposing taxes.

CSSB 3 was read second time on May 20, postponed until 3 p.m. May 20, postponed until 6 p.m. May 20, postponed until 4 p.m. today, and was again postponed until this time.

CSSB 3 - POINT OF ORDER

Representative Reynolds raised a point of order against further consideration of **CSSB 3** under Rule 4, Section 32(c)(3), of the House Rules on the grounds that the rulemaking authority statement in the bill analysis is incorrect.

(Leo Wilson now present)

The point of order was withdrawn.

MESSAGE FROM THE SENATE

A message from the senate was received at this time (see the addendum to the daily journal, Messages from the Senate, Message No. 1).

CSSB 3 - (consideration continued)

Amendment No. 1

Representative King offered the following amendment to **CSSB 3**:

Amend **CSSB 3** (house committee report) as follows:

- (1) On page 3, line 11, strike "302" and substitute "305".
- (2) On page 4, strike lines 19 through 24 and substitute the following:

(33) "Consumable hemp product" means a food or drug, as those terms are defined by Section 431.002, Health and Safety Code, that contains hemp or one or more cannabinoids. Unless context indicates otherwise, the term includes natural hemp flower, as that term is defined by Section 301.001. The term does not include a hemp beverage or a topical product containing hemp.

(3) On page 8, between lines 3 and 4, insert the following:

(c) Chapter 2110, Government Code, does not apply to an advisory committee established under this section.

(4) On page 10, line 26, strike "lab licensed under Chapter 301" and substitute "laboratory licensed under Chapter 305".

(5) On page 16, line 16, between "FEES." and "The", insert "(a)".

(6) On page 17, between lines 2 and 3, insert the following:

(b) A fee collected under this section shall be deposited to the credit of the general revenue fund and appropriated to the fund in the same manner as a tax on consumable hemp products under Section 202.016.

(7) On page 17, line 26, strike "a sign" and substitute "signs".

(8) On page 18, lines 18 and 19, strike "holder of a hemp beverage permit" and substitute "hemp beverage permittee".

(9) On page 19, line 26, strike "sell or deliver" and substitute "sell, serve, or deliver".

(10) On page 22, strike lines 11 through 18 and substitute the following:

(h) A multi-serving hemp beverage may only be sold or delivered to an ultimate consumer in a container size less than or equal to 1.5 liters. The delta-9 tetrahydrocannabinol concentration of a multi-serving hemp beverage sold or delivered to an ultimate consumer may not exceed:

(1) one milligram per ounce for a beverage marketed as a pre-mixed hemp cocktail; or

(2) 10 milligrams per ounce for any multi-serving hemp beverage other than a beverage described by Subdivision (1).

(11) On page 22, line 25, strike "package" and substitute "container".

(12) On page 25, line 18, between "distributor's" and "license", insert "or branch distributor's".

(13) On page 27, line 6, strike "as provided under this section" and substitute "in the same manner as the license holder may sell alcoholic beverages under this chapter".

(14) On page 27, line 9, between "retailers" and "and", insert ", package store permit holders, mixed beverage permit holders, private club registration permit holders,".

(15) On page 30, line 5, strike "any" and substitute "more than one-half of one percent".

(16) On page 30, line 20, between "type" and "of", insert "or brand".

(17) On page 30, lines 21 and 22, strike "or nonresident brewer's" and substitute ", nonresident brewer's, or brewpub".

(18) On page 34, strike lines 4 through 9.

(19) On page 47, line 24, between "DEFINED." and "In", insert "(a)".

(20) On page 48, between lines 5 and 6, insert the following:

(b) For purposes of this chapter, the term "first sale" does not include the sale of work in progress from the holder of a hemp manufacturer's license to another holder of a hemp manufacturer's license.

(21) On page 48, line 6, between "PRODUCTS," and "A", insert "(a)".

(22) On page 48, between lines 9 and 10, insert the following:

(b) A tax is imposed on the first sale of natural hemp flower at the rate of two cents per gram of natural hemp flower.

(23) On page 51, lines 22 and 23, between "to" and "consumable", insert "hemp beverages and".

(24) On page 52, line 22, between "beverages" and the underlined semicolon, insert "and consumable hemp products".

(25) On page 57, line 6, between "composition" and the underlined period, insert "that displays the information required to be included under Sections 310.101(l) and 310.102(d)".

(26) On page 57, strike "less" and substitute "not more" in each of the following places it appears:

(A) line 16; and

(B) line 26.

(27) In added Section 301.001, Alcoholic Beverage Code (page 58, between lines 9 and 10), insert the following appropriately numbered subdivision and renumber subsequent subdivisions of that section accordingly:

() "Premises" means the grounds and all buildings, vehicles, and appurtenances pertaining to the grounds, including any adjacent premises if they are directly or indirectly under the control of the same person.

(28) On page 59, line 11, strike "retailer or" and substitute "distributor, retailer, or".

(29) On page 61, line 24, strike "2027" and substitute "2029".

(30) On page 62, line 5, strike "commission under" and substitute "commission. A hemp testing laboratory licensed under this chapter must comply with the requirements of".

(31) On page 63, between lines 6 and 7, insert the following:

(c) The commission by rule may impose more restrictive requirements than otherwise provided under this section regarding the ownership of or interest in a hemp testing laboratory by a holder of a license issued under this title or a hemp beverage permit.

(32) On page 71, line 16, strike "rule" and substitute "the commission".

(33) On page 76, line 3, between "that" and "manufactures", insert "tests".

(34) On page 76, line 14, strike "and".

(35) On page 76, line 15, between "license" and the underlined period, insert the following:

; and

(8) \$1,000 for a hemp testing laboratory

(36) On page 76, lines 16 and 17, strike "as provided in a fund dedicated for the administration of hemp laws" and substitute "and appropriated to the fund in the same manner as a tax on consumable hemp products under Section 202.016".

(37) Strike page 76, line 27, through page 77, line 4, and substitute the following:

(e) The commission may not refund a license fee except when an application for a license is rejected by the commission or administrator. As much of the proceeds from license fees as is necessary may be appropriated for that purpose.

(38) On page 82, line 12, strike "310.301 and 310.302" and substitute "310.302 and 310.303".

(39) On page 88, lines 21 and 22, strike "license holder" and substitute "licensee".

(40) On page 92, line 17, strike "and" and substitute "including".

(41) On page 94, line 2, strike "310.204" and substitute "310.203".

(42) On page 95, lines 20 and 21, strike "or another out-of-state hemp manufacturer".

(43) Strike page 97, line 20, through page 98, line 1.

(44) On page 98, line 24, immediately following the underlined semicolon, insert "and".

(45) On page 98, strike lines 25 and 26.

(46) On page 98, line 27, strike "(4)" and substitute "(3)".

(47) On page 100, strike lines 17 through 25.

(48) Strike added Section 310.301(a), Alcoholic Beverage Code (page 100, line 27, through page 101, line 3), and reletter subsequent subsections in that section accordingly.

(49) On page 105, strike lines 8 through 11 and substitute the following:

Sec. 310.303. ON-PREMISE HEMP RETAILER'S LICENSE. (a) Except as otherwise provided in this section, all requirements, restrictions, and privileges of an off-premise hemp retailer's license provided under Section 310.302 apply to an on-premise hemp retailer's license holder.

(50) On page 105, line 12, strike "activities" and substitute "privileges".

(51) Strike "under this subchapter" in each of the following places it appears:

(A) page 106, line 7; and

(B) page 107, lines 3 and 4.

(52) Between "a" and "hemp" insert "hemp manufacturer's license or" in each of the following places it appears:

(A) page 107, line 19; and

(B) page 108, line 18.

(53) On page 109, line 4, strike "a hemp retailer premises" and substitute "the premises of a holder of a hemp manufacturer's license or hemp retailer".

(54) On page 116, line 7, between "TOTAL" and "TETRAHYDROCANNABINOL", insert "DELTA-9".

(55) On page 116, between "of" and "tetrahydrocannabinol", insert "delta-9" in each of the following places:

(A) line 11;

(B) line 13;

(C) line 18; and

(D) line 20.

(56) On page 116, line 23, between "product" and "may", insert ", other than natural hemp flower,".

(57) On page 118, lines 9 and 10, strike "retail license number and hemp testing laboratory", and substitute "hemp retailer's license number and hemp testing laboratory's license".

(58) On page 118, line 12, strike "less" and substitute "not more".

(59) On page 123, lines 4-6, strike "numbers of the manufacturer and hemp testing laboratory that performed the compliance testing for the product's batch" and substitute "number of the manufacturer and a QR code as required under Section 321.003 or 322.001, as applicable".

(60) On page 127, line 23, strike "Section 501.001(1), Election Code, is" and substitute "Sections 501.001(1) and (3), Election Code, are".

(61) On page 128, between lines 1 and 2, insert the following:

(3) "Premises" has the meaning assigned by Section 11.49 or 301.001, Alcoholic Beverage Code, as applicable.

(62) On page 137, line 16, strike "1.04" and substitute "301.001".

(63) On page 139, line 2, immediately following the period, insert "Section 2001.0045, Government Code, does not apply to a rule adopted under this Act."

(64) On page 140, line 3, between "3," and "45", insert "7, 11,".

(65) On page 140, line 9, between "305," and "321", insert "310,".

(66) Insert the following appropriately numbered SECTION:

SECTION _____. A person required to obtain a license under Subchapter B, C, D, E, or F, Chapter 310, Alcoholic Beverage Code, as added by this Act, is not required to obtain a license or otherwise comply with the requirements of this Act until January 1, 2027.

(67) Renumber SECTIONS of the bill and cross-references to those SECTIONS accordingly.

Amendment No. 1 was adopted by (Record 3188): 136 Yeas, 0 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Anchía; Ashby; Barry; Bell, C.; Bell, K.; Bernal; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bumgarner; Button; Cain; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; Geren; González, J.; González, M.; Goodwin; Guillen; Harless; Harris; Harris Davila; Hayes; Hefner; Hernandez; Hickland; Holt; Hopper; Howard; Hull; Hunter; Johnson; Jones, J.; Kerwin; King; Kitzman; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lujan; Luther; Manuel; Martinez; Martinez Fischer; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morales Shaw; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, M.; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner;

Slawson; Smithee; Spiller; Swanson; Talarico; Tepper; Thompson; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Wu; Zwiener.

Present, not voting — Mr. Speaker(C); Harrison.

Absent, Excused — Gervin-Hawkins; Guerra; Jones, V.

Absent — Bucy; Hinojosa; Isaac; LaHood; Lozano; McLaughlin; McQueeney; Morgan; Simmons.

STATEMENTS OF VOTE

When Record No. 3188 was taken, I was in the house but away from my desk. I would have voted yes.

Lozano

When Record No. 3188 was taken, I was in the house but away from my desk. I would have voted yes.

McLaughlin

When Record No. 3188 was taken, I was in the house but away from my desk. I would have voted yes.

Simmons

Amendment No. 2

Representatives Oliverson, Slawson, Metcalf, Harris Davila, Smithee, Swanson, Holt, Olcott, Cook, Patterson, Hickland, Tinderholt, Kitzman, Hopper, Orr, Ashby, Harless, Manuel, Shaheen, Shofner, Schatzline, Kerwin, Cain, Hefner, McQueeney, Dorazio, VanDeaver, Alders, Noble, Curry, Money, Hayes, Lowe, Bonnen, Capriglione, Frank, V. Jones, Leo Wilson, Luther, Louderback, Paul, Harris, Pierson, Villalobos, Leach, Martinez Fischer, LaHood, Wilson, Little, Dyson, McLaughlin, Cunningham, Landgraf, C. Bell, and Tepper offered the following amendment to **CSSB 3**:

Amend **CSSB 3** (house committee report) by striking all below the enacting clause and substituting the following:

SECTION 1. Section 443.001, Health and Safety Code, is amended by amending Subdivision (1) and adding Subdivision (8-a) to read as follows:

(1) "Consumable hemp product" means food, a drug, a device, or a cosmetic, as those terms are defined by Section 431.002, that contains hemp or one or more hemp-derived cannabinoids, including cannabidiol or cannabigerol.

(8-a) "Minor" means a person under 21 years of age.

SECTION 2. Subchapter A, Chapter 443, Health and Safety Code, is amended by adding Section 443.0025 to read as follows:

Sec. 443.0025. LOW-THC CANNABIS. This chapter does not apply to low-THC cannabis regulated under Chapter 487.

SECTION 3. Subchapter C, Chapter 443, Health and Safety Code, is amended by adding Section 443.1035 to read as follows:

Sec. 443.1035. LICENSING FEES. (a) An applicant for a license under this subchapter shall pay an initial licensing fee to the department in the amount of \$10,000 for each location where the applicant intends to process hemp or manufacture a consumable hemp product.

(b) Before the department may renew a license as provided by Section 443.104, a license holder shall pay a renewal fee to the department in the amount of \$10,000 for each location where the applicant intends to process hemp or manufacture a consumable hemp product.

SECTION 4. Section 443.104(b), Health and Safety Code, is amended to read as follows:

(b) The department shall renew a license if the license holder:

- (1) is not ineligible to hold the license under Section 443.102;
- (2) has not violated this chapter or a rule adopted under this chapter;
- (3) submits to the department any license renewal fee; and
- (4) ~~[(3)]~~ does not owe any outstanding fees to the department.

SECTION 5. Subchapter C, Chapter 443, Health and Safety Code, is amended by adding Section 443.106 to read as follows:

Sec. 443.106. RESTRICTION ON MANUFACTURE OF CERTAIN CONSUMABLE HEMP PRODUCTS. A license holder may not manufacture a consumable hemp product that contains any amount of a cannabinoid other than cannabidiol or cannabigerol.

SECTION 6. Section 443.151, Health and Safety Code, is amended by amending Subsections (a), (b), and (d) and adding Subsections (d-1) and (d-2) to read as follows:

(a) A consumable hemp product must be tested as provided by[~~z~~

~~[(1)] Subsections (b), [and] (c), and[~~z~~ or~~

~~[(2) Subsection] (d).~~

(b) Before a hemp plant is processed or otherwise used in the manufacture of a consumable hemp product, a sample representing the plant must be tested, as required by the executive commissioner, to determine:

(1) the concentration and identity of the [various] cannabinoids in the plant; and

(2) the presence or quantity of heavy metals, pesticides, microbial contamination, and any other substance prescribed by the department.

(d) Before ~~[Except as otherwise provided by Subsection (c), before]~~ a consumable hemp product is sold at retail or otherwise introduced into commerce in this state, a sample representing the hemp product must be tested:

(1) by a laboratory that is:

(A) located in this state;

(B) registered with the United States Drug Enforcement Administration; and

(C) accredited by an accreditation body in accordance with International Organization for Standardization ISO/IEC 17025 or a comparable or successor standard to determine the identity and [delta-9 tetrahydrocannabinol] concentration of any cannabinoids contained in the product; and

(2) by an appropriate laboratory to determine that the product does not contain a substance described by Subsection (b)(2) ~~[(b)]~~ or (c) in a quantity prohibited for purposes of those subsections.

(d-1) The testing required under Subsection (d) must use post-decarboxylation, high-performance liquid chromatography, or a similar method that includes the conversion of tetrahydrocannabinolic acid into tetrahydrocannabinol to determine the total tetrahydrocannabinol concentration in a tested product.

(d-2) A person that tests a consumable hemp product under Subsection (d) shall report the test results to the department in the form and manner required by the department.

SECTION 7. Sections 443.152(a) and (c), Health and Safety Code, are amended to read as follows:

(a) A consumable hemp product that contains any amount of a cannabinoid other than cannabidiol or cannabigerol [has a delta 9 tetrahydrocannabinol concentration of more than 0.3 percent] ~~[has a delta 9 tetrahydrocannabinol concentration of more than 0.3 percent]~~ may not be sold at retail or otherwise introduced into commerce in this state.

(c) A license holder shall make available to a seller of a consumable hemp product processed or manufactured by the license holder the results of testing required by Section 443.151. The results may accompany a shipment to the seller or be made available to the seller electronically. If the results are not able to be made available, the seller may have the testing required under Section 443.151 performed on the product and shall make the results available to a consumer and the department.

SECTION 8. Sections 443.202(b) and (c), Health and Safety Code, are amended to read as follows:

(b) Notwithstanding any other law, a person may not sell, offer for sale, possess, distribute, or transport a cannabinoid oil~~[-, including cannabidiol oil,]~~ in this state:

(1) if the oil contains any material extracted or derived from the plant *Cannabis sativa* L., other than from hemp produced in compliance with 7 U.S.C. Chapter 38, Subchapter VII; and

(2) unless a sample representing the oil has been tested by a laboratory that is accredited by an independent accreditation body in accordance with International Organization for Standardization ISO/IEC 17025 or a comparable or successor standard and found to not contain any amount of a cannabinoid other than cannabidiol or cannabigerol ~~[have a delta 9 tetrahydrocannabinol concentration of not more than 0.3 percent]~~.

(c) The department ~~[and the Department of Public Safety]~~ shall establish a process for the ~~[random]~~ testing of cannabinoid oil~~[-, including cannabidiol oil,]~~ at various retail and other establishments that sell, offer for sale, distribute, or use the oil to ensure that the oil:

(1) does not contain harmful ingredients;

(2) is produced in compliance with 7 U.S.C. Chapter 38, Subchapter VII; and

(3) does not contain any amount of a cannabinoid other than cannabidiol or cannabigerol ~~[has a delta-9 tetrahydrocannabinol concentration of not more than 0.3 percent].~~

SECTION 9. The heading to Section 443.2025, Health and Safety Code, is amended to read as follows:

Sec. 443.2025. REGISTRATION REQUIRED FOR RETAILERS OF CERTAIN CONSUMABLE HEMP PRODUCTS.

SECTION 10. Section 443.2025, Health and Safety Code, is amended by amending Subsections (b), (d), and (f) and adding Subsection (h) to read as follows:

(b) A person may not sell consumable hemp products containing a cannabinoid ~~[cannabidiol]~~ at retail in this state unless the person registers with the department each location owned, operated, or controlled by the person at which those products are sold. A person is not required to register a location associated with an employee ~~[or independent contractor]~~ described by Subsection (d).

(d) A person is not required to register with the department under Subsection (b) if the person is:

~~[(1)] an employee of a registrant; or~~

~~[(2)] an independent contractor of a registrant who sells the registrant's products at retail].~~

(f) The owner of a location at which consumable hemp products are sold shall annually pay to the department a registration fee in the amount of \$20,000 for each location owned by the person at which those products are sold ~~[The department by rule may adopt a registration fee schedule that establishes reasonable fee amounts for the registration of:~~

~~[(1)] a single location at which consumable hemp products containing cannabidiol are sold; and~~

~~[(2)] multiple locations at which consumable hemp products containing cannabidiol are sold under a single registration].~~

(h) A person may not sell consumable hemp products unless the person has provided to the department written consent from the person or the property owner, if the person is not the property owner, allowing the department, the Department of Public Safety, and any other state or local law enforcement agency to enter onto all premises where consumable hemp products are sold to conduct a physical inspection or to ensure compliance with this chapter and rules adopted under this chapter.

SECTION 11. Subchapter E, Chapter 443, Health and Safety Code, is amended by adding Section 443.2026 to read as follows:

Sec. 443.2026. CONSUMABLE HEMP PRODUCT REGISTRATION. (a) A consumable hemp product may not be offered for sale in this state unless the manufacturer of the product, before selling the product to a retailer:

(1) submits an application for the consumable hemp product to be registered with the department; and

(2) receives approval that the product is compliant with this chapter, registered, and approved for sale in this state.

(b) The department shall issue a unique product registration number to each consumable hemp product approved by the department.

(c) A manufacturer applying to register a consumable hemp product under this section shall pay an application fee to the department in the amount of \$500 for each consumable hemp product.

(d) The department shall maintain an updated product registration list on the department's public Internet website, which must include front and back identifying pictures of each registered product.

(e) Each consumable hemp product, including the container and package, if applicable, must be labeled with:

(1) a QR code that links:

(A) to the department's product registration list under Subsection (d); and

(B) to the identifying picture of the product provided on registration of the product with the department under Subsection (d) for the purpose of confirming registration of the product and allowing verification of the product by law enforcement; and

(2) the following message placed adjacent to the required QR code on the label: "SCAN QR CODE BEFORE PURCHASE".

(f) The department may not approve for sale a consumable hemp product that:

(1) contains any artificial or synthetic cannabinoids; or

(2) contains or is mixed with any alcohol, tobacco, nicotine, kratom, kava, mushrooms, or a derivative of any of those items.

(g) A person commits an offense if the person distributes, delivers, sells, purchases, possesses, or uses a consumable hemp product that is not registered with the department as provided by this section.

(h) An offense under this section is a Class B misdemeanor.

(i) A person is presumed to know a consumable hemp product is prohibited under this chapter if the product is not listed on the department's Internet website as required by Subsection (d) or does not have a valid QR code under Subsection (e).

(j) The executive commissioner shall adopt rules to implement and administer this section.

SECTION 12. Section 443.203, Health and Safety Code, is amended to read as follows:

Sec. 443.203. DECEPTIVE TRADE PRACTICE. (a) A person who sells, offers for sale, or distributes a consumable hemp product [~~cannabinoid oil, including cannabidiol oil,~~] that the person claims is processed or manufactured in compliance with this chapter commits a false, misleading, or deceptive act or practice actionable under Subchapter E, Chapter 17, Business & Commerce Code, if the product [~~oil~~] is not processed or manufactured in accordance with this chapter.

(b) A person who sells, offers for sale, or distributes a consumable hemp product ~~[cannabinoid oil]~~ commits a false, misleading, or deceptive act or practice actionable under Subchapter E, Chapter 17, Business & Commerce Code, if ~~[the oil]~~:

- (1) the product contains harmful ingredients;
- (2) the product is not produced in compliance with 7 U.S.C. Chapter 38, Subchapter VII; ~~[or]~~
- (3) the product contains any amount of a cannabinoid other than cannabidiol or cannabigerol; or
- (4) the product's packaging or advertising indicates that the product is for medical use ~~[has a delta-9 tetrahydrocannabinol concentration of more than 0.3 percent].~~

SECTION 13. Section 443.204, Health and Safety Code, is amended to read as follows:

Sec. 443.204. RULES RELATED TO SALE OF CONSUMABLE HEMP PRODUCTS. Rules adopted by the executive commissioner regulating the sale of consumable hemp products must to the extent allowable by federal law reflect the following principles:

- (1) hemp-derived ~~[cannabinoids, including]~~ cannabidiol and cannabigerol~~[;]~~ are not considered controlled substances or adulterants;
- (2) products containing ~~[one or more]~~ hemp-derived ~~[cannabinoids, such as]~~ cannabidiol or cannabigerol~~[;]~~ intended for ingestion are considered foods, not controlled substances or adulterated products; and
- (3) consumable hemp products must be packaged and labeled in the manner provided by Section 443.205~~[; and~~
- ~~[(4) the processing or manufacturing of a consumable hemp product for smoking is prohibited].~~

SECTION 14. Sections 443.205(a) and (c), Health and Safety Code, are amended to read as follows:

(a) Before a consumable hemp product that contains or is marketed as containing ~~[more than trace amounts of]~~ cannabinoids may be distributed or sold, the product must be:

- (1) labeled in the manner provided by this subchapter, including ~~[section with]~~ the following information:
 - (A) ~~[(1)]~~ batch identification number;
 - (B) ~~[(2)]~~ batch date;
 - (C) ~~[(3)]~~ product name;
 - (D) ~~[(4)]~~ a uniform resource locator (URL) that provides or links to a certificate of analysis for the product or each hemp-derived ingredient of the product;
 - (E) ~~[(5)]~~ the name of the product's manufacturer;
 - (F) the amount of cannabidiol or cannabigerol in each serving or unit of the product; and
 - (G) ~~[(6)]~~ a certification that there is no detectable amount of any cannabinoid other than cannabidiol or cannabigerol in the product; and

(2) prepackaged or placed at the time of sale in packaging or a container that is:

(A) tamper-evident;

(B) child-resistant; and

(C) if the product contains multiple servings or consists of multiple products purchased in one transaction, resealable in a manner that allows the child-resistant mechanism to remain intact [the delta 9 tetrahydrocannabinol concentration of the product or each hemp-derived ingredient of the product is not more than 0.3 percent].

(c) The label required by Subsection (a) must appear on the outer packaging of each unit of the product intended for individual retail sale. [If that unit includes inner and outer packaging, the label may appear on any of that packaging.]

SECTION 15. Subchapter E, Chapter 443, Health and Safety Code, is amended by adding Sections 443.2055 and 443.2056 to read as follows:

Sec. 443.2055. OFFENSE: MARKETING OF CONSUMABLE HEMP PRODUCT OR PACKAGING IN MANNER ATTRACTIVE TO MINORS. (a) A person commits an offense if the person markets, advertises, sells, or causes to be sold an edible consumable hemp product containing a hemp-derived cannabinoid that:

(1) is in the shape of a human, animal, fruit, or cartoon or in another shape that is attractive to children; or

(2) is in packaging or a container that:

(A) is in the shape of a human, animal, fruit, or cartoon or in another shape that is attractive to children;

(B) depicts an image of a human, animal, fruit, or cartoon or another image that is attractive to children;

(C) imitates or mimics trademarks or trade dress of products that are or have been primarily marketed to minors;

(D) includes a symbol that is primarily used to market products to minors;

(E) includes an image of a celebrity; or

(F) includes an image that resembles a food product, including candy or juice.

(b) In this section, a cartoon includes a depiction of an object, person, animal, creature, or any similar caricature that:

(1) uses comically exaggerated features and attributes;

(2) assigns human characteristics to animals, plants, or other objects; or

(3) has unnatural or extra-human abilities, such as imperviousness to pain or injury, x-ray vision, tunneling at very high speeds, or transformation.

(c) An offense under this section is a Class A misdemeanor.

Sec. 443.2056. OFFENSE: MISLEADING CONSUMABLE HEMP PACKAGING. (a) A person commits an offense if the person sells or offers for sale a consumable hemp product that contains or is marketed as containing hemp-derived cannabinoids in a package that depicts any statement, artwork, or design that would likely mislead a person to believe:

(1) the package does not contain a hemp-derived cannabinoid; or
(2) the product is intended for medical use, including by depicting a green cross.

(b) An offense under this section is a Class A misdemeanor.

SECTION 16. Section 443.206, Health and Safety Code, is amended to read as follows:

Sec. 443.206. RETAIL SALE OF OUT-OF-STATE CONSUMABLE HEMP PRODUCTS. Retail sales of consumable hemp products processed or manufactured outside of this state may be made in this state when the products were processed or manufactured in another state or jurisdiction if the products:

(1) were manufactured or processed in compliance with:

(A) ~~[(1)]~~ that state's ~~[state]~~ or jurisdiction's plan approved by the United States Department of Agriculture under 7 U.S.C. Section 1639p;

(B) ~~[(2)]~~ a plan established under 7 U.S.C. Section 1639q if that plan applies to the state or jurisdiction; or

(C) ~~[(3)]~~ the laws of that state or jurisdiction if the products are tested in accordance with, or in a manner similar to, Section 443.151;

(2) do not contain any amount of a cannabinoid other than cannabidiol or cannabigerol; and

(3) are packaged and labeled in the manner provided by this subchapter.

SECTION 17. Chapter 443, Health and Safety Code, is amended by adding Subchapters F and G to read as follows:

SUBCHAPTER F. CRIMINAL OFFENSES

Sec. 443.251. OFFENSE: MANUFACTURE, DELIVERY, OR POSSESSION WITH INTENT TO DELIVER OF CERTAIN CONSUMABLE HEMP PRODUCTS. (a) A person commits an offense if the person knowingly manufactures, delivers, or possesses with intent to deliver a consumable hemp product that contains any amount of a cannabinoid other than cannabidiol or cannabigerol.

(b) An offense under this section is a felony of the third degree.

(c) If conduct constituting an offense under this section also constitutes an offense under another law, the actor may be prosecuted under this section, the other law, or both.

Sec. 443.252. OFFENSE: POSSESSION OF CERTAIN CONSUMABLE HEMP PRODUCTS. (a) A person commits an offense if the person knowingly or intentionally possesses a consumable hemp product that contains any amount of a cannabinoid other than cannabidiol or cannabigerol.

(b) An offense under this section is a Class A misdemeanor.

(c) If conduct constituting an offense under this section also constitutes an offense under another law, the actor may be prosecuted under this section, the other law, or both.

Sec. 443.253. OFFENSE: SALE OR DISTRIBUTION OF CERTAIN CONSUMABLE HEMP PRODUCTS TO PERSONS YOUNGER THAN 21 YEARS OF AGE; PROOF OF AGE REQUIRED. (a) A person commits an

offense if the person, with criminal negligence, sells a consumable hemp product that contains or is marketed as containing hemp-derived cannabinoids to a person who is younger than 21 years of age.

(b) An employee of the owner of a store in which consumable hemp products that contain or are marketed as containing hemp-derived cannabinoids are sold at retail is criminally responsible and subject to prosecution for an offense under this section that occurs in connection with a sale by the employee.

(c) An offense under this section is a Class A misdemeanor.

(d) It is a defense to prosecution under Subsection (a) that the person to whom the consumable hemp product was sold presented to the defendant apparently valid proof of identification.

(e) A proof of identification satisfies the requirements of Subsection (d) if it contains a physical description and photograph consistent with the person's appearance, purports to establish that the person is 21 years of age or older, and was issued by a governmental agency. The proof of identification may include a driver's license issued by this state or another state, a passport, or an identification card issued by a state or the federal government.

(f) The owner of a store in which consumable hemp products that contain or are marketed as containing hemp-derived cannabinoids are sold, or an employee of the owner, may not display consumable hemp products for sale adjacent to products that are legal for children to consume.

Sec. 443.254. OFFENSE: MANUFACTURE, DISTRIBUTION, OR SALE OF CONSUMABLE HEMP PRODUCTS FOR SMOKING. (a) A person commits an offense if the person manufactures, distributes, sells, or offers for sale a consumable hemp product for smoking.

(b) An offense under this section is a Class B misdemeanor.

Sec. 443.255. OFFENSE: SALE OR DELIVERY OF CERTAIN CONSUMABLE HEMP PRODUCTS NEAR SCHOOL. (a) In this section, "school" and "premises" have the meanings assigned by Section 481.134.

(b) A person commits an offense if the person sells, offers for sale, or delivers a consumable hemp product containing a hemp-derived cannabinoid in, on, or within 1,000 feet of the premises of a school.

(c) An offense under this section is a Class B misdemeanor.

Sec. 443.256. OFFENSE: PROVISION OF CERTAIN CONSUMABLE HEMP PRODUCT BY COURIER, DELIVERY, OR MAIL SERVICE. (a) A person commits an offense if the person provides a consumable hemp product containing a hemp-derived cannabinoid by courier, delivery, or mail service.

(b) An offense under this section is a Class A misdemeanor.

Sec. 443.257. OFFENSE: FALSE LABORATORY REPORT. (a) A person commits an offense if the person, with the intent to deceive, forges, falsifies, or alters the results of a laboratory test authorized or required by this chapter.

(b) An offense under this section is a felony of the third degree.

Sec. 443.258. OFFENSE: MANUFACTURING OR SELLING WITHOUT LICENSE OR REGISTRATION. (a) A person commits an offense if the person:

(1) processes hemp or manufactures a consumable hemp product without a license issued under Subchapter C; or

(2) sells at retail or offers for sale at retail a consumable hemp product without registering as a retailer under Section 443.2025.

(b) An offense under this section is a felony of the third degree.

SUBCHAPTER G. ADMINISTRATIVE ENFORCEMENT

Sec. 443.301. ENFORCEMENT BY DEPARTMENT. (a) The department shall receive and investigate complaints concerning violations of this chapter by:

(1) a license holder under Subchapter C; or

(2) a registrant under Section 443.2025.

(b) The department may revoke, suspend, or refuse to renew a license or registration for a violation of this chapter or a rule adopted under this chapter.

(c) The department may impose an administrative penalty in an amount not to exceed \$10,000 against a license holder or registrant for each violation of this chapter or a rule adopted under this chapter.

(d) A proceeding under this section is a contested case under Chapter 2001, Government Code.

SECTION 18. The following provisions of the Health and Safety Code are repealed:

(1) Section 443.151(e);

(2) Section 443.201; and

(3) Sections 443.202(a) and 443.2025(a) and (c).

SECTION 19. Not later than December 1, 2025, the executive commissioner of the Health and Human Services Commission shall adopt the rules required by Section 443.2026, Health and Safety Code, as added by this Act.

SECTION 20. (a) Except as otherwise provided by Subsection (b) of this section, the changes in law made by this Act apply to the manufacture, sale, delivery, or possession of a consumable hemp product that occurs on or after the effective date of this Act. The manufacture, sale, delivery, or possession of a consumable hemp product that occurs before the effective date of this Act is governed by the law in effect on the date the manufacture, sale, delivery, or possession occurred and the former law is continued in effect for that purpose.

(b) A person selling consumable hemp products on the effective date of this Act is not required to register a product under Section 443.2026, Health and Safety Code, as added by this Act, before January 1, 2026.

SECTION 21. This Act takes effect September 1, 2025.

CSSB 3 - POINT OF ORDER

Representative Wu raised a point of order against further consideration of **CSSB 3** under Rule 4, Section 18(b); Rule 4, Section 20; and Rule 4, Section 32(b)(10), of the House Rules on the grounds that the witness list is inaccurate.

LEAVES OF ABSENCE GRANTED

The following members were granted leaves of absence for the remainder of today because of important business:

Guillen on motion of Muñoz.

Lozano on motion of Muñoz.

The following member was granted leave of absence temporarily for today because of important House Administration business:

Geren on motion of Ashby.

CSSB 3 - (consideration continued)

CSSB 3 - POINT OF ORDER DISPOSITION

The point of order was withdrawn.

CSSB 3 - POINT OF ORDER

Representative Wu raised a point of order against further consideration of **CSSB 3** under Rule 4, Section 18(b), and Rule 4, Section 32(b)(10), of the House Rules on the grounds that the witness list is inaccurate. The point of order was withdrawn.

Amendment No. 3

Representative Oliverson offered the following amendment to Amendment No. 2:

Amend Amendment No. 2 by Oliverson to **CSSB 3** by striking page 1, lines 11 through 14, and substituting the following:

SECTION 2. Chapter 443, Health and Safety Code, is amended by adding Subchapter A-1 to read as follows:

SUBCHAPTER A-1. NONAPPLICABILITY

Sec. 443.021. LOW-THC CANNABIS. This chapter does not apply to low-THC cannabis regulated under Chapter 487.

Sec. 443.022. RESEARCH. This chapter does not apply to research on hemp conducted by:

- (1) a medical school, as defined by Section 61.501, Education Code;
- (2) a hospital licensed under Chapter 241; or
- (3) an institution of higher education or private or independent institution of higher education, as defined by Section 61.003, Education Code.

(Geren now present)

Amendment No. 3 was adopted by (Record 3189): 102 Yeas, 24 Nays, 1 Present, not voting.

Yeas — Alders; Allen; Ashby; Barry; Bell, C.; Bell, K.; Bhojani; Bonnen; Buckley; Bumgarner; Button; Cain; Capriglione; Cole; Cook; Craddick; Cunningham; Curry; Darby; Davis, A.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Frank; Gámez; Gates; Gerdes; Harless; Harris; Harris Davila; Harrison; Hayes; Hefner; Hickland; Holt; Hopper; Hull; Hunter; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Louderback; Lowe; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morales, E.; Morgan; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Perez, V.; Phelan; Pierson; Plesa; Raymond; Richardson; Schatzline; Schofield;

Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; VanDeaver; Vasut; Villalobos; Virdell; Vo; Wharton; Wilson.

Nays — Bowers; Bryant; Bucy; Campos; Canales; Collier; Cortez; Davis, Y.; Flores; Garcia, J.; Garcia, L.; González, J.; González, M.; Howard; Lopez, R.; Meza; Morales, C.; Muñoz; Reynolds; Rodríguez Ramos; Rose; Talarico; Ward Johnson; Zwiener.

Present, not voting — Mr. Speaker(C).

Absent, Excused — Gervin-Hawkins; Guerra; Guillen; Jones, V.; Lozano.

Absent — Anchía; Bernal; Garcia Hernandez; Geren; Goodwin; Hernandez; Hinojosa; Isaac; Moody; Morales Shaw; Perez, M.; Romero; Rosenthal; Simmons; Thompson; Turner; Walle; Wu.

STATEMENTS OF VOTE

When Record No. 3189 was taken, I was in the house but away from my desk. I would have voted yes.

Garcia Hernandez

When Record No. 3189 was taken, I was in the house but away from my desk. I would have voted yes.

M. Perez

Amendment No. 4

Representative Moody offered the following amendment to Amendment No. 2:

Amend Amendment No. 2 by Oliverson to **CSSB 3** by striking page 12, line 27, through page 13, line 4, and substituting the following:

Sec. 443.252. OFFENSE: POSSESSION OF CERTAIN CONSUMABLE HEMP PRODUCTS. (a) In this section, "child" has the meaning assigned by Section 51.02, Family Code.

(b) A person commits an offense if the person knowingly or intentionally possesses a consumable hemp product that contains any amount of a cannabinoid other than cannabidiol or cannabigerol.

(c) It is a defense to prosecution under this section that the actor:

(1) requested emergency medical assistance in response to the person's own possible overdose or the possible overdose of another person; and

(2) if the person requested emergency medical assistance for the possible overdose of another person:

(A) remained on the scene until medical assistance arrived; and

(B) cooperated with medical assistance and law enforcement personnel on the scene.

(d) Except as provided by Subsection (e), an offense under this section is a Class A misdemeanor.

(e) An offense under this section committed by a minor is a Class C misdemeanor, except that if it is shown on the trial of the offense that at the time of the offense the actor is a minor who is not a child and the actor has been previously convicted of an offense under this section two or more times, the offense is a misdemeanor punishable by:

- (1) a fine of not less than \$250 and not more than \$2,000;
- (2) confinement in jail for a term not to exceed 180 days; or
- (3) both the fine and the confinement.

(f) The court shall order:

(1) a minor placed on deferred disposition for or convicted of an offense under this section to:

(A) perform community service for:

(i) not less than 8 or more than 12 hours if the minor has not been previously convicted of an offense under this section; or

(ii) not less than 20 or more than 40 hours if the minor has been previously convicted of an offense under this section; and

(B) successfully complete a substance misuse education program under Section 521.374(a)(1), Transportation Code, that is regulated by the Texas Department of Licensing and Regulation under Chapter 171, Government Code; and

(2) the Department of Public Safety to suspend the driver's license or permit of a minor convicted of an offense under this section or, if the minor does not have a driver's license or permit, to deny the issuance of a driver's license or permit for:

(A) 30 days, if the minor has not been previously convicted of an offense under this section;

(B) 60 days, if the minor has been previously convicted once of an offense under this section; or

(C) 180 days, if the minor has been previously convicted twice or more of an offense under this section.

(g) Community service ordered under Subsection (f) must be related to education about or prevention of misuse of drugs if a program or service providing that education or prevention is available in the county in which the court is located. If a program or service providing that education or prevention is not available in the county, the court may order community service appropriate for rehabilitative purposes. The education program under Subsection (f)(1)(B) is in addition to community service ordered under this section.

(h) A driver's license suspension under Subsection (f)(2) takes effect on the 11th day after the date the minor is convicted.

(i) A person who is not a child and who has been previously convicted of an offense under this section two or more times is not eligible to receive deferred disposition or deferred adjudication for an offense under this section.

(j) For the purpose of determining whether a person has been previously convicted of an offense under this section:

(1) an adjudication under Title 3, Family Code, that the person engaged in conduct described by this section is considered a conviction of an offense under this section; and

(2) an order of deferred disposition for an offense alleged under this section is considered a conviction of an offense under this section.

(k) If conduct constituting an offense under this section also constitutes an offense under another law, the actor may be prosecuted under this section, the other law, or both.

Amendment No. 4 was adopted by (Record 3190): 126 Yeas, 10 Nays, 1 Present, not voting.

Yeas — Allen; Anchía; Barry; Bell, C.; Bell, K.; Bhojani; Bonnen; Bowers; Bryant; Buckley; Bucy; Button; Campos; Canales; Capriglione; Cole; Collier; Cook; Cortez; Craddick; Cunningham; Curry; Davis, A.; Davis, Y.; Dean; DeAyala; Dorazio; Dutton; Dyson; Fairly; Flores; Frank; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; Gates; Gerdes; González, J.; González, M.; Goodwin; Harless; Harrison; Hayes; Hefner; Hernandez; Hickland; Hinojosa; Holt; Hopper; Howard; Hull; Hunter; Johnson; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Lopez, R.; Louderback; Lowe; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Meza; Money; Moody; Morales, C.; Morales, E.; Morgan; Muñoz; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Perez, V.; Phelan; Pierson; Plesa; Raymond; Reynolds; Richardson; Rodríguez Ramos; Romero; Rose; Rosenthal; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Simmons; Slawson; Smithee; Swanson; Talarico; Thompson; Tinderholt; Toth; Troxclair; VanDeaver; Vasut; Villalobos; Virdell; Vo; Walle; Ward Johnson; Wharton; Wilson; Zwiener.

Nays — Ashby; Bumgarner; Cain; Darby; Harris; Harris Davila; Lambert; Paul; Spiller; Tepper.

Present, not voting — Mr. Speaker(C).

Absent, Excused — Gervin-Hawkins; Guerra; Guillen; Jones, V.; Lozano.

Absent — Alders; Bernal; Geren; Isaac; Morales Shaw; Perez, M.; Turner; Wu.

STATEMENTS OF VOTE

When Record No. 3190 was taken, I was in the house but away from my desk. I would have voted no.

Alders

When Record No. 3190 was taken, I was in the house but away from my desk. I would have voted yes.

M. Perez

CSSB 3 - POINT OF ORDER

Representative Wu raised a point of order against further consideration of **CSSB 3** under Rule 11, Section 2, and Rule 11, Section 3, of the House Rules on the grounds that the committee substitute is not germane and that the committee substitute changes the original purpose of the bill. The point of order was withdrawn.

CSSB 3 - POINT OF ORDER

Representative Wu raised a point of order against further consideration of **CSSB 3** under Rule 4, Section 18(b), of the House Rules on the grounds that the witness list is inaccurate. The point of order was withdrawn.

Amendment No. 2, as amended, was adopted by (Record 3191): 86 Yeas, 53 Nays, 3 Present, not voting.

Yeas — Alders; Ashby; Barry; Bell, C.; Bell, K.; Bonnen; Buckley; Bumgarner; Button; Cain; Capriglione; Cook; Craddick; Cunningham; Curry; Darby; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gates; Gerdes; Geren; Harless; Harris; Harris Davila; Hayes; Hefner; Hickland; Holt; Hopper; Hull; Hunter; Kerwin; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Lopez, J.; Louderback; Lowe; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morales, E.; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Pierson; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; VanDeaver; Vasut; Villalobos; Virdell; Wharton; Wilson.

Nays — Allen; Anchía; Bernal; Bhojani; Bowers; Bryant; Bucy; Canales; Cole; Collier; Cortez; Davis, A.; Davis, Y.; Dutton; Flores; Gámez; Garcia, J.; Garcia, L.; Garcia Hernandez; González, J.; González, M.; Goodwin; Hernandez; Hinojosa; Howard; Isaac; Johnson; Jones, J.; King; Longoria; Lopez, R.; Meza; Moody; Morales, C.; Muñoz; Perez, V.; Phelan; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Simmons; Talarico; Thompson; Turner; Vo; Walle; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker(C); Harrison; Morales Shaw.

Absent, Excused — Gervin-Hawkins; Guerra; Guillen; Jones, V.; Lozano.

Absent — Campos; Morgan; Perez, M.

STATEMENTS OF VOTE

When Record No. 3191 was taken, I was in the house but away from my desk. I would have voted no.

Campos

When Record No. 3191 was taken, I was excused because of important business. I would have voted yes.

Lozano

When Record No. 3191 was taken, I was shown voting yes. I intended to vote no.

Martinez

When Record No. 3191 was taken, I was shown voting yes. I intended to vote no.

E. Morales

When Record No. 3191 was taken, I was in the house but away from my desk. I would have voted yes.

M. Perez

CSSB 3, as amended, was passed to third reading by (Record 3192): 95 Yeas, 44 Nays, 2 Present, not voting.

Yeas — Alders; Allen; Ashby; Barry; Bell, C.; Bell, K.; Bonnen; Buckley; Bumgarner; Button; Campos; Capriglione; Cook; Cortez; Craddick; Cunningham; Curry; Darby; Dean; DeAyala; Dorazio; Dyson; Fairly; Frank; Gates; Gerdes; Geren; Harless; Harris; Harris Davila; Hayes; Hefner; Hickland; Holt; Hopper; Hull; Hunter; Isaac; Jones, J.; Kerwin; King; Kitzman; LaHood; Lalani; Lambert; Landgraf; Leach; Leo Wilson; Little; Longoria; Lopez, J.; Louderback; Lowe; Lujan; Luther; Manuel; Martinez; Martinez Fischer; McLaughlin; McQueeney; Metcalf; Meyer; Money; Morales, E.; Morgan; Noble; Olcott; Oliverson; Ordaz; Orr; Patterson; Paul; Phelan; Pierson; Richardson; Schatzline; Schofield; Schoolcraft; Shaheen; Shofner; Slawson; Smithee; Spiller; Swanson; Tepper; Tinderholt; Toth; Troxclair; Turner; VanDeaver; Vasut; Villalobos; Virdell; Wharton; Wilson.

Nays — Anchía; Bernal; Bhojani; Bowers; Bryant; Bucy; Canales; Cole; Collier; Davis, A.; Davis, Y.; Dutton; Flores; Gámez; Garcia, L.; Garcia Hernandez; González, J.; González, M.; Goodwin; Harrison; Hernandez; Hinojosa; Howard; Johnson; Lopez, R.; Meza; Moody; Morales, C.; Muñoz; Perez, V.; Plesa; Raymond; Reynolds; Rodríguez Ramos; Romero; Rose; Rosenthal; Talarico; Thompson; Vo; Walle; Ward Johnson; Wu; Zwiener.

Present, not voting — Mr. Speaker(C); Morales Shaw.

Absent, Excused — Gervin-Hawkins; Guerra; Guillen; Jones, V.; Lozano.

Absent — Cain; Garcia, J.; Perez, M.; Simmons.

STATEMENTS OF VOTE

When Record No. 3192 was taken, I was shown voting yes. I intended to vote no.

Campos

When Record No. 3192 was taken, I was in the house but away from my desk. I would have voted no.

J. Garcia

When Record No. 3192 was taken, I was shown voting yes. I intended to vote no.

J. Jones

When Record No. 3192 was taken, I was excused because of important business. I would have voted yes.

Lozano

When Record No. 3192 was taken, I was shown voting yes. I intended to vote no.

Martinez

When Record No. 3192 was taken, I was shown voting yes. I intended to vote no.

E. Morales

When Record No. 3192 was taken, my vote failed to register. I would have voted yes.

M. Perez

REASON FOR VOTE

Representative Virdell submitted the following reason for vote to be printed in the journal:

I have wrestled back and forth with this bill. I know THC is beneficial for medical issues such as cancer and PTSD. I have friends who have used it to their benefit. I have strong concerns that THC and CBD have been marketed towards kids and many of the products have been packaged to look like candy. It is my understanding that the compassionate use program will be expanded. I absolutely want to make sure people have access to products that help them, but it is also important we ensure kids do not have access to these products.

BILLS AND RESOLUTIONS SIGNED BY THE SPEAKER

Notice was given at this time that the speaker had signed bills and resolutions in the presence of the house (see the addendum to the daily journal, Signed by the Speaker, House List No. 18).

REMARKS ORDERED PRINTED

Representative Reynolds moved to print all remarks on **CSSB 3**.

The motion prevailed. [Please refer to the supplement to this journal for the text of the debate on **CSSB 3**.]

ADJOURNMENT

Representative Manuel moved that the house adjourn until 10 a.m. tomorrow in memory of Brenda Diane Calhoun Vaughn of Port Arthur.

The motion prevailed.

The house accordingly, at 9:51 p.m., adjourned until 10 a.m. tomorrow.

ADDENDUM

REFERRED TO COMMITTEES

The following bills and joint resolutions were today laid before the house, read first time, and referred to committees, and the following resolutions were today laid before the house and referred to committees. If indicated, the chair today corrected the referral of the following measures:

List No. 1

SB 524 to Ways and Means.

SB 781 to Homeland Security, Public Safety, and Veterans' Affairs.

SB 1782 to Human Services.

SB 1861 to Criminal Jurisprudence.

SB 2309 to Elections.

SB 2497 to Natural Resources.

SB 2617 to Public Education.

SB 2969 to Criminal Jurisprudence.

List No. 2

HR 1280 (By Collier), Honoring the Molson Coors Fort Worth Brewery on the occasion of the 50th anniversary of Miller Lite.

To Local and Consent Calendars.

HR 1281 (By Garcia Hernandez), Commending Ella Ponthier for her service as a legislative intern in the office of State Representative Cassandra Garcia Hernandez.

To Local and Consent Calendars.

HR 1282 (By K. Bell), Congratulating Ronnie Davis on his retirement as chief of the Kaufman Fire Department.

To Local and Consent Calendars.

HR 1283 (By Longoria), Congratulating Joanna Adame of Mission on graduating as a member of the Texas Partners in Policymaking Class of 2025.

To Local and Consent Calendars.

HR 1284 (By Plesa), Congratulating Joanne Huffstetler on graduating as a member of the Texas Partners in Policymaking Class of 2025.

To Local and Consent Calendars.

HR 1285 (By V. Perez), Congratulating Karla Yvette Sierra on receiving a 2021 John F. Kennedy Service Award from the Peace Corps.

To Local and Consent Calendars.

HR 1286 (By V. Perez), Congratulating The University of Texas at El Paso women's volleyball team on advancing to the 2024 NCAA Division I tournament.

To Local and Consent Calendars.

HR 1287 (By Virdell), Commemorating the annual Texas Furniture Makers Show hosted by the Kerr Arts & Cultural Center in Kerrville.

To Local and Consent Calendars.

HR 1288 (By Turner), Commending Kieran J. Williams for his service as a legislative aide in the office of State Representative Chris Turner.

To Local and Consent Calendars.

HR 1289 (By Turner), Commending Nathan Micheal Sullivan of Arlington for his service as a legislative aide in the office of State Representative Chris Turner.

To Local and Consent Calendars.

HR 1290 (By Turner), Commending Destiny Aladeyelu for her service as a legislative intern in the district office of State Representative Chris Turner.

To Local and Consent Calendars.

HR 1291 (By Turner), Commending Mazbeen Ali for her service as a legislative aide in the office of State Representative Chris Turner.

To Local and Consent Calendars.

HR 1292 (By Martinez Fischer), Honoring Frank Herrera Jr. for his dedication to the advancement of the Latino population in San Antonio and beyond.

To Local and Consent Calendars.

HR 1293 (By Ashby), Commemorating the 100th anniversary of the Associated General Contractors of Texas.

To Local and Consent Calendars.

HR 1294 (By Reynolds), Commending Freeman Crawford IV for his service as a policy analyst in the office of State Representative Ron Reynolds.

To Local and Consent Calendars.

HR 1295 (By Martinez), Commending the participants in the Rio Grande Valley Legislative Internship Program and the Texas Legislative Fellowship Program for their contributions to the Texas Legislature during the 89th Session.

To Local and Consent Calendars.

HR 1296 (By Reynolds), Recognizing May 20, 2025, as Greater Houston Frontiers Club Day at the State Capitol.

To Local and Consent Calendars.

HR 1297 (By Howard), Recognizing May 2025 as Women's Health Month.

To Local and Consent Calendars.

HR 1298 (By Howard), Recognizing November 8, 2025, as Premenstrual Dysphoric Disorder Awareness Day.

To Local and Consent Calendars.

HR 1299 (By Cunningham), Commending Lauren Wilson for her service as a legislative aide in the office of State Representative Charles Cunningham.
To Local and Consent Calendars.

HR 1300 (By Cunningham), Commending Cullen Watkins for his service as a legislative intern in the office of State Representative Charles Cunningham.
To Local and Consent Calendars.

HR 1301 (By Meza), Recognizing the work of legislative intern Arfeen Khan during the 89th Legislature.
To Local and Consent Calendars.

HR 1302 (By Meza), Recognizing the work of legislative intern Shaheer Khan during the 89th Legislature.
To Local and Consent Calendars.

SIGNED BY THE SPEAKER

The following bills and resolutions were today signed in the presence of the house by the speaker:

House List No. 18

HB 694, HB 923, HB 1875, HB 1893, HB 2071, HB 2513, HB 2522, HB 2788, HB 3033, HB 3211, HB 3376, HB 3751, HB 3810, HB 4219, HB 4506, HB 4529, HB 4643, HB 4753, HB 5424, HCR 90, HCR 98

Senate List No. 23

SB 207, SB 378, SB 402, SB 529, SB 541, SB 651, SB 664, SB 687, SB 693, SB 745, SB 920, SB 927, SB 958, SB 984, SB 992, SB 1018, SB 1020, SB 1173, SB 1227, SB 1239, SB 1247, SB 1248, SB 1321, SB 1332, SB 1497, SB 1537, SB 1620, SB 1646, SB 1662, SB 1734, SB 1901, SB 2053, SB 2112, SB 2124, SB 2145, SB 2180, SB 2332, SB 2448, SB 2662, SB 2938, SCR 19, SCR 25, SJR 34

MESSAGES FROM THE SENATE

The following messages from the senate were today received by the house:

Message No. 1

MESSAGE FROM THE SENATE

SENATE CHAMBER

Austin, Texas

Wednesday, May 21, 2025 - 2

The Honorable Speaker of the House
House Chamber
Austin, Texas

Mr. Speaker:

I am directed by the senate to inform the house that the senate has taken the following action:

THE SENATE HAS PASSED THE FOLLOWING MEASURES:

HB 39 Lopez, Ray SPONSOR: Parker
Relating to information and data regarding the incidence of veteran deaths in this state.

(Committee Substitute/Amended)

HB 114 Cortez SPONSOR: Zaffirini
Relating to the transfer of functions relating to certain veteran mental health programs and plans to the Texas Veterans Commission.

(Committee Substitute/Amended)

HB 138 Dean SPONSOR: Bettencourt
Relating to the establishment of the Health Impact, Cost, and Coverage Analysis Program; authorizing a fee.

(Committee Substitute/Amended)

HB 247 Guillen SPONSOR: Middleton
Relating to an exemption from ad valorem taxation of the amount of the appraised value of real property located in certain counties that arises from the installation or construction on the property of border security infrastructure and related improvements and to the consideration of the price paid by certain governmental entities for a parcel of or easement in real property purchased for the purpose of installing or constructing such infrastructure when appraising other real property.

HB 300 Wilson SPONSOR: Hancock
Relating to the Texas Armed Services Scholarship Program.

(Amended)

HB 762 Leach SPONSOR: Bettencourt
Relating to severance pay for political subdivision employees and independent contractors.

(Amended)

HB 793 Thompson SPONSOR: Zaffirini
Relating to the confidentiality of certain personal information of an applicant for or a person protected by a protective order.

HB 1275 González, Mary SPONSOR: Blanco
Relating to the issuance of permits for bovine producer dairy farms in certain areas of this state.

HB 1584 Hull SPONSOR: Schwertner
Relating to the creation of a list of priority facilities by electric utilities.

(Amended)

HB 1700 Fairly SPONSOR: Sparks
Relating to certain records of a health professional providing a telemedicine medical service, teledentistry dental service, or telehealth service.

HB 1894 Metcalf SPONSOR: Parker
Relating to designating November as Veterans Month.

HB 1965 Garcia, Josey SPONSOR: Menéndez

Relating to a study on mental health services provided to veterans through the Texas Veterans Commission.

HB 2254

Hull

SPONSOR: Sparks

Relating to certain health care services contract arrangements entered into by insurers and health care providers.

HB 2340

Metcalf

SPONSOR: Zaffirini

Relating to the qualifications, communications, and recordkeeping of a child custody evaluator and the admissibility of a child custody evaluation under certain circumstances.

HB 2350

Dutton

SPONSOR: Johnson

Relating to standing in a suit affecting the parent-child relationship.

HB 2760

Villalobos

SPONSOR: Alvarado

Relating to judicial review of a Texas Workforce Commission decision in an unemployment compensation proceeding.

HB 2842

Zwiener

SPONSOR: Perry

Relating to the control by lethal means of white-tailed deer in certain areas.

HB 3088

Orr

SPONSOR: Hancock

Relating to the authority of the Parks and Wildlife Department to procure goods and services related to items for resale by the department.

HB 3104

McLaughlin

SPONSOR: Zaffirini

Relating to the appointment and compensation of a bailiff appointed by the judges of certain district courts in Webb County.

HB 3260

Bell, Keith

SPONSOR: Hancock

Relating to the Texas Industry-Recognized Apprenticeship Programs Grant Program.

HB 3479

Morgan

SPONSOR: Zaffirini

Relating to the Rio Grande vegetative management program.

HB 3575

Noble

SPONSOR: West

Relating to the filing of a campaign treasurer appointment and an application for a place on the ballot by a candidate for the board of directors of an appraisal district.

HB 3687

Harless

SPONSOR: Bettencourt

Relating to certification requirements for a fire marshal and any related employee, officer, inspector, and investigator appointed by certain counties and emergency services districts.

HB 3788

Spiller

SPONSOR: Parker

Relating to the operations of municipal hospital authorities.

HB 4163

Guillen

SPONSOR: Perry

Relating to the authority of a city to impose certain governmental requirements on an agricultural operation.

HB 4205

Harless

SPONSOR: Bettencourt

Relating to compensation and employment benefits for law enforcement personnel in certain counties.

HB 4370 Metcalf SPONSOR: Blanco

Relating to the projects undertaken by a public improvement district, municipal management district, water control and improvement district, fresh water supply district, or municipal utility district.

HB 4655 Hull SPONSOR: West

Relating to the Preparation for Adult Living Program and other services for foster children transitioning to independent living.

HB 4809 Meyer SPONSOR: West

Relating to the authority of an owner of property that qualifies for an exemption as a historic or archaeological site to protest the allocation of the appraised value of the property between the land and the improvements to the land.

HB 5195 Capriglione SPONSOR: Alvarado

Relating to modernization of state agency Internet websites and digital services.

HJR 34 Guillen SPONSOR: Middleton

Proposing a constitutional amendment to authorize the legislature to provide for an exemption from ad valorem taxation of the amount of the market value of real property located in a county that borders the United Mexican States that arises from the installation or construction on the property of border security infrastructure and related improvements.

SB 719 Eckhardt

Relating to the collection of information on available beds at inpatient mental health facilities providing acute psychiatric treatment.

SB 1978 Hall

Relating to the interconnection of a facility in the ERCOT power region to certain other facilities.

THE SENATE HAS CONCURRED IN THE HOUSE AMENDMENTS TO THE FOLLOWING MEASURES:

SB 963 (31 Yeas, 0 Nays)

SB 1383 (30 Yeas, 1 Nay)

SB 1883 (26 Yeas, 5 Nays)

SB 1968 (31 Yeas, 0 Nays)

THE SENATE HAS GRANTED THE REQUEST OF THE HOUSE FOR THE APPOINTMENT OF A CONFERENCE COMMITTEE ON THE FOLLOWING MEASURES:

HB 2525

Senate Conferees: Paxton - Chair/Menéndez/Middleton/Perry/Sparks

Respectfully,

Patsy Spaw
Secretary of the Senate

APPENDIX

STANDING COMMITTEE REPORTS

Favorable reports have been filed by committees as follows:

May 20

Corrections - **SB 1021**

Criminal Jurisprudence - **SB 990, SB 1281, SB 3073**

Culture, Recreation, and Tourism - **SB 3059**

Elections - **SB 447, SB 510, SB 2217, SB 2753**

Higher Education - **SB 800, SB 1032, SB 1242, SB 1400, SB 1534, SB 1835, SB 2055, SB 2786, SB 2972**

Human Services - **SB 961, SB 1137, SB 1266**

Intergovernmental Affairs - **HB 293, HB 1701, HB 3087, HB 3648, SB 1563, SB 1579, SB 1957, SB 2623**

Judiciary and Civil Jurisprudence - **SB 293, SB 441, SB 1164, SB 1558, SB 1760, SB 1838**

Land and Resource Management - **SB 2477, SB 2835, SB 3029**

Licensing and Administrative Procedures - **SB 2075, SB 2167**

Natural Resources - **SB 863, SB 1302, SB 1504, SB 1625, SB 1663, SB 1959**

Public Education - **SB 1191, SB 2920**

Public Health - **SB 227**

State Affairs - **SB 241, SB 1065, SB 2986**

Trade, Workforce, and Economic Development - **SB 2337**

Transportation - **HB 4955, SB 2366**

Ways and Means - **SB 850**

ENROLLED

May 20 - HB 9, HB 102, HB 109, HB 132, HB 668, HB 677, HB 754, HB 791, HB 1193, HB 1520, HB 1639, HB 1922, HB 2187, HB 2510, HB 2559, HB 2607, HB 2789, HB 2960, HB 2970, HB 3041, HB 3370, HB 3699, HB 3805, HB 4325, HB 4804, HB 4885, HB 5342, HCR 144

SENT TO THE GOVERNOR

May 20 - HB 11, HB 29, HB 30, HB 48, HB 142, HB 198, HB 210, HB 303, HB 431, HB 451, HB 630, HB 879, HB 1022, HB 1041, HB 1130, HB 1188, HB 1242, HB 1261, HB 1465, HB 1535, HB 1593, HB 1729, HB 1778, HB 1950, HB 2003, HB 2027, HB 2029, HB 2596, HB 2663, HB 2692, HB 2703, HB 2742, HB 2768, HB 3012, HB 3229, HB 3307, HB 3474, HB 3526, HB 3560, HB 3594, HB 3611, HB 3698, HB 3700, HB 3809, HB 4739, HB 5061, HB 5238

SENT TO THE SECRETARY OF THE STATE

May 20 - HJR 1

RECOMMENDATIONS FILED WITH THE SPEAKER

May 20 - HB 5692

SIGNED BY THE GOVERNOR

May 20 - HB 912, HCR 128

